

Misuse of Drugs Act 1973

Table of Contents

Long Title

Part 1 PRELIMINARY

1 Short title

2 Interpretation

3 Appointment of Director and other officers of Central Narcotics Bureau

4 Advisory committees

Part 2 OFFENCES INVOLVING CONTROLLED DRUGS AND SUBSTANCES

5 Trafficking in controlled drugs

6 Manufacture of controlled drugs

7 Import and export of controlled drugs

8 Possession and consumption of controlled drugs

8A Consumption of drug outside Singapore by citizen or permanent resident

9 Possession of pipes, utensils, etc.

10 Cultivation of cannabis, opium and coca plants

10A Manufacture, supply, possession, import or export of equipment, materials or substances useful for manufacture of controlled drugs

10B Regulations on controlled equipment, material or substances

11 Responsibilities of owners, tenants, etc.

11A Arranging or planning gatherings where controlled drugs are to be consumed or trafficked

11B Exposing child to drugs, etc., and permitting young person to consume drugs

11C Introducing drug trafficker to another person

11D Instructing person to cultivate cannabis, etc., or to manufacture or consume controlled drugs, etc.

11E Causing or procuring young person or vulnerable person to commit certain offences

Part 2A OFFENCES INVOLVING PSYCHOACTIVE SUBSTANCES

11F Trafficking in psychoactive substance

11G Manufacture of psychoactive substance

11H Import and export of psychoactive substance

11I Possession and consumption of psychoactive substance

11J Consumption of psychoactive substance outside Singapore by citizen or permanent resident

11K Possession of paraphernalia for consumption, etc., of psychoactive substance

11L Responsibilities of owners, tenants, etc.

11M Arranging or planning gatherings where psychoactive substances are to be consumed or trafficked

11N Exposing child to psychoactive substance, etc., and permitting young person to consume psychoactive substance

11O Introducing psychoactive substance trafficker to another person

11P Instructing person to manufacture or consume psychoactive substance, etc.

11Q Causing or procuring young person or vulnerable person to commit certain offences relating to psychoactive substances

Part 2B GENERAL PROVISIONS ON OFFENCES

12 Abetments and attempts punishable as offences

12A (Repealed)

13 Abetting or procuring commission of offences within or outside Singapore

14 Offences by body corporate

Part 3 EVIDENCE, ENFORCEMENT AND PUNISHMENT

15 Certificate of corresponding law

16 Certificate of analyst, etc.

17 Presumption concerning trafficking

18 Presumption of possession and knowledge of controlled drugs

18A Presumption of possession and knowledge of psychoactive substances

19 Presumption concerning premises

20 Presumption relating to ship or aircraft

21 Presumption relating to vehicle

22 Presumption relating to urine test

22A Proof of psychoactive substance

22B Knowledge of psychoactive substance

23 Protection of informers

24 Powers of search and seizure

25 Powers of arrest

25A Bail and bond

26 Power to search ship, hovercraft, etc., and person arriving in or departing from Singapore

26A Procedure when person entitled to seized item is known, unknown or cannot be found

27 Forfeiture of controlled drugs, controlled substances, psychoactive substances and articles seized

28 Forfeiture of ship, hovercraft, etc.

29 Disposal of things forfeited

30 Obstruction of inspection or search

31 Urine tests

31A Hair tests

31B Oral fluid tests

32 Power of investigation of officers of Bureau

32A Officer of Bureau to be armed

33 Punishment for offences

33A Punishment for repeat consumption of specified drugs

33B Discretion of court not to impose sentence of death in certain circumstances

Part 4 TREATMENT AND REHABILITATION

34 Supervision, treatment and rehabilitation of drug addicts

34A Parents or guardians to attend counselling with supervisees

35 Approved institutions and community rehabilitation centres

36 Administration of approved institutions

36A Administration of community rehabilitation centres

37 Review Committees for approved institutions and community rehabilitation centres

38 Review, discharge and transfer of inmates

38A Power to obtain information

39 Power of Magistrate to inquire into complaint of misconduct or breach of duty

40 Inmates deemed to be in legal custody

Part 5 TAKING OF PHOTOGRAPHS, FINGER IMPRESSIONS, PARTICULARS AND BODY SAMPLES

40A Interpretation of this Part

40B Taking of photographs, finger impressions, particulars and body samples from person subject to supervision or in approved institutions

40C Further provisions for taking of body samples

40D Retention of photographs, finger impressions, particulars and body samples taken

Part 6 COMMITTEE OF INQUIRY

41 Committee of inquiry

42 Composition of committee of inquiry

43 Powers of committee of inquiry

44 Disobedience to summons

45 Refusal to give evidence

46 Giving of false evidence

47 Evidence and procedure

48 Admissibility of evidence

49 Proceedings not open to public

50 Persons who may be affected by findings

51 Record of proceedings

52 Offence to influence or attempt to influence committee of inquiry

Part 7 GENERAL

53 Jurisdiction of courts

54 Indemnity

55 Protection of persons acting under authority of Act

56 Use of weapons

57 Employment of auxiliary police officers as escorts and guards

58 Regulations

58A (Repealed)

59 Power of Minister to amend First, Third, Fourth and Fifth Schedules

FIRST SCHEDULE Controlled Drugs

SECOND SCHEDULE Offences Punishable on Conviction

THIRD SCHEDULE Controlled equipment, materials or substances useful for manufacturing controlled drugs

FOURTH SCHEDULE Specified Drugs

FIFTH SCHEDULE

Legislative History

Abbreviations

MISUSE OF DRUGS ACT 1973

2020 REVISED EDITION

An Act for the control of dangerous or otherwise harmful drugs and substances and for purposes connected therewith.

[7 July 1973]

PART 1

PRELIMINARY

Short title

1. This Act is the Misuse of Drugs Act 1973.

Interpretation

2. In this Act, unless the context otherwise requires —

“aircraft” has the meaning given by section 2(1) of the Air Navigation Act 1966;

“approved institution” means any institution or place declared by the Minister to be an approved institution under section 35;

“article liable to seizure” means any money, thing, controlled equipment or controlled material by means of or in respect of which an offence under this Act has been committed or which contains or constitutes evidence of an offence under this Act;

[Act 12 of 2023 wef 01/06/2023]

“autonomous system”, in relation to a motor vehicle or vessel, means a system that enables the operation of the motor vehicle or vessel without the active physical control of, or monitoring by, a human operator;

“autonomous vehicle” means a motor vehicle equipped wholly or substantially with an autonomous system (also commonly known as a driverless vehicle), and includes a trailer drawn by such a motor vehicle;

“cannabis” means any part of a plant of the genus *Cannabis*, or any part of such plant, by whatever name it is called;

“cannabis mixture” means any mixture of vegetable matter containing tetrahydrocannabinol and cannabinol in any quantity;

“cannabis resin” means any substance containing resinous material and in which is found tetrahydrocannabinol and cannabinol in any quantity;

“Class A drug”, “Class B drug” and “Class C drug” mean any of the substances and products for the time being specified in Parts 1, 2 and 3 of the First Schedule, respectively;

“Commissioner of Prisons” means the Commissioner of Prisons appointed under section 20 of the Prisons Act 1933;

“committee of inquiry” means a committee of inquiry convened under section 41;

“community rehabilitation centre” means any place declared by the Minister as such under section 35;

“controlled drug” means any substance or product which is for the time being specified in Part 1, 2 or 3 of the First Schedule or anything that contains any such substance or product;

“controlled equipment, controlled material or controlled substance” means any equipment, material or substance, respectively, specified in the Third Schedule;

“corresponding law” means a law stated in a certificate purporting to be issued by or on behalf of the government of a country outside Singapore to be a law providing for the control and regulation in that country of —

(a) the production, supply, use, export and import of drugs and other substances in accordance with the provisions of the Single Convention on Narcotic Drugs signed at New York on 30 March 1961; or

(b) the production, supply, use, export and import of dangerous or otherwise harmful drugs pursuant to any treaty, convention or other agreement or arrangement to which the government of that country and the Government of Singapore are for the time being parties;

“Director” means the Director of the Central Narcotics Bureau appointed under section 3(1);

“drug addict” means a person who, through the use of any controlled drug or psychoactive substance, has developed —

(a) a desire or need to continue to take that controlled drug or psychoactive substance; or

[Act 12 of 2023 wef 01/06/2024]

(b) a psychological or physical dependence upon the effect of that controlled drug or psychoactive substance;

[Act 12 of 2023 wef 01/06/2024]

“excluded substance” means a substance specified in the Fifth Schedule;

[Act 12 of 2023 wef 01/06/2024]

“Health Sciences Authority” means the Health Sciences Authority established under the Health Sciences Authority Act 2001;

“Home Team Science and Technology Agency” means the Home Team Science and Technology Agency established by section 3 of the Home Team Science and Technology Agency Act 2019;

[Act 12 of 2023 wef 01/06/2024]

“immigration officer” has the meaning given by the Immigration Act 1959;

“inmate” means a person who is detained in an approved institution or a community rehabilitation centre pursuant to an order made under section 34;

[Act 9 of 2026 wef 01/05/2026]

“manufacture”, in relation to —

(a) a controlled drug, includes any process of producing the drug and the refining or transformation of one drug into another;

[Act 12 of 2023 wef 01/06/2024]

(b) a controlled substance, includes any process of producing the substance and the refining or transformation of one substance into another; or

[Act 12 of 2023 wef 01/06/2024]

(c) a psychoactive substance, includes any process of producing the substance and the refining or transformation of one substance into another;

[Act 12 of 2023 wef 01/06/2024]

“officer of customs” has the meaning given by the Customs Act 1960;

“officer of the Bureau” means the Director or any person appointed under section 3 as a Deputy Director, a Divisional Director or an officer of the Central Narcotics Bureau;

“opium” means any substance containing in any quantity morphine and one or more of the following, namely, codeine, narcotine, papaverine and thebaine but does not include poppy-straw which is not mixed in any such substance;

“permanent resident of Singapore” has the meaning given by section 2 of the Immigration Act 1959;

[Act 31 of 2023 wef 01/12/2025]

“place” includes —

- (a) any building or structure, whether permanent or temporary;
- (b) any land, whether or not built on;
- (c) any place, whether or not enclosed, and whether or not situated underground or underwater;
- (d) any vessel, aircraft, train, or vehicle (whether mechanically propelled or otherwise) or any other means of transport; and
- (e) any part of any place mentioned in paragraphs (a) to (d);

“police officer” has the meaning given by the Police Force Act 2004;

“prison officer” has the meaning given by the Prisons Act 1933;

“psychoactive effect” means the stimulation or depression, whether directly or indirectly, of an individual’s central nervous system, affecting the individual’s mental functioning or emotional state;

[Act 12 of 2023 wef 01/06/2024]

“psychoactive substance” —

- (a) means a substance or product that has the capacity to have a psychoactive effect on an individual if the individual smokes, administers to himself or herself or otherwise consumes, the substance or product; but
- (b) does not include an excluded substance;

[Act 12 of 2023 wef 01/06/2024]

“regulations” means any regulations made under this Act;

“Review Committee”, in relation to an approved institution, means the Review Committee appointed for the institution under section 37;

“senior officer of customs” has the meaning given by the Customs Act 1960;

“special police officer” means a member of the Special Constabulary constituted under Part 8 of the Police Force Act 2004;

“specified drug”, except for the purposes of the Second Schedule, means a drug specified in the Fourth Schedule;

“traffic” means —

- (a) to sell, give, administer, transport, send, deliver or distribute; or
- (b) to offer to do anything mentioned in paragraph (a),

otherwise than under the authority of this Act, and “trafficking” has a corresponding meaning;

“unmanned aircraft” and “unmanned aircraft system” have the meanings given by section 2(1) of the Air Navigation Act 1966;

“unmanned vessel” means a vessel equipped wholly or substantially with an autonomous system (such as an unmanned surface vehicle and a saildrone) and includes a barge drawn by an unmanned vessel;

“vehicle” means any means of transport used on land, whether self-propelled or not, such as a train, motor car, bicycle or personal mobility device;

“vessel” includes a floating facility;

“vulnerable person” means any person who suffers from an impairment of, or a disturbance in the functioning of, the mind or brain resulting from any disability or disorder of the mind or brain which impairs the ability to make a proper judgment in relation to the commission of any offence under this Act;

“young person” means any person who is below 21 years of age.

[\[30/2012; 1/2014; 1/2019\]](#)

Appointment of Director and other officers of Central Narcotics Bureau

3.—(1) The Minister may appoint a Director of the Central Narcotics Bureau and such numbers of Deputy Directors, Divisional Directors and other officers as the Minister may think fit.

[\[30/2012\]](#)

(2) All officers of the Bureau appointed by the Minister before 12 December 1975 are deemed to have been appointed under subsection (1).

(3) Subject to the provisions of this Act, the powers and functions conferred upon the Director under this Act, and the duties required to be discharged by him or her may, subject to such limitations as the Director may impose, be exercised and discharged by any Deputy Director or Divisional Director of the Central Narcotics Bureau duly authorised by the Director to act on his or her behalf.

[\[30/2012\]](#)

(4) The Director may issue such orders not inconsistent with the provisions of this Act and the regulations made under this Act, to be called General Orders, as he or she may think necessary and expedient for the control, direction and information of the officers of the Bureau.

[\[30/2012\]](#)

(5) It is not necessary to publish any General Orders in the *Gazette*.

[30/2012]

Advisory committees

4.—(1) For the purpose of assisting in the administration of this Act, the Minister may appoint such advisory committees as he or she thinks fit.

(2) Every such committee has such functions as the Minister may determine.

(3) Subject to the regulations, every such committee may regulate its own procedure.

PART 2

OFFENCES INVOLVING CONTROLLED DRUGS AND SUBSTANCES

Trafficking in controlled drugs

5.—(1) Except as authorised by this Act, it shall be an offence for a person, on his or her own behalf or on behalf of any other person, whether or not that other person is in Singapore —

- (a) to traffic in a controlled drug;
- (b) to offer to traffic in a controlled drug; or
- (c) to do or offer to do any act preparatory to or for the purpose of trafficking in a controlled drug.

(2) For the purposes of this Act, a person commits the offence of trafficking in a controlled drug if he or she has in his or her possession that drug for the purpose of trafficking.

Manufacture of controlled drugs

6. Except as authorised by this Act, it shall be an offence for a person to manufacture a controlled drug.

Import and export of controlled drugs

7. Except as authorised by this Act, it shall be an offence for a person to import into or export from Singapore a controlled drug.

Possession and consumption of controlled drugs

8. Except as authorised by this Act, it shall be an offence for a person to —

- (a) have in his or her possession a controlled drug; or
- (b) smoke, administer to himself or herself or otherwise consume —
 - (i) a controlled drug, other than a specified drug; or
 - (ii) a specified drug.

Consumption of drug outside Singapore by citizen or permanent resident

8A.—(1) Section 8(b) has effect in relation to a person who is a citizen of Singapore or a permanent resident of Singapore outside as well as within Singapore where he or she is found as a result of urine tests conducted under section 31(4)(b) to have smoked, administered to himself or herself or otherwise consumed a controlled drug or a specified drug.

(2) Where an offence under section 8(b) is committed by a person mentioned in subsection (1) in any place outside Singapore, he or she may be dealt with as if that offence had been committed within Singapore.

Possession of pipes, utensils, etc.

9. Except as authorised by this Act, it shall be an offence for a person to have in his or her possession any pipe, syringe, utensil, apparatus or other article intended for the smoking, administration or consumption of a controlled drug.

Cultivation of cannabis, opium and coca plants

10. It shall be an offence for a person to cultivate any plant of the genus *Cannabis*, or any plant of the species *papaver somniferum* or any plant of the genus *erythroxylon* from which cocaine can be extracted.

Manufacture, supply, possession, import or export of equipment, materials or substances useful for manufacture of controlled drugs

10A.—(1) Any person who —

- (a) manufactures any controlled equipment, controlled material or controlled substance;
- (b) supplies any controlled equipment, controlled material or controlled substance to another person;
- (c) has in his or her possession any controlled equipment, controlled material or controlled substance; or

- (d) imports or exports any controlled equipment, controlled material or controlled substance,

knowing or having reason to believe that the controlled equipment, controlled material or controlled substance is to be used in or for the manufacture of a controlled drug in contravention of section 6 shall be guilty of an offence.

(2) It is not a defence to a person who contravenes subsection (1)(d) in respect of any controlled equipment, controlled material or controlled substance to show that the equipment, material or substance is the subject of a licence, permit or any other form of authorisation issued or granted under any regulations made under section 10B.

Regulations on controlled equipment, material or substances

10B.—(1) The Minister may by regulations make provisions for —

- (a) the licensing, by such person or authority as may be prescribed, of persons who intend to import or export any controlled equipment, controlled material or controlled substance;
- (b) the regulation and control of the import or export of any controlled equipment, controlled material or controlled substance;
- (c) imposing requirements for the registration of premises used in connection with the import, export, manufacture, processing, storage, distribution or supply of any controlled equipment, controlled material or controlled substance;
- (d) imposing requirements as to the documentation of transactions involving any controlled equipment, controlled material or controlled substance;
- (e) requiring the keeping of records and the furnishing of information with respect to any controlled equipment, controlled material or controlled substance;
- (f) the inspection and production of records kept pursuant to the regulations; and
- (g) the labelling of consignments of any controlled equipment, controlled material or controlled substance.

(2) Regulations made under subsection (1) may, in particular, require —

- (a) the notification of the proposed exportation of any controlled equipment, controlled material or controlled substance to such countries as may be specified in the regulations; and

- (b) the production, in such circumstances as may be specified, of evidence that the required notification has been given,

and any such equipment, material or substance is deemed to be exported contrary to a restriction for the time being in force with respect to the equipment, material or substance under such regulations if it is exported without the requisite notice being given.

(3) Regulations made under this section may make different provisions in relation to different controlled equipment, controlled material or controlled substance and in relation to different cases or circumstances.

(4) Regulations made under this section may provide that any person who contravenes any provision thereof shall be guilty of an offence and shall be liable on conviction to be punished with a fine not exceeding \$10,000 or with imprisonment for a term not exceeding 3 years or with both as may be specified in the regulations.

(5) No information obtained pursuant to any regulations made under this section is to be disclosed except for the purposes of criminal proceedings or of proceedings under or in relation to the Corruption, Drug Trafficking and Other Serious Crimes (Confiscation of Benefits) Act 1992.

Responsibilities of owners, tenants, etc.

11. It shall be an offence for a person being the owner, tenant, occupier or person in charge of any place or premises, to permit or suffer such place or premises or any part thereof to be opened, kept or used for —

- (a) the purpose of smoking, administration or consumption of any controlled drug in contravention of section 8(b); or

[Act 12 of 2023 wef 01/06/2023]

- (b) the unlawful trafficking in or the unlawful manufacturing of any controlled drug.

Arranging or planning gatherings where controlled drugs are to be consumed or trafficked

11A.—(1) Where there is a gathering of 2 or more persons in any place, any person who arranges or plans the gathering with the knowledge that any controlled drug is, or is to be, consumed or trafficked at that gathering shall be guilty of an offence and shall on conviction —

- (a) be punished with imprisonment for a term of not less than 3 years and not more than 20 years; and

(b) be liable to caning of not more than 10 strokes.

[30/2012]

(2) A person may be guilty of an offence under subsection (1) even though he or she does not supply any controlled drug to be consumed or trafficked at that gathering.

[30/2012]

Exposing child to drugs, etc., and permitting young person to consume drugs

11B.—(1) Any person of or above 21 years of age who, being in possession of any controlled drug or drug paraphernalia —

(a) knowingly or recklessly leaves the controlled drug or drug paraphernalia —

(i) exposed in any place; or

(ii) in any refrigerator, cupboard, cabinet, box, chest or any other article, that is not locked; and

(b) knows that any child has, or is likely to have, access to —

(i) the place where the controlled drug or drug paraphernalia is left exposed; or

(ii) the refrigerator, cupboard, cabinet, box, chest or other article in which the controlled drug or drug paraphernalia is located,

shall be guilty of an offence.

[1/2019]

(2) Any person of or above 21 years of age who, being in possession of any controlled drug —

(a) permits a young person to smoke, administer (whether or not to himself or herself) or consume the controlled drug; or

(b) does not take all reasonable steps to prevent a young person from smoking, administering (whether or not to himself or herself) or consuming the controlled drug,

shall be guilty of an offence.

[1/2019]

(3) Subject to subsection (3A), a person who is guilty of an offence under subsection (1) or (2) shall on conviction be punished with imprisonment for a term not exceeding 10 years.

[Act 12 of 2023 wef 01/06/2024]

(3A) If a person —

- (a) has a previous conviction under subsection (1) or (2) or section 11N(1) or (2); and
- (b) is convicted of an offence under subsection (1) or (2),

that person shall on conviction be punished with imprisonment for a term of not less than 2 years and not more than 10 years.

[Act 12 of 2023 wef 01/06/2024]

(4) Subsection (1) does not apply in relation to a person who is in possession of any controlled drug or drug paraphernalia if the possession of the controlled drug or drug paraphernalia is authorised under this Act.

[1/2019]

(5) In this section —

“child” means any person below 16 years of age;

“drug paraphernalia” means any pipe, syringe, utensil, apparatus or other article for the purpose of smoking, administering or consuming a controlled drug.

[1/2019]

Introducing drug trafficker to another person

11C.—(1) A person (*A*) who, knowing or having reason to believe —

- (a) that —
 - (i) another person (*B*) intends to procure, whether or not for himself or herself, any controlled drug; and
 - (ii) the possession of the controlled drug by *B* (or a person that *B* is procuring the controlled drug for) would not be authorised under this Act; or

- (b) that another person (*B*) intends, without any authorisation under this Act, to smoke, administer (whether or not to himself or herself) or consume any controlled drug,

introduces *B* (whether or not through the use of any electronic media) to a person whom *A* knows or has reason to believe is trafficking in any controlled drug and is likely to supply *B* with any controlled drug shall be guilty of an offence.

[Act 12 of 2023 wef 01/06/2023]

(2) Subject to subsection (2A), a person who is guilty of an offence under subsection (1) shall on conviction be punished with imprisonment for a term not exceeding 10 years.

[Act 12 of 2023 wef 01/06/2024]

(2A) If a person —

- (a) has a previous conviction under subsection (1) or section 11O(1); and
- (b) is convicted of an offence under subsection (1),

that person shall on conviction be punished with imprisonment for a term of not less than 2 years and not more than 10 years.

[Act 12 of 2023 wef 01/06/2024]

(3) In a prosecution for an offence under subsection (1), it is not necessary for the prosecution to prove that —

- (a) *B* procures, smokes, administers or consumes any controlled drug after the introduction is made; or
- (b) both *A* and *B* are within Singapore at the time the introduction is made, as long as either *A* or *B* is within Singapore at that time.

[1/2019]

(4) In this section, “introduce” includes giving any address, telephone number, email address or any other details of one person to another person.

[1/2019]

Instructing person to cultivate cannabis, etc., or to manufacture or consume controlled drugs, etc.

11D.—(1) Any person (*A*) who, whether or not through the use of any electronic media, teaches or instructs another person (*B*) to carry out, or who provides information to *B* on the carrying out of, any of the following activities:

- (a) the cultivating of any plant of the genus *Cannabis*, or any plant of the species *papaver somniferum* or any plant of the genus *erythroxylon* from which cocaine can be extracted;
- (b) the manufacture of any controlled drug;
- (c) the smoking, administering or consuming of any controlled drug;
- (d) the trafficking or doing of any act preparatory to or for the purpose of trafficking in any controlled drug;
- (e) the importing into or exporting from Singapore of any controlled drug,

knowing or having reason to believe that *B* intends to carry out the activity, shall be guilty of an offence.

[1/2019]

(2) Any person who disseminates or publishes, or causes the dissemination or publication of, information (whether or not through the use of any electronic media) on the carrying out of any activity mentioned in subsection (1) shall be guilty of an offence.

[1/2019]

(3) Subject to subsection (4), a person who is guilty of an offence under subsection (1) shall on conviction be punished with imprisonment for a term not exceeding 10 years.

[Act 12 of 2023 wef 01/06/2024]

(4) If a person —

- (a) has a previous conviction under subsection (1) or section 11P(1); and
- (b) is convicted of an offence under subsection (1),

that person shall on conviction be punished with imprisonment for a term of not less than 2 years and not more than 10 years.

[Act 12 of 2023 wef 01/06/2024]

(4A) Subject to subsection (4B), a person who is guilty of an offence under subsection (2) shall be liable on conviction to a fine not exceeding \$10,000 or to imprisonment for a term not exceeding 5 years or to both.

[Act 12 of 2023 wef 01/06/2024]

(4B) If a person —

- (a) has a previous conviction under subsection (2) or section 11P(2); and
- (b) is convicted of an offence under subsection (2),

that person shall on conviction be punished with imprisonment for a term of not less than one year and not more than 5 years.

[Act 12 of 2023 wef 01/06/2024]

(5) In a prosecution for an offence under subsection (1), it is not necessary for the prosecution to prove, in relation to any activity mentioned in that subsection for which *B* is taught, instructed or provided with information, that —

- (a) *B* carries out the activity after *B* is so taught, instructed or provided with information; or
- (b) both *A* and *B* are within Singapore at the time when *B* is so taught, instructed or provided with information, as long as either *A* or *B* is within Singapore at that time.

[1/2019]

(6) Subsection (1) does not apply in relation to *A* teaching or instructing *B* to carry out, or providing information to *B* on the carrying out of, any activity mentioned in that subsection if the teaching, instructing or provision of information is authorised under this

Act.

[1/2019]

(7) It is a defence to a charge under subsection (1) if *A* who teaches or instructs *B* to carry out, or provides information to *B* on the carrying out of, any activity mentioned in that subsection proves, on a balance of probabilities, that the teaching, instructing or provision of information has a legitimate purpose related to the administration of justice, the investigation and prosecution of offences, or to science, medicine, education or art.

[1/2019]

(8) Subsection (2) does not apply in relation to any dissemination or publication of information on the carrying out of any activity mentioned in subsection (1) if the dissemination or publication of information is authorised under this Act.

[1/2019]

(9) It is a defence to a charge under subsection (2) if the person who disseminates or publishes information on the carrying out of any activity mentioned in subsection (1) proves, on a balance of probabilities, that the dissemination or publication of information has a legitimate purpose related to the administration of justice, the investigation and prosecution of offences, or to science, medicine, education or art.

[1/2019]

Causing or procuring young person or vulnerable person to commit certain offences

11E. Any person of or above 21 years of age who causes or procures any young person or vulnerable person to commit any offence under section 5(1) or 7 shall be guilty of an offence.

[1/2019]

PART 2A

OFFENCES INVOLVING PSYCHOACTIVE SUBSTANCES

[Act 12 of 2023 wef 01/06/2024]

Trafficking in psychoactive substance

11F.—(1) Except as authorised by this Act, it shall be an offence for a person, on his or her own behalf or on behalf of any other person, whether or not that other person is in Singapore —

- (a) to traffic in a psychoactive substance;
- (b) to offer to traffic in a psychoactive substance; or
- (c) to do or offer to do any act preparatory to or for the purpose of trafficking

in a psychoactive substance.

(2) For the purposes of this Act, a person commits the offence of trafficking in a psychoactive substance if he or she has in his or her possession that psychoactive substance for the purpose of trafficking.

(3) Subject to subsections (4) and (5), a person who is guilty of an offence under subsection (1) shall on conviction be punished with imprisonment for a term of not less than 2 years and not more than 10 years and shall also be liable to a fine of not less than \$4,000 and not more than \$10,000.

(4) Subject to subsection (5), where a person —

(a) has a previous conviction —

(i) under subsection (1) or section 11H(1); or

(ii) under section 5(1) or 7, at any time before, on or after the date of commencement of section 7 of the Misuse of Drugs (Amendment) Act 2023; and

(b) is convicted of an offence under subsection (1),

that person shall on conviction be punished with imprisonment for a term of not less than 4 years and not more than 20 years and shall also be liable to a fine of not less than \$8,000 and not more than \$20,000.

(5) If a person of or above 21 years of age is convicted of an offence under subsection (1) and the intended recipient of the psychoactive substance which is, or is to be, trafficked is a young person or a vulnerable person, that person so convicted shall be punished with —

(a) imprisonment for a term of not less than 4 years and not more than 20 years; and

(b) not less than 4 strokes and not more than 15 strokes of the cane.

(6) In any proceedings for an offence under subsection (1), it is a defence for the accused to prove, on a balance of probabilities, that the accused intended or believed that the psychoactive substance would be used for a legitimate purpose other than human consumption, regardless of whether that psychoactive substance is or is not fit for human consumption.

[Act 12 of 2023 wef 01/06/2024]

Manufacture of psychoactive substance

11G.—(1) Except as authorised by this Act, it shall be an offence for a person to

manufacture a psychoactive substance.

(2) A person who is guilty of an offence under subsection (1) shall on conviction be punished with imprisonment for a term of not less than 5 years and not more than 20 years and shall also be liable to a fine of not less than \$10,000 and not more than \$20,000.

(3) In any proceedings for an offence under subsection (1), it is a defence for the accused to prove, on a balance of probabilities, that the accused manufactured the psychoactive substance for a legitimate purpose other than human consumption, regardless of whether that psychoactive substance is or is not fit for human consumption.

[Act 12 of 2023 wef 01/06/2024]

Import and export of psychoactive substance

11H.—(1) Except as authorised by this Act, it shall be an offence for a person to import into or export from Singapore a psychoactive substance.

(2) Subject to subsections (3) and (4), a person who is guilty of an offence under subsection (1) shall on conviction be punished with imprisonment for a term of not less than 3 years and not more than 20 years and shall also be liable to a fine of not less than \$6,000 and not more than \$20,000.

(3) Subject to subsection (4), where a person —

(a) has a previous conviction —

(i) under subsection (1) or section 11F(1); or

(ii) under section 5(1) or 7, at any time before, on or after the date of commencement of section 7 of the Misuse of Drugs (Amendment) Act 2023; and

(b) is convicted of an offence under subsection (1),

that person shall on conviction be punished with imprisonment for a term of not less than 4 years and not more than 20 years and shall also be liable to a fine of not less than \$8,000 and not more than \$20,000.

(4) If a person of or above 21 years of age is convicted of an offence under subsection (1) and the intended recipient of the psychoactive substance which is, or is to be, trafficked is a young person or a vulnerable person, that person so convicted shall be punished with —

(a) imprisonment for a term of not less than 4 years and not more than 20 years; and

(b) not less than 4 strokes and not more than 15 strokes of the cane.

(5) In any proceedings for an offence under subsection (1), it is a defence for the accused to prove, on a balance of probabilities, that the accused imported or exported the psychoactive substance for a legitimate purpose other than human consumption, regardless of whether that psychoactive substance is or is not fit for human consumption.

[Act 12 of 2023 wef 01/06/2024]

Possession and consumption of psychoactive substance

11I.—(1) Except as authorised by this Act, it shall be an offence for a person to —

- (a) have in his or her possession a psychoactive substance; or
- (b) smoke, administer to himself or herself or otherwise consume, a psychoactive substance.

(2) Subject to subsection (3), a person who is guilty of an offence under subsection (1)(a) shall be liable on conviction to a fine not exceeding \$20,000 or to imprisonment for a term not exceeding 10 years or to both.

(3) If a person —

- (a) has a previous conviction —
 - (i) under subsection (1)(a); or
 - (ii) under section 8(a), at any time before, on or after the date of commencement of section 7 of the Misuse of Drugs (Amendment) Act 2023; and

(b) is convicted of an offence under subsection (1)(a),

that person shall on conviction be punished with imprisonment for a term of not less than 2 years and not more than 10 years and shall also be liable to a fine not exceeding \$20,000.

(4) In any proceedings for an offence under subsection (1)(a), it is a defence for the accused to prove, on a balance of probabilities, that the accused had the psychoactive substance in his or her possession for a legitimate purpose other than human consumption, regardless of whether that psychoactive substance is or is not fit for human consumption.

[Act 12 of 2023 wef 01/06/2024]

Consumption of psychoactive substance outside Singapore by citizen or permanent resident

11J.—(1) Section 11I(1)(b) has effect in relation to a person who is a citizen of Singapore or a permanent resident of Singapore outside as well as within Singapore where he or she is found as a result of urine tests conducted under section 31(4)(b) to have smoked, administered to himself or herself or otherwise consumed a psychoactive substance.

(2) Where an offence under section 11I(1)(b) is committed by a person mentioned in subsection (1) in any place outside Singapore, he or she may be dealt with as if that offence had been committed within Singapore.

[Act 12 of 2023 wef 01/06/2024]

Possession of paraphernalia for consumption, etc., of psychoactive substance

11K.—(1) Except as authorised by this Act, it shall be an offence for a person to have in his or her possession any pipe, syringe, utensil, apparatus or other article intended for the smoking, administration or consumption of a psychoactive substance in contravention of section 11I(1)(b).

(2) A person who is guilty of an offence under subsection (1) shall be liable on conviction to a fine not exceeding \$10,000 or to imprisonment for a term not exceeding 3 years or to both.

[Act 12 of 2023 wef 01/06/2024]

Responsibilities of owners, tenants, etc.

11L.—(1) It shall be an offence for a person being the owner, tenant, occupier or person in charge of any place or premises, to permit or allow that place or premises or any part of that place or premises, to be opened, kept or used for —

- (a) the purpose of smoking, administration or consumption of any psychoactive substance in contravention of section 11I(1)(b); or
- (b) the unlawful trafficking in or the unlawful manufacturing of any psychoactive substance.

(2) A person who is guilty of an offence under subsection (1) shall be liable on conviction to a fine of not less than \$2,000 and not more than \$10,000 or to imprisonment for a term of not less than 12 months and not more than 5 years or to both.

[Act 12 of 2023 wef 01/06/2024]

Arranging or planning gatherings where psychoactive substances are to be consumed or trafficked

11M.—(1) Where there is a gathering of 2 or more persons in any place, any person who arranges or plans the gathering with the knowledge that any psychoactive substance is, or is to be, smoked, administered or consumed in contravention of section 11I(1)(b) or

unlawfully trafficked at that gathering shall be guilty of an offence.

(2) Subject to subsection (3), a person who is guilty of an offence under subsection (1) shall on conviction —

- (a) be punished with imprisonment for a term of not less than 3 years and not more than 20 years; and
- (b) be liable to caning of not more than 10 strokes.

(3) If a person of or above 21 years of age is convicted of an offence under subsection (1) and the gathering consists of any young person or vulnerable person, that person so convicted shall be punished with —

- (a) imprisonment for a term of not less than 5 years and not more than 20 years; and
- (b) not less than 3 strokes and not more than 10 strokes of the cane.

(4) A person may be guilty of an offence under subsection (1) even though he or she does not supply any psychoactive substance to be consumed or trafficked at that gathering.

[Act 12 of 2023 wef 01/06/2024]

Exposing child to psychoactive substance, etc., and permitting young person to consume psychoactive substance

11N.—(1) A person of or above 21 years of age shall be guilty of an offence if the person, being in possession of any psychoactive substance or paraphernalia —

- (a) knowingly or recklessly leaves the psychoactive substance or paraphernalia —
 - (i) exposed in any place; or
 - (ii) in any refrigerator, cupboard, cabinet, box, chest or any other article, that is not locked; and
- (b) knows that any child has, or is likely to have, access to —
 - (i) the place where the psychoactive substance or paraphernalia is left exposed; or
 - (ii) the refrigerator, cupboard, cabinet, box, chest or other article in which the psychoactive substance or paraphernalia is located.

(2) A person of or above 21 years of age shall be guilty of an offence if the person, being in possession of any psychoactive substance —

- (a) permits a young person to smoke, administer (whether or not to himself or herself) or consume the psychoactive substance; or
- (b) does not take all reasonable steps to prevent a young person from smoking, administering (whether or not to himself or herself) or consuming the psychoactive substance.

(3) Subject to subsection (4), a person who is guilty of an offence under subsection (1) or (2) shall on conviction be punished with imprisonment for a term not exceeding 10 years.

(4) If a person —

- (a) has a previous conviction —
 - (i) under subsection (1) or (2); or
 - (ii) under section 11B(1) or (2), at any time before, on or after the date of commencement of section 7 of the Misuse of Drugs (Amendment) Act 2023; and

(b) is convicted of an offence under subsection (1) or (2),

that person shall on conviction be punished with imprisonment for a term of not less than 2 years and not more than 10 years.

(5) Subsection (1) does not apply in relation to a person who is in possession of any psychoactive substance or paraphernalia if the possession of the psychoactive substance or paraphernalia is authorised under this Act.

(6) In any proceedings for an offence under subsection (1) in relation to the possession of a psychoactive substance, it is a defence for the accused to prove, on a balance of probabilities, that the accused had the psychoactive substance in his or her possession for a legitimate purpose other than human consumption, regardless of whether that psychoactive substance is or is not fit for human consumption.

(7) In this section —

“child” means any person below 16 years of age;

“paraphernalia” means any pipe, syringe, utensil, apparatus or other article for the purpose of smoking, administering or consuming a psychoactive substance.

[Act 12 of 2023 wef 01/06/2024]

Introducing psychoactive substance trafficker to another person

11O.—(1) A person (*A*) who, knowing or having reason to believe —

(a) that —

- (i) another person (*B*) intends to procure, whether or not for himself or herself, any psychoactive substance; and
- (ii) the possession of the psychoactive substance by *B* (or a person that *B* is procuring the psychoactive substance for) would not be authorised under this Act; or

(b) that another person (*B*) intends, without any authorisation under this Act, to smoke, administer (whether or not to himself or herself) or consume any psychoactive substance,

introduces *B* (whether or not through the use of any electronic media) to a person whom *A* knows or has reason to believe is trafficking in any psychoactive substance and is likely to supply *B* with any psychoactive substance, shall be guilty of an offence.

(2) Subject to subsection (3), a person who is guilty of an offence under subsection (1) shall on conviction be punished with imprisonment for a term not exceeding 10 years.

(3) If a person —

(a) has a previous conviction —

- (i) under subsection (1); or
- (ii) under section 11C(1), at any time before, on or after the date of commencement of section 7 of the Misuse of Drugs (Amendment) Act 2023; and

(b) is convicted of an offence under subsection (1),

that person shall on conviction be punished with imprisonment for a term of not less than 2 years and not more than 10 years.

(4) In a prosecution for an offence under subsection (1), it is not necessary for the prosecution to prove that —

- (a) *B* procures, smokes, administers or consumes any psychoactive substance in contravention of section 11I(1)(b) after the introduction is made; or
- (b) both *A* and *B* are within Singapore at the time the introduction is made, as long as either *A* or *B* is within Singapore at that time.

(5) In any proceedings for an offence under subsection (1)(a), it is a defence for the accused to prove, on a balance of probabilities, that the accused believed that *B* intended

to procure the psychoactive substance for a legitimate purpose other than human consumption, regardless of whether that psychoactive substance is or is not fit for human consumption.

(6) In this section, “introduce” includes giving any address, telephone number, email address or any other details of one person to another person.

[Act 12 of 2023 wef 01/06/2024]

Instructing person to manufacture or consume psychoactive substance, etc.

11P.—(1) A person (*A*) who, whether or not through the use of any electronic media, teaches or instructs another person (*B*) to carry out, or who provides information to *B* on the carrying out of, any of the following activities:

- (a) the manufacture of any psychoactive substance;
- (b) the smoking, administering or consuming of any psychoactive substance;
- (c) the trafficking or doing of any act preparatory to or for the purpose of trafficking in any psychoactive substance;
- (d) the importing into or exporting from Singapore of any psychoactive substance,

knowing or having reason to believe that *B* intends to carry out the activity, shall be guilty of an offence.

(2) A person who disseminates or publishes, or causes the dissemination or publication of, information (whether or not through the use of any electronic media) on the carrying out of any activity mentioned in subsection (1) shall be guilty of an offence.

(3) Subject to subsection (4), a person who is guilty of an offence under subsection (1) shall on conviction be punished with imprisonment for a term not exceeding 10 years.

(4) If a person —

(a) has a previous conviction —

(i) under subsection (1); or

(ii) under section 11D(1), at any time before, on or after the date of commencement of section 7 of the Misuse of Drugs (Amendment) Act 2023; and

(b) is convicted of an offence under subsection (1),

that person shall on conviction be punished with imprisonment for a term of not less than 2 years and not more than 10 years.

(5) Subject to subsection (6), a person who is guilty of an offence under subsection (2) shall be liable on conviction to a fine not exceeding \$10,000 or to imprisonment for a term not exceeding 5 years or to both.

(6) If a person —

(a) has a previous conviction —

(i) under subsection (2); or

(ii) under section 11D(2), at any time before, on or after the date of commencement of section 7 of the Misuse of Drugs (Amendment) Act 2023; and

(b) is convicted of an offence under subsection (2),

that person shall on conviction be punished with imprisonment for a term of not less than 12 months and not more than 5 years.

(7) In a prosecution for an offence under subsection (1), it is not necessary for the prosecution to prove, in relation to any activity mentioned in that subsection for which *B* is taught, instructed or provided with information, that —

(a) *B* carries out the activity after *B* is so taught, instructed or provided with information; or

(b) both *A* and *B* are within Singapore at the time when *B* is so taught, instructed or provided with information, as long as either *A* or *B* is within Singapore at that time.

(8) Subsection (1) does not apply in relation to *A* teaching or instructing *B* to carry out, or providing information to *B* on the carrying out of, any activity mentioned in that subsection if the teaching, instructing or provision of information is authorised under this Act.

(9) In any proceedings for an offence under subsection (1), it is a defence for the accused to prove, on a balance of probabilities, that —

(a) if the offence relates to any activity mentioned in subsection (1) — the teaching, instructing or provision of information has a legitimate purpose related to the administration of justice, the investigation and prosecution of offences, or to science, medicine, education or art;

(b) if the offence relates to any activity mentioned in subsection (1)(a) — the accused believed that *B* intended to manufacture the psychoactive substance for a legitimate purpose other than human consumption,

regardless of whether that psychoactive substance is or is not fit for human consumption; or

- (c) if the offence relates to any activity mentioned in subsection (1)(c) or (d) — the accused believed that *B* intended to traffic or do any act preparatory to or for the purpose of trafficking, or import or export, the psychoactive substance for a legitimate purpose other than human consumption, regardless of whether that psychoactive substance is or is not fit for human consumption.

(10) Subsection (2) does not apply in relation to any dissemination or publication of information on the carrying out of any activity mentioned in subsection (1) if the dissemination or publication of information is authorised under this Act.

(11) In any proceedings for an offence under subsection (2), it is a defence for the person who disseminates or publishes information on the carrying out of any activity mentioned in subsection (1) to prove, on a balance of probabilities, that the dissemination or publication of information had a legitimate purpose related to the administration of justice, the investigation and prosecution of offences, or to science, medicine, education or art.

[Act 12 of 2023 wef 01/06/2024]

Causing or procuring young person or vulnerable person to commit certain offences relating to psychoactive substances

11Q.—(1) Any person of or above 21 years of age who causes or procures any young person or vulnerable person to commit any offence under section 11F(1) or 11H(1) shall be guilty of an offence.

(2) A person who is guilty of an offence under subsection (1) shall on conviction be punished with —

- (a) imprisonment for a term of not less than 4 years and not more than 20 years; and
- (b) not less than 4 strokes and not more than 15 strokes of the cane.

[Act 12 of 2023 wef 01/06/2024]

PART 2B

GENERAL PROVISIONS ON OFFENCES

[Act 12 of 2023 wef 01/06/2024]

Abetments and attempts punishable as offences

12. Any person who abets the commission of or who attempts to commit or does any act preparatory to, or in furtherance of, the commission of any offence under this Act shall be guilty of that offence and shall be liable on conviction to the punishment provided for that offence.

12A. *[Repealed by Act 1 of 2019]*

Abetting or procuring commission of offences within or outside Singapore

13. Any person who —

- (a) aids, abets, counsels or procures the commission in any place outside Singapore of an offence punishable under a corresponding law in force in that place;
- (b) aids, abets, counsels or procures the commission of any offence under this Act within Singapore, even though all or any of the acts constituting the aiding, abetment, counselling or procurement were done outside Singapore; or
- (c) does an act preparatory to, or in furtherance of, an act outside Singapore which if committed in Singapore would constitute an offence under this Act,

shall be guilty of an offence and shall be liable on conviction —

- (d) in relation to an offence mentioned in paragraph (a) or (c), to imprisonment for a term of not less than 2 years but not more than 10 years, or to a fine of not less than \$4,000 and not more than \$40,000, or to both; and
- (e) in relation to an offence mentioned in paragraph (b), to the same punishment provided for the offence that the person aided, abetted, counselled or procured.

[1/2019]

Offences by body corporate

14. Where any offence under this Act committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate, or any person purporting to act in any such capacity, he or she as well as the body corporate shall be guilty of that offence and shall be liable to be proceeded against accordingly.

PART 3

EVIDENCE, ENFORCEMENT AND PUNISHMENT

Certificate of corresponding law

15.—(1) A document purporting to be issued by or on behalf of the government of a country outside Singapore and purporting to state the terms of a corresponding law in force in that country is to be admitted in evidence, in any proceedings for an offence under this Act, on its production by the prosecution without further proof.

(2) Such document is conclusive evidence that —

- (a) it is issued by or on behalf of the government of that country;
- (b) the terms of that law are as stated in the document; and
- (c) any fact stated in the document as constituting an offence under that law does constitute such offence.

Certificate of analyst, etc.

16.—(1) A certificate purporting —

(a) to be signed by —

- (i) an analyst employed by the Health Sciences Authority or the Home Team Science and Technology Agency; or

[Act 12 of 2023 wef 01/06/2024]

- (ii) such other person as the Minister may appoint; and

[Act 5 of 2025 wef 09/03/2025]

(b) to relate to a controlled drug, controlled substance or psychoactive substance,

is to be admitted in evidence, in any proceedings for an offence under this Act, on its production by the prosecution without proof of signature and, until the contrary is proved, is proof of all matters contained therein.

[Act 12 of 2023 wef 01/06/2024]

[Act 5 of 2025 wef 09/03/2025]

(2) An appointment under subsection (1)(a)(ii) must be published in the *Gazette*.

[Act 5 of 2025 wef 09/03/2025]

Presumption concerning trafficking

17. Any person who is proved to have had in his or her possession more than —

- (a) 100 grammes of opium;

- (b) 3 grammes of morphine;
- (c) 2 grammes of diamorphine;
- (d) 15 grammes of cannabis;
- (e) 30 grammes of cannabis mixture;
- (f) 10 grammes of cannabis resin;
- (g) 3 grammes of cocaine;
- (h) 25 grammes of methamphetamine;
- (ha) 113 grammes of ketamine; or
- (i) 10 grammes of any or any combination of the following:
 - (i) N, α -dimethyl-3,4-(methylenedioxy)phenethylamine;
 - (ii) α -methyl-3,4-(methylenedioxy)phenethylamine;
 - (iii) N-ethyl- α -methyl-3,4-(methylenedioxy)phenethylamine,

whether or not contained in any substance, extract, preparation or mixture, is presumed to have had that drug in possession for the purpose of trafficking unless it is proved that his or her possession of that drug was not for that purpose.

Presumption of possession and knowledge of controlled drugs

18.—(1) Any person who is proved to have had in his or her possession or custody or under his or her control —

- (a) anything containing a controlled drug;
- (b) the keys of anything containing a controlled drug;
- (c) the keys of any place or premises or any part thereof in which a controlled drug is found; or
- (d) a document of title relating to a controlled drug or any other document intended for the delivery of a controlled drug,

is presumed, until the contrary is proved, to have had that drug in his or her possession.

(2) Any person who is proved or presumed to have had a controlled drug in his or her possession is presumed, until the contrary is proved, to have known the nature of that drug.

(3) The presumptions provided for in this section are not to be rebutted by proof that

the accused never had physical possession of the controlled drug.

(4) Where one of 2 or more persons with the knowledge and consent of the rest has any controlled drug in his or her possession, it is deemed to be in the possession of each and all of them.

Presumption of possession and knowledge of psychoactive substances

18A.—(1) Any person who is proved to have had in his or her possession or custody or under his or her control —

- (a) anything containing a psychoactive substance;
- (b) the keys of anything containing a psychoactive substance;
- (c) the keys of any place or premises or any part of that place or premises in which a psychoactive substance is found; or
- (d) a document of title relating to a psychoactive substance or any other document intended for the delivery of a psychoactive substance,

is presumed, until the contrary is proved, to have had that psychoactive substance in his or her possession.

(2) Where a person is proved or presumed to have had a psychoactive substance in his or her possession, the person is presumed, until the contrary is proved —

- (a) to have known that the psychoactive substance has the capacity to have a psychoactive effect on an individual if the individual smokes, administers to himself or herself or otherwise consumes, the substance or product; and
- (b) to not believe (and to have had no reason to believe) that the psychoactive substance is an excluded substance.

(3) The presumptions provided for in this section are not to be rebutted by proof that the accused never had physical possession of the psychoactive substance.

(4) Where one of 2 or more persons with the knowledge and consent of the rest has any psychoactive substance in his or her possession, it is deemed to be in the possession of each and all of them.

[Act 12 of 2023 wef 01/06/2024]

Presumption concerning premises

19.—(1) Where a pipe, syringe, utensil, apparatus or other article intended for the smoking, administration or consumption of a controlled drug or psychoactive substance is found in any place or premises, it is presumed, until the contrary is proved, that the

place or premises is used for the purpose of smoking, administering or consuming a controlled drug or psychoactive substance, as the case may be.

[Act 12 of 2023 wef 01/06/2024]

(2) Any person found in or escaping from any place or premises which is proved or presumed to be used for the purpose of smoking, administering or consuming a controlled drug or psychoactive substance is presumed, until the contrary is proved, to have been smoking, administering or consuming a controlled drug or psychoactive substance (as the case may be) in that place or premises.

[Act 12 of 2023 wef 01/06/2023]

[Act 12 of 2023 wef 01/06/2024]

Presumption relating to ship or aircraft

20. If any controlled drug or psychoactive substance is found in any ship or aircraft, it is presumed, until the contrary is proved, that the drug or psychoactive substance has been imported in that ship or aircraft with the knowledge of the master or the captain thereof.

[Act 12 of 2023 wef 01/06/2024]

Presumption relating to vehicle

21. If any controlled drug or psychoactive substance is found in any vehicle, it is presumed, until the contrary is proved, to be in the possession of the owner of the vehicle and of the person in charge of the vehicle for the time being.

[Act 12 of 2023 wef 01/06/2024]

Presumption relating to urine test

22. If any controlled drug or psychoactive substance is found in the urine of a person as a result of both urine tests conducted under section 31(4)(b), he or she is presumed, until the contrary is proved, to have consumed that controlled drug or psychoactive substance in contravention of section 8(b) or 11I(1)(b), as the case may be.

[Act 12 of 2023 wef 01/06/2024]

Proof of psychoactive substance

22A. In any proceedings for an offence under section 11F(1), 11G(1), 11H(1), 11I(1)(a) or (b), 11K(1), 11L(1), 11M(1), 11N(1) or (2), 11O(1), 11P(1) or (2) or 11Q(1)

(a) for the purpose of proving that a substance or product is a psychoactive substance —

(i) it is sufficient for the prosecution to prove that the substance or product has the capacity to have a psychoactive effect on an

individual if the individual smokes, administers to himself or herself or otherwise consumes, the substance or product; and

- (ii) it is not necessary for the prosecution to prove that the substance or product is not an excluded substance; and
- (b) a person who asserts that the psychoactive substance mentioned in paragraph (a) is an excluded substance, bears the burden of proving that assertion on a balance of probabilities.

[Act 12 of 2023 wef 01/06/2024]

Knowledge of psychoactive substance

22B. Where knowledge that a substance is a psychoactive substance is a fault element of an offence in this Act, that fault element is established if the person alleged to have committed the offence —

- (a) knows that the psychoactive substance has the capacity to have a psychoactive effect on an individual if the individual smokes, administers to himself or herself or otherwise consumes, the substance or product; and
- (b) did not believe or had no reason to believe that the psychoactive substance is an excluded substance,

whether or not that person knows the name or chemical composition of the psychoactive substance.

[Act 12 of 2023 wef 01/06/2024]

Protection of informers

23.—(1) Except as provided in subsection (3) —

- (a) no information for an offence under this Act is to be admitted in evidence in any civil or criminal proceedings; and
- (b) no witness in any civil or criminal proceedings is obliged —
 - (i) to disclose the name and address of any informer who has given information with respect to an offence under this Act; or
 - (ii) to answer any question if the answer would lead, or would tend to lead, to the discovery of the name or address of the informer.

(2) If any book, document or paper which is in evidence or liable to inspection in any civil or criminal proceedings contains any entry in which any informer is named or described or which may lead to his or her discovery, the court must cause those entries to

be concealed from view or to be obliterated so far as may be necessary to protect the informer from discovery.

(3) If —

- (a) in any proceedings before a court for an offence under this Act, the court, after full inquiry into the case, is satisfied that an informer wilfully made a material statement which he or she knew or believed to be false or did not believe to be true; or
- (b) in any other proceedings, the court is of the opinion that justice cannot be fully done between the parties to the proceedings without the disclosure of the name of an informer,

the court may permit inquiry and require full disclosure concerning the informer.

Powers of search and seizure

24.—(1) Any officer of the Bureau, police officer, special police officer or senior officer of customs may at any time —

- (a) without a warrant enter and search any place or premises in which he or she reasonably suspects that there is to be found —
 - (i) any controlled drug, controlled substance, psychoactive substance or article liable to seizure;
[Act 12 of 2023 wef 01/06/2024]
 - (ia) any vehicle, autonomous vehicle, unmanned aircraft, unmanned vessel, component of the autonomous system of an autonomous vehicle or unmanned vessel, or component of an unmanned aircraft system, which is or has been used in the commission of or in connection with an offence under this Act; or
 - (ii) a person who has committed or is reasonably suspected to have committed any offence under this Act or any arrestable offence under the regulations;
[Act 12 of 2023 wef 01/06/2023]
- (b) search any person found in that place or premises; and
- (c) seize and detain all of the following which is found in that place or premises:
 - (i) any drug or substance that the officer reasonably suspects is a controlled drug, controlled substance, or psychoactive

substance;

[Act 12 of 2023 wef 01/06/2024]

- (ii) any article that the officer reasonably suspects is an article liable to seizure;

[Act 12 of 2023 wef 01/06/2023]

- (iii) any vehicle, autonomous vehicle, unmanned aircraft, unmanned vessel, component of the autonomous system of an autonomous vehicle or unmanned vessel, or component of an unmanned aircraft system, that the officer reasonably suspects is, has been or is intended to be, used in the commission of or in connection with an offence under this Act.

[30/2012; 1/2019]

[Act 12 of 2023 wef 01/06/2023]

(2) For the purpose of exercising his or her power under this section, an officer may, with such assistance as he or she considers necessary, break open any door, window, lock, fastener, floor, wall, ceiling, compartment, box, container or any other thing.

- (3) *[Deleted by Act 12 of 2023 wef 01/06/2024]*

[30/2012]

Powers of arrest

25.—(1) Any officer of the Bureau, police officer, special police officer or officer of customs may arrest and search without a warrant any person who has committed or whom he or she reasonably suspects to have committed an offence under this Act or an arrestable offence under the regulations.

[1/2019]

[Act 12 of 2023 wef 01/06/2023]

(2) Any person arrested under subsection (1), together with any drug, substance or article that the officer making the arrest reasonably suspects is a controlled drug, controlled substance, psychoactive substance or article liable to seizure, must be taken to the Central Narcotics Bureau, a police station or a customs station and may be searched.

[Act 12 of 2023 wef 01/06/2023]

[Act 12 of 2023 wef 01/06/2024]

- (3) A woman must not be searched under this Act except by another woman.

(4) An officer making an arrest under this section may seize and detain any drug, substance or article that the officer reasonably suspects is a controlled drug, controlled substance, psychoactive substance or article liable to seizure.

[Act 12 of 2023 wef 01/06/2023]

[Act 12 of 2023 wef 01/06/2024]

Bail and bond

25A.—(1) A person who has been arrested by an officer of the Bureau, police officer, special police officer or officer of customs under section 25(1) may be released on bail or on personal bond granted by any officer of the Bureau.

(2) Division 5 (Bails and bonds) of Part 6 of the Criminal Procedure Code 2010 applies to the release of a person on bail or on personal bond under this section or section 92 or 93 of the Criminal Procedure Code 2010 (as the case may be) with the following modifications:

- (a) any reference to “officer”, “police officer” or “police officer of or above the rank of sergeant” is to be read to include an officer of the Bureau;
- (b) the reference to the Commissioner of Police in section 92(1) of the Criminal Procedure Code 2010 is to be read to include the Director.

[Act 16 of 2024 wef 18/11/2024]

Power to search ship, hovercraft, etc., and person arriving in or departing from Singapore

26.—(1) Any officer of the Bureau, police officer, special police officer or officer of customs may —

- (a) stop, board and search any ship, hovercraft, aircraft, vehicle or train if he or she has reason to suspect that there is therein any controlled drug in contravention of this Act, controlled substance, psychoactive substance or any article liable to seizure;
- (b) search any person in that ship, hovercraft, aircraft, vehicle or train;
- (ba) intercept and search any autonomous vehicle, unmanned aircraft or unmanned vessel if he or she has reason to suspect that there is in any such vehicle, aircraft or vessel —
 - (i) any controlled drug or controlled substance;
 - (ii) any psychoactive substance; or
 - (iii) *[Deleted by Act 12 of 2023 wef 01/06/2024]*
 - (iv) any article liable to seizure; and
- (c) search any person arriving in Singapore or about to depart from Singapore.

[30/2012; 1/2019]

(2) An officer may seize and detain —

- (a) any drug, substance or article that the officer reasonably suspects is a controlled drug, controlled substance, psychoactive substance or article liable to seizure as a result of any search under this section; and

[Act 12 of 2023 wef 01/06/2023]

[Act 12 of 2023 wef 01/06/2024]

- (b) any ship, hovercraft, aircraft, autonomous vehicle, unmanned aircraft, unmanned vessel, component of the autonomous system of an autonomous vehicle or unmanned vessel, or component of an unmanned aircraft system, vehicle or train that the officer reasonably suspects has been or is intended to be used in the commission of or in connection with an offence under this Act.

[30/2012; 1/2019]

[Act 12 of 2023 wef 01/06/2023]

(2A) An officer may —

- (a) in relation to any autonomous vehicle, unmanned aircraft or unmanned vessel that is to be intercepted and searched under subsection (1)(ba), direct any person whom the officer reasonably believes to be involved in operating the autonomous vehicle, unmanned aircraft or unmanned vessel —

- (i) to end the flight of the unmanned aircraft, or land it, safely in the fastest practicable way;
- (ii) to stop the autonomous vehicle or unmanned vessel safely in the fastest practicable way; or
- (iii) to fly the unmanned aircraft or to operate the autonomous vehicle or unmanned vessel in the manner specified by the officer;

- (b) in relation to any autonomous vehicle, unmanned aircraft or unmanned vessel that is to be intercepted and searched under subsection (1)(ba), without warrant and with such assistance and by such force as is necessary —

- (i) assume control of the unmanned aircraft to fly the aircraft, or to end the flight of the aircraft, or land it, safely in the fastest practicable way;
- (ii) assume control of the autonomous vehicle or unmanned vessel to steer the vehicle or vessel, or to stop the vehicle or vessel (as

the case may be) safely in the fastest practicable way;

(iii) end the flight of the unmanned aircraft, or land it, in the fastest and safest practicable way; or

(iv) stop the autonomous vehicle or unmanned vessel in the fastest and safest practicable way; or

(c) direct any person to operate any ship, hovercraft, aircraft, autonomous vehicle, unmanned aircraft, unmanned vessel, vehicle or train seized and detained under subsection (2)(b), in such manner as the officer determines.

[1/2019]

(3) *[Deleted by Act 12 of 2023 wef 01/06/2024]*

[30/2012; 1/2019]

Procedure when person entitled to seized item is known, unknown or cannot be found

26A.—(1) Subject to subsections (2) to (11), if a relevant officer determines that any seized item is not required for the purposes of any investigation or proceedings for any offence under this Act, the relevant officer may return the seized item to the owner of the seized item, or any person authorised by the owner.

[1/2019]

(2) If the owner of any seized item is known, a relevant officer must notify the owner to claim the seized item, and such notification may be given —

(a) by posting a written notice to the owner of the seized item at the owner's usual or last known place of residence or business in Singapore; or

(b) in such other manner as the relevant officer thinks expedient.

[1/2019]

(3) If the owner or the person authorised by the owner does not claim the seized item within one month after the notification is given under subsection (2), any relevant officer may cause to be sold, or otherwise dispose of, the seized item but only after giving one month's notice in the *Gazette* of the relevant officer's intention to do so.

[1/2019]

(4) Despite subsection (3), if the value of the seized item is, in the opinion of the Director, less than \$500, any relevant officer may cause the seized item to be sold or disposed of at any time.

[1/2019]

(5) If the owner or the person authorised by the owner claims the seized item after it

is sold under subsection (3) or (4), the owner is only entitled to the net proceeds.

[1/2019]

(6) If the owner of a seized item is unknown or cannot be found, a relevant officer must issue a public notice, specifying the seized item and requiring any person who has a claim to it to appear before the relevant officer and establish the person's claim within 6 months after the date of the public notice.

[1/2019]

(7) Every public notice under subsection (6) must be published in the *Gazette* or any daily newspaper but only if, in the opinion of the Director, the value of the seized item is at least \$1,000.

[1/2019]

(8) If no person establishes a claim to the seized item within one month after the publication of a public notice issued under subsection (6), and if the person in whose possession the seized item was found cannot show he or she had legally acquired it, then the seized item may be sold on the order of a relevant officer.

[1/2019]

(9) Despite subsection (8), if the value of the seized item is, in the opinion of the Director, less than \$1,000, or if keeping the seized item involves unreasonable expense or inconvenience, a relevant officer may cause the seized item to be sold or disposed of at any time.

[1/2019]

(10) If no person has established a claim to the seized item within 6 months after the publication of the public notice mentioned in subsection (6), the ownership of the seized item or (if sold) its net proceeds is to pass and be vested in the Government absolutely.

[1/2019]

(11) If a person establishes the person's claim to the seized item within 6 months after the publication of the public notice mentioned in subsection (6), and the seized item has already been sold by a relevant officer, that person is only entitled to the net proceeds.

[1/2019]

(12) This section applies in relation to any ship, hovercraft, aircraft, vehicle or train even though it was seized before 1 August 2019.

[1/2019]

(13) In this section —

“relevant officer” means any Deputy Director of the Central Narcotics Bureau appointed under section 3(1) or any person authorised by the Deputy Director;

“seized item” means any ship, hovercraft, aircraft, autonomous vehicle, unmanned aircraft, unmanned vessel, component of the autonomous system of an autonomous vehicle or unmanned vessel, or component of an unmanned

aircraft system, vehicle or train that is seized under section 24 or 26.

[1/2019]

Forfeiture of controlled drugs, controlled substances, psychoactive substances and articles seized

27.—(1) Subject to subsection (2), where anything is seized under this Act and the owner of that thing is known, the officer who carried out the seizure must notify the owner of the thing, and the notice may be given —

- (a) by delivering a written notice to the owner personally;
- (b) by posting a written notice to the owner's place of residence; or
- (c) in any other manner that the officer thinks expedient.

[Act 12 of 2023 wef 01/06/2023]

(2) The notice under subsection (1) is not required to be given where the seizure is made in the presence of the offender or the owner or his or her agent, or in the case of a ship or an aircraft, in the presence of the master or captain thereof.

(3) An order for the forfeiture of any controlled drug, controlled substance, psychoactive substance or article is to be made if it is proved to the satisfaction of a court that an offence under this Act has been committed and that such drug, substance or article was the subject matter of or was used in the commission of the offence even though no person may have been convicted of that offence.

[Act 12 of 2023 wef 01/06/2024]

(4) If there is no prosecution with regard to any controlled drug, controlled substance, psychoactive substance or article seized under this Act, that drug, substance or article is deemed to be forfeited to the Government on the expiry of one month from the date of the seizure thereof unless a claim thereto has been made before that date in such manner as may be prescribed.

[1/2019]

[Act 12 of 2023 wef 01/06/2024]

(5) *[Deleted by Act 12 of 2023 wef 01/06/2024]*

[30/2012; 1/2019]

[Act 12 of 2023 wef 01/06/2024]

Forfeiture of ship, hovercraft, etc.

28.—(1) Where a person has been convicted of an offence under this Act, the court may order to be forfeited to the Government any ship, hovercraft, aircraft, unmanned aircraft, unmanned vessel, component of the autonomous system of an unmanned vessel, or component of an unmanned aircraft system which has been proved to have been used

in any manner in connection with the offence.

[1/2019]

(2) Where a person has been convicted of an offence under this Act, the court is to, upon the application of the Public Prosecutor, order to be forfeited to the Government any vehicle, autonomous vehicle, or component of the autonomous system of the autonomous vehicle which has been proved to have been used in any manner in connection with the offence.

[1/2019]

(3) This section does not apply to any ship, hovercraft or unmanned vessel of more than 200 tons net or to any aircraft or unmanned aircraft belonging to any person carrying on a regular passenger service to and from Singapore by means of that aircraft.

[1/2019]

(4) Any ship, hovercraft, aircraft, vehicle, autonomous vehicle, unmanned aircraft, unmanned vessel, component of the autonomous system of an autonomous vehicle or unmanned vessel, or component of an unmanned aircraft system, must not be forfeited under this section if its owner establishes that the ship, hovercraft, aircraft, vehicle, autonomous vehicle, unmanned aircraft or unmanned vessel was unlawfully in the possession of another person without the owner's consent.

[1/2019]

Disposal of things forfeited

29.—(1) All things which are forfeited to the Government under this Act are to be disposed of in such manner as the Minister thinks fit.

(2) The Minister may, in his or her discretion and after any proceedings under this Act are concluded, entertain and give effect to any claim to or in respect of anything which has been forfeited to the Government.

Obstruction of inspection or search

30.—(1) It shall be an offence for a person to —

- (a) obstruct any officer of the Bureau, police officer, officer of customs or other public officer in the exercise of any power under this Act;
- (b) fail to comply with any lawful requirement of any officer of the Bureau, police officer, officer of customs or other public officer in the execution of his or her duty under this Act;
- (c) without reasonable excuse, fail to furnish such information in his or her possession as may be required by any officer of the Bureau, police officer, officer of customs or other public officer; or

- (d) furnish to any officer of the Bureau, police officer, officer of customs or other public officer any information which the person knows or has reason to believe to be false.

(2) In subsection (1), “public officer” includes any special police officer exercising any power under section 24, 25 or 26.

[1/2019]
[Act 12 of 2023 wef 01/06/2023]

Urine tests

31.—(1) Any officer of the Bureau, immigration officer or police officer not below the rank of sergeant may, if he or she reasonably suspects any person to have committed an offence under section 8(b) or 11I(1)(b), require that person to provide a specimen of the person’s urine for urine tests to be conducted under this section.

[Act 12 of 2023 wef 01/06/2024]

(1A) The Director may, for the purpose of ensuring that a relevant person is no longer a drug addict, after the relevant time, order the relevant person —

- (a) to present himself or herself to any officer of the Bureau, immigration officer or police officer not below the rank of sergeant; and
- (b) to provide a specimen of the relevant person’s urine for urine tests to be conducted under this section as required by such officer.

[1/2019]

(1B) Any serviceman in the Singapore Armed Forces who is appointed by the Minister as an enforcement officer may, if the enforcement officer reasonably suspects a person subject to military law under section 3 of the Singapore Armed Forces Act 1972 to have committed an offence under section 8(b) or 11I(1)(b), require that person to provide a specimen of that person’s urine for urine tests to be conducted under this section.

[1/2019]
[Act 12 of 2023 wef 01/06/2024]

(2) A person who, without reasonable excuse, fails to provide a specimen of his or her urine within such time as may be required by any of the officers referred to in subsection (1), (1A) or (1B) shall be guilty of an offence.

[1/2019]

(2A) A person who, without reasonable excuse, fails to comply with an order under subsection (1A) shall be guilty of an offence.

[1/2019]

(3) Any person (other than a citizen of Singapore or a permanent resident of Singapore) arriving in Singapore by land, sea or air who —

- (a) fails to comply with the requirement of an immigration officer under this section; or
- (b) is found as a result of urine tests conducted under subsection (4)(a) or (b) to have consumed a controlled drug or psychoactive substance,

may be prohibited from entering or remaining in Singapore.

[Act 12 of 2023 wef 01/06/2024]

(4) A specimen of urine provided under this section must be divided into 3 parts and dealt with, in such manner and in accordance with such procedure as may be prescribed, as follows:

- (a) a preliminary urine test must be conducted on one part of the urine specimen; and
- (b) each of the remaining 2 parts of the urine specimen must be marked and sealed and a urine test must be conducted on each part by a different person, being either an analyst employed by the Health Sciences Authority or any person as the Minister may appoint for such purpose.

[Act 5 of 2025 wef 09/03/2025]

(5) Despite subsection (4), where upon conducting any preliminary urine test under subsection (4)(a), a part of a urine specimen has tested negative for controlled drugs and psychoactive substances, any of the officers referred to in subsection (1), (1A) or (1B) may either discard the remaining 2 parts of the same urine specimen or proceed in accordance with subsection (4)(b).

[30/2012; 1/2019]

[Act 12 of 2023 wef 01/06/2024]

(6) A certificate stating the result of a urine test must be signed by an analyst employed by the Health Sciences Authority or any other person that the Minister appoints for such purpose.

[30/2012]

[Act 5 of 2025 wef 09/03/2025]

(6A) An appointment under subsection (4)(b) or (6) must be published in the *Gazette*.

[Act 5 of 2025 wef 09/03/2025]

(7) The certificate stating the result of a urine test may be signed by an analyst or person appointed under subsection (6) even though he or she did not personally conduct the test to analyse the urine specimen as long as the test was conducted by another person acting under his or her direction.

[30/2012]

(8) In this section, a specimen of urine may be collected from a person on different occasions within the time referred to in subsection (2).

(9) In this section and section 31A —

“relevant person” means —

- (a) any person discharged from an approved institution;
- (b) any person convicted of an offence, whether before, on or after the date of commencement of section 21(1)(d) of the Misuse of Drugs (Amendment) Act 2023, under —
 - (i) subsection (2);
 - (ii) section 8(b), 11I(1)(b) or 31A(2);
[Act 12 of 2023 wef 01/06/2024]
 - (iii) section 26 of the Singapore Armed Forces Act 1972 involving the consumption of a controlled drug or psychoactive substance; or
[Act 12 of 2023 wef 01/06/2024]
 - (iv) section 34 of the Singapore Armed Forces Act 1972 for the consumption of a controlled drug or psychoactive substance;
[Act 12 of 2023 wef 01/06/2023]
[Act 12 of 2023 wef 01/06/2024]
- (c) any person subject to a supervision order made under section 34(2)(a) whose supervision order has lapsed; or
- (d) any person who —
 - (i) after having undergone treatment and rehabilitation at approved or other institutions; or
 - (ii) after having been convicted of an offence under subsection (2) or section 8(b), 11I(1)(b) or 31A(2) or an offence under section 34 of the Singapore Armed Forces Act 1972 for the consumption of a controlled drug or psychoactive substance,has been subject to a supervision order made pursuant to the regulations, and the supervision order has lapsed;
[Act 12 of 2023 wef 01/06/2023]
[Act 12 of 2023 wef 01/06/2024]

“relevant time” means —

- (a) in relation to a person mentioned in paragraph (a) of the definition of

“relevant person”, the time the person is discharged from the approved institution;

(b) in relation to a person mentioned in paragraph (b) of the definition of “relevant person”, the time the person is convicted of the offence under —

(i) subsection (2);

(ii) section 8(b), 11I(1)(b) or 31A(2);

[Act 12 of 2023 wef 01/06/2024]

(iii) section 26 of the Singapore Armed Forces Act 1972 involving the consumption of a controlled drug or psychoactive substance; or

[Act 12 of 2023 wef 01/06/2024]

(iv) section 34 of the Singapore Armed Forces Act 1972 for the consumption of a controlled drug or psychoactive substance;

[Act 12 of 2023 wef 01/06/2023]

[Act 12 of 2023 wef 01/06/2024]

(c) in relation to a person mentioned in paragraph (c) of the definition of “relevant person”, the time the supervision order lapses; or

(d) in relation to a person mentioned in paragraph (d) of the definition of “relevant person”, the time the supervision order lapses.

[1/2019]

Hair tests

31A.—(1) Any officer of the Bureau, immigration officer or police officer not below the rank of sergeant may, if he or she reasonably suspects any person to have committed an offence under section 8(b) or 11I(1)(b), require that person to provide specimens of the person’s hair for a hair test to be conducted under this section.

[30/2012]

[Act 12 of 2023 wef 01/06/2024]

(1A) The Director may, for the purpose of ensuring that a relevant person is no longer a drug addict, after the relevant time, order the relevant person —

(a) to present himself or herself to any officer of the Bureau, immigration officer or police officer not below the rank of sergeant; and

(b) to provide specimens of the relevant person’s hair for a hair test to be conducted under this section as required by such officer.

[1/2019]

(2) A person who, without reasonable excuse, fails to provide specimens of his or her hair of such type and quantity as may be required by any of the officers referred to in subsection (1) or (1A) shall be guilty of an offence.

[30/2012; 1/2019]

(2A) A person who, without reasonable excuse, fails to comply with an order under subsection (1A) shall be guilty of an offence.

[1/2019]

(3) All specimens of hair provided under this section must be marked and sealed for hair testing in accordance with the prescribed procedure.

[30/2012]

(4) A certificate stating the result of a hair test must be signed by an analyst employed by the Health Sciences Authority or any other person that the Minister appoints for such purpose.

[30/2012]

[Act 5 of 2025 wef 09/03/2025]

(4A) An appointment under subsection (4) must be published in the *Gazette*.

[Act 5 of 2025 wef 09/03/2025]

(5) The certificate stating the result of a hair test may be signed by an analyst or person appointed under subsection (4) even though he or she did not personally conduct the test to analyse the specimens of hair as long as the test was conducted by another person acting under his or her direction.

[30/2012]

Oral fluid tests

31B.—(1) Any officer of the Bureau, immigration officer or police officer not below the rank of sergeant may, if the officer reasonably suspects any person to have committed an offence under section 8(b) or 11I(1)(b), require that person to provide one or more specimens of the person's oral fluid for the purpose of conducting any oral fluid test.

[1/2019]

[Act 12 of 2023 wef 01/06/2024]

(2) A person who, without reasonable excuse, fails to provide any specimen of the person's oral fluid as required under subsection (1) shall be guilty of an offence.

[1/2019]

(3) In this section —

“oral fluid test” means a test carried out by an oral fluid testing device for the purpose of ascertaining whether any controlled drug or psychoactive substance

is present in the person's oral fluid;

[Act 12 of 2023 wef 01/06/2024]

“oral fluid testing device” means any device that is designed to indicate the presence of any controlled drug or psychoactive substance in the person's oral fluid.

[1/2019]

[Act 12 of 2023 wef 01/06/2024]

Power of investigation of officers of Bureau

32.—(1) In any case relating to the commission of an offence under this Act, an officer of the Bureau has all the powers of a police officer under the Criminal Procedure Code 2010 in relation to an investigation into an arrestable offence.

[Act 12 of 2023 wef 01/06/2023]

(1A) *[Deleted by Act 12 of 2023 wef 01/06/2024]*

(2) In any case relating to the commission of an offence under the regulations —

(a) where the offence is an arrestable offence, an officer of the Bureau has all the powers of a police officer under the Criminal Procedure Code 2010 in relation to an investigation into an arrestable offence; and

[Act 12 of 2023 wef 01/06/2023]

(b) where the offence is a non-arrestable offence, an officer of the Bureau has all the powers of a police officer under the Criminal Procedure Code 2010 in relation to an investigation into a non-arrestable offence.

[Act 12 of 2023 wef 01/06/2023]

(3) For the purposes of subsections (1) and (2)(a), when an officer of the Bureau is exercising the powers of a police officer under the Criminal Procedure Code 2010, the officer of the Bureau is deemed to be an officer not below the rank of inspector of police.

[15/2010]

Officer of Bureau to be armed

32A. Every officer of the Bureau is to be provided with such staves, arms, ammunition and other accoutrements as may be necessary for the effective discharge of his or her duties.

Punishment for offences

33.—(1) Except as provided in subsection (3B), (4A), (4B) or (4C) or under section 33A, the Second Schedule has effect, in accordance with subsections (2) and (3), with respect to the way in which offences under this Act are punishable on conviction.

[30/2012; 1/2019]

[Act 12 of 2023 wef 01/06/2023]

(2) In relation to an offence under any provision of this Act specified in the first column of the Second Schedule (the general nature of the offence being described in the second column thereof) —

- (a) the third, fourth and fifth columns show, respectively, the punishments to be imposed on a person convicted of the offence according to whether the controlled drug in relation to which the offence was committed was a Class A drug, a Class B drug or a Class C drug, except as otherwise provided in paragraph (b);
- (b) the sixth column shows the punishments to be imposed on a person convicted of the offence where the offence was committed —
 - (i) in the case of unauthorised manufacture, in relation to such specified controlled drug as is mentioned in the second column; and
 - (ii) in the case of unauthorised traffic, import or export or possession, in relation to a specified quantity of such controlled drug or to a controlled drug (except opium) containing such quantity of morphine or diamorphine as is mentioned in the second column; and

[Act 12 of 2023 wef 01/06/2023]

- (c) the seventh column shows the punishments to be imposed on a person convicted of the offence whether or not the offence was committed in relation to a controlled drug and, if it was so committed, irrespective of the nature of the drug.

(3) In the third, fourth, fifth, sixth and seventh columns of the Second Schedule, a reference to a period gives the maximum or minimum term of imprisonment as is specified, a reference to a sum of money gives the maximum or minimum fine as is specified, and a reference to a number of strokes gives the number of strokes of caning with which the offender shall, subject to sections 325(1) and 330(1) of the Criminal Procedure Code 2010, be punished.

[15/2010]

(3A) Any person convicted of an offence under section 8(b), 31(2) or 31A(2) that is committed on or after 1 April 2019 shall on conviction be punished with imprisonment for a term of not less than one year but not more than 10 years and shall also be liable to a fine not exceeding \$20,000, unless the person is punished under subsection (4), (4AA) or (4AB) or section 33A (as the case may be) for that same offence.

[1/2019]

(3B) If a person —

- (a) has a previous conviction under section 8(a) or 11I(1)(a); and
[Act 12 of 2023 wef 01/06/2024]
- (b) is convicted of an offence under section 8(a) that the sixth column of the Second Schedule specifies is subject to this subsection,

that person shall on conviction be punished with imprisonment for a term of not less than 2 years and not more than 10 years and shall also be liable to a fine not exceeding \$20,000.

[Act 12 of 2023 wef 01/06/2023]

(3C) Any person convicted of an offence under section 11I(1)(b) shall be liable on conviction to a fine not exceeding \$20,000 or to imprisonment for a term not exceeding 10 years or to both, unless the person is punished under subsection (3D) for that same offence.

[Act 12 of 2023 wef 01/06/2024]

(3D) If a person —

- (a) has —
 - (i) a previous conviction under section 8(b), 11I(1)(b), 31(2) or 31A(2);
 - (ii) a previous admission under section 34(2) to an approved institution; or
 - (iii) a previous conviction for an offence of consumption of a controlled drug or psychoactive substance under section 34 of the Singapore Armed Forces Act 1972; and
- (b) is convicted of an offence under section 11I(1)(b),

that person shall on conviction be punished with imprisonment for a term of not less than 3 years and not more than 10 years.

[Act 12 of 2023 wef 01/06/2024]

(4) If any person who has a previous conviction under section 8(b) or 31(2) is again convicted of an offence under section 8(b) or 31(2), he or she shall on conviction be punished with imprisonment for a term of not less than 3 years unless he or she is punished under section 33A for that same offence.

[1/2019]

(4AA) If a person —

- (a) has —

- (i) a previous conviction under section 11I(1)(b) or 31A(2);
[Act 12 of 2023 wef 01/06/2024]
- (ii) a previous admission under section 34(2) to an approved institution; or
- (iii) a previous conviction for an offence of consumption of a controlled drug or psychoactive substance under section 34 of the Singapore Armed Forces Act 1972; and
[Act 12 of 2023 wef 01/06/2023]
[Act 12 of 2023 wef 01/06/2024]

(b) is convicted of an offence under section 8(b) or 31(2), being an offence which is committed on or after 1 April 2019,

he or she shall on conviction be punished with imprisonment for a term of not less than 3 years unless he or she is punished under section 33A for that same offence.

[1/2019]

(4AB) If a person —

- (a) has —
 - (i) a previous conviction under section 8(b), 11I(1)(b), 31(2) or 31A(2);
[Act 12 of 2023 wef 01/06/2024]
 - (ii) a previous admission under section 34(2) to an approved institution; or
 - (iii) a previous conviction for an offence of consumption of a controlled drug or psychoactive substance under section 34 of the Singapore Armed Forces Act 1972; and
[Act 12 of 2023 wef 01/06/2023]
[Act 12 of 2023 wef 01/06/2024]

(b) is convicted of an offence under section 31A(2), being an offence which is committed on or after 1 April 2019,

he or she shall on conviction be punished with imprisonment for a term of not less than 3 years unless he or she is punished under section 33A for that same offence.

[1/2019]

(4AC) A certificate purporting to be signed by an officer authorised by the Commissioner of Prisons and purporting to relate to a person's previous admission to an approved institution under this Act is admissible in evidence in any proceedings under

this section, on its production by the prosecution without proof of signature.

[\[1/2019\]](#)

(4AD) A certificate —

- (a) purporting to be signed by the registrar for the subordinate military courts, or the registrar for the Military Court of Appeal, appointed under section 82(5)(c) of the Singapore Armed Forces Act 1972; and
- (b) purporting to relate to a person's previous conviction for an offence of consumption of a controlled drug or psychoactive substance under section 34 of the Singapore Armed Forces Act 1972,

[\[Act 12 of 2023 wef 01/06/2023\]](#)

[\[Act 12 of 2023 wef 01/06/2024\]](#)

is admissible in evidence, in any proceedings under this section, on its production by the prosecution without proof of signature.

[\[1/2019\]](#)

(4AE) The certificate mentioned in subsection (4AC) or (4AD) is, until the contrary is proved, evidence of the matters contained in it.

[\[1/2019\]](#)

(4A) Where —

- (a) any person is convicted of an offence under section 5(1), 7, 11F(1) or 11H(1); and

[\[Act 12 of 2023 wef 01/06/2024\]](#)

- (b) that person is again convicted of an offence under section 5(1) or 7,

that person so convicted shall be punished with —

- (c) in relation to a Class A drug —

- (i) imprisonment for a term of not less than 10 years and not more than 30 years; and
- (ii) not less than 10 strokes and not more than 15 strokes of the cane;

- (d) in relation to a Class B drug —

- (i) imprisonment for a term of not less than 6 years and not more than 30 years; and
- (ii) not less than 6 strokes and not more than 15 strokes of the cane; and

(e) in relation to a Class C drug —

- (i) imprisonment for a term of not less than 4 years and not more than 20 years; and
- (ii) not less than 4 strokes and not more than 15 strokes of the cane.

[\[30/2012\]](#)

(4B) If a person 21 years of age or older is convicted of an offence under section 5(1) or 7 and the intended recipient of the controlled drug which is, or is to be, trafficked is a young person or a vulnerable person, that person so convicted shall be punished with —

(a) in relation to a Class A drug —

- (i) imprisonment for a term of not less than 10 years and not more than 30 years; and
- (ii) not less than 10 strokes and not more than 15 strokes of the cane;

(b) in relation to a Class B drug —

- (i) imprisonment for a term of not less than 6 years and not more than 30 years; and
- (ii) not less than 6 strokes and not more than 15 strokes of the cane; and

(c) in relation to a Class C drug —

- (i) imprisonment for a term of not less than 4 years and not more than 20 years; and
- (ii) not less than 4 strokes and not more than 15 strokes of the cane.

[\[30/2012\]](#)

(4C) If a person 21 years of age or older is convicted of an offence under section 11A and the gathering consists of any young person or vulnerable person, that person so convicted shall be punished with —

- (a) imprisonment for a term of not less than 5 years and not more than 20 years; and
- (b) not less than 3 strokes and not more than 10 strokes of the cane.

[\[30/2012\]](#)

(4D) The punishment provided under subsection (4A) or (4B) in relation to an

offence applies only if the punishment as shown in the sixth column of the Second Schedule is not applicable in relation to that offence.

[30/2012]

(5) For the purposes of this section —

(aa) a previous conviction under section 8(a) means a conviction under section 8(a) at any time before, on or after the date of commencement of section 25(1)(c) of the Misuse of Drugs (Amendment) Act 2023;

[Act 12 of 2023 wef 01/06/2023]

(a) a conviction under section 8(b) by a court including a subordinate military court or the Military Court of Appeal constituted under the Singapore Armed Forces Act 1972 at any time on or after 1 October 1992 is deemed to be a previous conviction under section 8(b);

(b) a conviction under section 31(2) by a court including a subordinate military court or the Military Court of Appeal constituted under the Singapore Armed Forces Act 1972 at any time on or after 1 October 1992 is deemed to be a previous conviction under section 31(2);

(c) a conviction under section 31A(2) by a court including a subordinate military court or the Military Court of Appeal constituted under the Singapore Armed Forces Act 1972 at any time on or after 1 May 2013 is deemed to be a previous conviction under section 31A(2);

(d) a conviction under section 34 of the Singapore Armed Forces Act 1972 on or after 1 April 2019 is deemed to be a previous conviction under section 34 of the Singapore Armed Forces Act 1972;

(e) “admission” means an admission under section 34(2) to an approved institution at any time on or after 1 October 1992; and

(f) “convicted of an offence”, in relation to an offence under section 8(b), 31(2) or 31A(2), includes a conviction by a subordinate military court or the Military Court of Appeal constituted under the Singapore Armed Forces Act 1972.

[1/2019]

Punishment for repeat consumption of specified drugs

33A.—(1) Where a person who has not less than —

(a) 2 previous admissions;

(b) 2 previous convictions for consumption of a specified drug under section 8(b);

- (c) 2 previous convictions for an offence of failure to provide a urine specimen under section 31(2);
- (d) one previous admission and one previous conviction for consumption of a specified drug under section 8(b);
- (e) one previous admission and one previous conviction for an offence of failure to provide a urine specimen under section 31(2); or
- (f) one previous conviction for consumption of a specified drug under section 8(b) and one previous conviction for an offence of failure to provide a urine specimen under section 31(2),

is convicted of an offence under section 8(b) for consumption of a specified drug or an offence of failure to provide a urine specimen under section 31(2), the person shall on conviction be punished with —

- (g) imprisonment for a term of not less than 5 years and not more than 7 years; and
- (h) not less than 3 strokes and not more than 6 strokes of the cane.

(1A) Where a person who has not less than —

- (a) 2 previous admissions;
- (b) 2 previous convictions for consumption of a specified drug under section 8(b);
- (c) 2 previous convictions for an offence of failure to provide a urine specimen under section 31(2);
- (d) one previous admission and one previous conviction for consumption of a specified drug under section 8(b);
- (e) one previous admission and one previous conviction for an offence of failure to provide a urine specimen under section 31(2); or
- (f) one previous conviction for consumption of a specified drug under section 8(b) and one previous conviction for an offence of failure to provide a urine specimen under section 31(2),

is convicted of an offence under section 31A(2) for failure to provide a hair specimen, being an offence that is committed on or after 1 April 2019, the person shall on conviction be punished with the same punishment mentioned in subsection (1).

[\[1/2019\]](#)

(1B) Where a person who has not less than —

- (a) 2 previous convictions for an offence of consumption of a controlled drug that is a specified drug under section 34 of the Singapore Armed Forces Act 1972;
[Act 12 of 2023 wef 01/06/2023]
- (b) one previous admission and one previous conviction for an offence of consumption of a controlled drug that is a specified drug under section 34 of the Singapore Armed Forces Act 1972;
[Act 12 of 2023 wef 01/06/2023]
- (c) one previous conviction for an offence of consumption of a controlled drug that is a specified drug under section 34 of the Singapore Armed Forces Act 1972 and one previous conviction for an offence of failure to provide a urine specimen under section 31(2);
[Act 12 of 2023 wef 01/06/2023]
- (d) 2 previous convictions for an offence of failure to provide a hair specimen under section 31A(2);
- (e) one previous admission and one previous conviction for an offence of failure to provide a hair specimen under section 31A(2);
- (f) one previous conviction for consumption of a specified drug under section 8(b) and one previous conviction for an offence of failure to provide a hair specimen under section 31A(2);
- (g) one previous conviction for consumption of a specified drug under section 8(b) and one previous conviction for an offence of consumption of a controlled drug that is a specified drug under section 34 of the Singapore Armed Forces Act 1972;
[Act 12 of 2023 wef 01/06/2023]
- (h) one previous conviction for an offence of consumption of a controlled drug that is a specified drug under section 34 of the Singapore Armed Forces Act 1972, and one previous conviction for an offence of failure to provide a hair specimen under section 31A(2); or
[Act 12 of 2023 wef 01/06/2023]
- (i) one previous conviction for an offence of failure to provide a urine specimen under section 31(2) and one previous conviction for an offence of failure to provide a hair specimen under section 31A(2),

is convicted of an offence of consumption of a specified drug under section 8(b), an offence of failure to provide a urine specimen under section 31(2), or an offence of failure to provide a hair specimen under section 31A(2), being an offence that is committed on or after 1 April 2019, the person shall on conviction be punished with the

same punishment mentioned in subsection (1).

[1/2019]

(2) Where a person who has been convicted under subsection (1), (1A) or (1B) is again convicted of an offence for consumption of a specified drug under section 8(b), an offence of failure to provide a urine specimen under section 31(2), or an offence of failure to provide a hair specimen under section 31A(2), the person shall on conviction be punished with —

- (a) imprisonment for a term of not less than 7 years and not more than 13 years; and
- (b) not less than 6 strokes and not more than 12 strokes of the cane.

[1/2019]

(3) A certificate purporting to be signed by an officer authorised in writing by the Commissioner of Prisons and purporting to relate to a person's previous admission to an approved institution under this Act is admissible in evidence in any proceedings under this section, on its production by the prosecution without proof of signature; and, until the contrary is proved, that certificate is evidence of all matters contained in it.

[1/2014]

(4) A certificate purporting to be signed by the Registrar for the subordinate military courts or for the Military Court of Appeal appointed under section 82(5) of the Singapore Armed Forces Act 1972 is admissible in evidence, in any proceedings under this section, on its production by the prosecution without proof of signature; and, until the contrary is proved, that certificate is evidence of a person's previous conviction by a subordinate military court or the Military Court of Appeal.

(5) For the purposes of this section —

- (a) a conviction under section 8(b) by a court including a subordinate military court or the Military Court of Appeal constituted under the Singapore Armed Forces Act 1972 at —
 - (i) any time on or after 1 October 1992 but before the relevant date for the consumption of a controlled drug which, on the date of any subsequent conviction, is specified in the Fourth Schedule; or
 - (ii) any time on or after the relevant date for the consumption of a specified drug,is deemed to be a previous conviction for consumption of a specified drug under section 8(b);

- (b) a conviction under section 31(2) by a court including a subordinate military

court or the Military Court of Appeal constituted under the Singapore Armed Forces Act 1972 at any time on or after 1 October 1992 is deemed to be a previous conviction for an offence of failure to provide a urine specimen under section 31(2);

(ba) a conviction under section 31A(2) by a court including a subordinate military court or the Military Court of Appeal constituted under the Singapore Armed Forces Act 1972 at any time on or after 1 May 2013 is deemed to be a previous conviction for an offence of failure to provide a hair specimen under section 31A(2);

(bb) a conviction under section 34 of the Singapore Armed Forces Act 1972 on or after 1 April 2019 for an offence of consumption of a controlled drug that is a specified drug is deemed to be a previous conviction for an offence of consumption of a controlled drug that is a specified drug under section 34 of the Singapore Armed Forces Act 1972;

[Act 12 of 2023 wef 01/06/2023]

(c) “admission” means an admission under section 34(2) to an approved institution at —

(i) any time on or after 1 October 1992 but before the relevant date for the consumption of a controlled drug which, on the date of any subsequent conviction, is specified in the Fourth Schedule; or

(ii) any time on or after the relevant date for the consumption of a specified drug;

(ca) “convicted of an offence”, in relation to an offence under section 8(b), 31(2) or 31A(2), includes a conviction by a subordinate military court or the Military Court of Appeal constituted under the Singapore Armed Forces Act 1972; and

(d) “relevant date” —

(i) in relation to a conviction or admission for consumption of diamorphine, morphine or opium, means 20 July 1998; and

(ii) in relation to a conviction or admission for consumption of any drug added to the Fourth Schedule after 20 July 1998, means the date on which the amendment to that Schedule for the inclusion of such drug commences.

[1/2019]

Discretion of court not to impose sentence of death in certain circumstances

33B.—(1) Where a person commits or attempts to commit an offence under section 5(1) or 7, being an offence punishable with death under the sixth column of the Second Schedule, and the person is convicted thereof, the court —

- (a) may, if the person satisfies the requirements of subsection (2), instead of imposing the death penalty, sentence the person to imprisonment for life and, if the person is sentenced to life imprisonment, the person shall also be sentenced to caning of not less than 15 strokes; or
- (b) shall, if the person satisfies the requirements of subsection (3), instead of imposing the death penalty, sentence the person to imprisonment for life.

[30/2012]

(2) The requirements referred to in subsection (1)(a) are as follows:

- (a) the person convicted proves, on a balance of probabilities, that his or her involvement in the offence under section 5(1) or 7 was restricted —
 - (i) to transporting, sending or delivering a controlled drug;
 - (ii) to offering to transport, send or deliver a controlled drug;
 - (iii) to doing or offering to do any act preparatory to or for the purpose of his or her transporting, sending or delivering a controlled drug; or
 - (iv) to any combination of activities in sub-paragraphs (i), (ii) and (iii); and
- (b) the Public Prosecutor certifies to any court that, in his or her determination, the person has substantively assisted the Central Narcotics Bureau in disrupting drug trafficking activities within or outside Singapore.

[30/2012]

(3) The requirements referred to in subsection (1)(b) are that the person convicted proves, on a balance of probabilities, that —

- (a) his or her involvement in the offence under section 5(1) or 7 was restricted —
 - (i) to transporting, sending or delivering a controlled drug;
 - (ii) to offering to transport, send or deliver a controlled drug;
 - (iii) to doing or offering to do any act preparatory to or for the

purpose of his or her transporting, sending or delivering a controlled drug; or

(iv) to any combination of activities in sub-paragraphs (i), (ii) and (iii); and

(b) he or she was suffering from such abnormality of mind (whether arising from a condition of arrested or retarded development of mind or any inherent causes or induced by disease or injury) as substantially impaired his or her mental responsibility for his or her acts and omissions in relation to the offence under section 5(1) or 7.

[30/2012]

(4) The determination of whether or not any person has substantively assisted the Central Narcotics Bureau in disrupting drug trafficking activities shall be at the sole discretion of the Public Prosecutor and no action or proceeding shall lie against the Public Prosecutor in relation to any such determination unless it is proved to the court that the determination was done in bad faith or with malice.

[30/2012]

PART 4

TREATMENT AND REHABILITATION

Supervision, treatment and rehabilitation of drug addicts

34.—(1) The Director may order any person whom the Director reasonably suspects to be a drug addict to be committed, for a period not exceeding 7 days, to any place specified by the Director for the purpose of any medical examination or observation.

[1/2019]

(2) If, as a result of such medical examination or observation under subsection (1) or both the urine tests conducted under section 31(4)(b) or the hair test conducted under section 31A, it appears to the Director that it is necessary for any person examined or observed, or who supplied the urine specimen for the urine tests, or who supplied the hair specimens for the hair test —

(a) to be subject to supervision, the Director may make a supervision order requiring that person to be subject to the supervision of an officer of the Bureau for a period not exceeding 5 years; or

(b) to undergo treatment or rehabilitation or both at an approved institution, the Director may make an order in writing requiring that person to be

admitted for that purpose to an approved institution.

[1/2019]

(2A) *[Deleted by Act 1 of 2019]*

(3) Every person who is admitted to an approved institution under this section is to be detained in the institution for a period of 12 months unless he or she is discharged earlier by the Director or the Review Committee of the institution.

[1/2019]

(3A) Where a person who is admitted to an approved institution under this section is transferred from that approved institution to one or more other approved institutions or to one or more community rehabilitation centres, the combined period of his or her detention in all the approved institutions and community rehabilitation centres must not be less than 12 months unless he or she is discharged earlier by the Director or the Review Committee of the approved institution or community rehabilitation centre.

[30/2012; 1/2019]

(4) If the Review Committee of an approved institution or a community rehabilitation centre is of the opinion that an inmate of that institution or centre whose period of detention therein is about to expire requires further treatment or rehabilitation or both, the Committee may, by order in writing, direct that the inmate be detained in the institution or centre for a further period or periods not exceeding 12 months at any one time.

[30/2012; 1/2019]

(4A) *[Deleted by Act 1 of 2019]*

(5) No person in respect of whom an order has been made under subsection (2)(b) is to be detained in an approved institution or institutions or a community rehabilitation centre or centres for a period of more than 4 years after his or her admission to any approved institution pursuant to that order.

[30/2012; 1/2019]

Parents or guardians to attend counselling with supervisees

34A.—(1) If the Director, on or after 1 August 2019, makes a supervision order under section 34(2)(a) against a supervisee who is below 21 years of age, the Director may require the parent or guardian of the supervisee to attend any counselling session (whether or not together with the supervisee) at such place and time as the Director, or any person authorised by the Director, determines.

[1/2019]

(2) Any parent or guardian of a supervisee who, without reasonable excuse, fails to comply with the requirement under subsection (1) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding \$5,000.

[1/2019]

(3) A court may, in lieu of imposing a fine, order a parent or guardian of a supervisee to attend any counselling session at such place and time as the Director, or any person authorised by the Director, determines.

[1/2019]

Approved institutions and community rehabilitation centres

35.—(1) The Minister may, from time to time, by notification in the *Gazette*, declare any institution or place to be an approved institution or a community rehabilitation centre for the purpose of the treatment and rehabilitation of —

- (a) drug addicts and other persons under this Act; and
- (b) persons who smoke, inhale or otherwise consume specified psychoactive substances within the meaning given by section 2(1) of the Tobacco and Vaporisers Control Act 1993.

(2) The Minister may at any time, by notification in the *Gazette*, revoke or amend any notification mentioned in subsection (1).

[Act 9 of 2026 wef 01/05/2026]

Administration of approved institutions

36.—(1) Subject to the Minister's directions, the general charge and administration of —

- (a) approved institutions, except those designated under paragraph (b), is under the Commissioner of Prisons; and
- (b) such approved institutions as the Minister may designate, is under such person as the Minister may appoint.

[1/2014]

(2) The Commissioner of Prisons or the person appointed under subsection (1)(b) (as the case may be) may appoint a person to be the superintendent of an approved institution and such person is responsible for the supervision and administration of that approved institution.

[1/2014]

(3) Subject to such modifications as may be made by the Commissioner of Prisons, the standing orders issued under the Prisons Act 1933 apply to an approved institution under the charge of the Commissioner of Prisons as they apply to a prison.

[1/2014]

(4) The person appointed under subsection (1)(b) may in writing issue orders, to be called standing orders, for the approved institutions designated under his or her charge.

Administration of community rehabilitation centres

36A.—(1) Subject to the Minister's directions, the general charge and administration of a community rehabilitation centre is under the Commissioner of Prisons.

[30/2012]

(2) The Commissioner of Prisons may —

(a) appoint a person to be the superintendent of a community rehabilitation centre; and

(b) appoint a person to be the manager of a community rehabilitation centre.

[Act 12 of 2023 wef 01/06/2023]

(3) The superintendent of a community rehabilitation centre is responsible for assisting the Commissioner of Prisons with the charge and administration of the community rehabilitation centre.

[Act 12 of 2023 wef 01/06/2023]

(4) The manager of a community rehabilitation centre —

(a) is responsible for the supervision and administration of the community rehabilitation centre; and

(b) reports to the superintendent of the community rehabilitation centre.

[Act 12 of 2023 wef 01/06/2023]

Review Committees for approved institutions and community rehabilitation centres

37.—(1) The Minister must appoint for any approved institution or institutions, or any community rehabilitation centre or centres, a Review Committee which has such functions as are conferred upon it by this Act.

[30/2012]

(2) Every Review Committee consists of a Chairperson, who must be a person registered under the Medical Registration Act 1997, and such other members, being at least 3, as the Minister may determine.

(3) The Chairperson and members of a Review Committee are appointed by the Minister for a term not exceeding 3 years, but may —

(a) from time to time be re-appointed;

(b) at any time be removed from office by the Minister; or

(c) at any time resign from their office in writing addressed to the Minister.

(4) At any meeting of the Review Committee, 3 members of the Committee constitute a quorum.

(5) The Chairperson presides at every meeting of the Review Committee at which he or she is present and in his or her absence the members present must elect one of their number to preside at the meeting.

(6) Every question before the Review Committee is to be determined by a majority of the votes of the members present and voting thereon, and in the event of an equality of votes the Chairperson or the member presiding at the meeting has a casting vote in addition to his or her original vote.

(7) Subject to the provisions of this Act, the Review Committee may determine its own procedure.

(8) Any order of the Review Committee may be signed by the Chairperson or a member of the Committee.

Review, discharge and transfer of inmates

38.—(1) The Review Committee of an approved institution or a community rehabilitation centre must keep the case of every inmate under review and must, as often as practicable, consider whether he or she should be discharged.

[30/2012]

(2) The Director or the Review Committee of an approved institution or a community rehabilitation centre may at any time by order in writing —

(a) discharge any inmate; or

(b) transfer any inmate from one approved institution or community rehabilitation centre to another approved institution or community rehabilitation centre.

[30/2012]

(3) The superintendent of an approved institution or a community rehabilitation centre may enter into an arrangement with the superintendent of another approved institution or community rehabilitation centre for the transfer of any inmate to that other institution or community rehabilitation centre and may, subject to any direction given by the Director or the Review Committee, carry out any transfer in accordance with that arrangement.

[30/2012]

[Act 12 of 2023 wef 01/06/2023]

(4) On proof to his or her satisfaction that the presence at any place of an inmate is required in the interests of justice, or for the purpose of any inquiry, or in the public interest or in the interest of the inmate, the superintendent of an approved institution or a community rehabilitation centre may order that the inmate be taken to that place.

[30/2012]

[Act 12 of 2023 wef 01/06/2023]

Power to obtain information

38A.—(1) Where an inmate of an approved institution or a community rehabilitation centre has been granted leave for the purposes of the inmate's employment, treatment or rehabilitation or to return to the inmate's residence or other designated places, a prison officer of or above the rank of sergeant may, for any of the purposes in subsection (2), by written notice require any person to provide, within a reasonable period specified in the notice, and in such form and manner as may be specified in the notice, all documents and information which —

- (a) relate to any matter specified by the prison officer; and
- (b) are —
 - (i) within the knowledge of that person; or
 - (ii) in the custody or under the control of that person.

(2) The purposes mentioned in subsection (1) are as follows:

- (a) in respect of an approved institution mentioned in section 36(1)(a) — to assist the Commissioner of Prisons, or the person appointed under section 36(2) to be the superintendent of the approved institution, to ascertain if there has been any contravention or failure to comply with any condition imposed on an inmate who is granted leave from that approved institution for the purpose of the inmate's employment, treatment or rehabilitation outside that approved institution or to return to the inmate's residence or other designated places;
- (b) in respect of a community rehabilitation centre — to assist the Commissioner of Prisons, or the person appointed under section 36A(2)(a) or (b) to be the superintendent or manager of the community rehabilitation centre, to ascertain if there has been any contravention or failure to comply with any condition imposed on an inmate who is granted leave from that community rehabilitation centre for the purpose of the inmate's employment, treatment or rehabilitation outside that community rehabilitation centre or to return to the inmate's residence or other designated places.

[Act 12 of 2023 wef 01/06/2023]

(3) The power to require a person to provide any document or information under subsection (1) includes the power —

- (a) to require that person to provide an explanation of the document or information;

- (b) if the document or information is not provided, to require that person to state, to the best of the knowledge and belief of that person, where it is; and
- (c) if the information is recorded otherwise than in legible form, to require the information to be authenticated and made available to the prison officer concerned in legible form.

(4) The prison officer is entitled without payment to keep for the purposes in subsection (2) any document or information, or any copy or extract thereof, provided to him or her under that subsection.

(5) A person who, without reasonable excuse, fails to do anything required of the person by a notice under subsection (1) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding \$1,500.

(6) To avoid doubt, for the purposes of subsection (5), it is a reasonable excuse for a person to refuse or fail to provide any information, produce any document or answer any question if doing so might tend to incriminate that person.

(7) In this section, “document” means anything in which information of any description is recorded.

[Act 6 of 2022 wef 02/09/2022]

Power of Magistrate to inquire into complaint of misconduct or breach of duty

39.—(1) Where a complaint is made on oath to a Magistrate that any person is improperly detained in an approved institution or a community rehabilitation centre by reason of any misconduct or breach of duty on the part of any officer in the discharge of his or her functions pursuant to this Act, the Magistrate may —

- (a) inquire into the complaint himself or herself; or
- (b) direct a police officer to make an inquiry for the purpose of ascertaining the truth or falsehood of the complaint and report to the Magistrate the result of the inquiry.

[30/2012]

(2) Every inquiry under subsection (1) is to be conducted in private, except that the procedure for conducting any inquiry is to be such as the Magistrate considers appropriate in the circumstances of the case.

(3) A Magistrate or a police officer conducting any inquiry under subsection (1) has all the powers conferred on him or her by the Criminal Procedure Code 2010 in relation to the attendance and examination of witnesses, the taking of evidence and the production of documents.

(4) If, after considering the result of any such inquiry, the Magistrate is satisfied that any person who is detained in an approved institution or a community rehabilitation centre ought not to be so detained, the Magistrate may make an order for the discharge of that person from the approved institution or community rehabilitation centre and that person must be discharged accordingly.

[30/2012]

(5) Any order or decision of the Magistrate made under this section is final.

(6) No evidence taken for the purpose of any such inquiry is admissible in any civil or criminal proceedings, except where the person who gave that evidence is charged with giving or fabricating false evidence.

Inmates deemed to be in legal custody

40.—(1) Every inmate is deemed to be in the legal custody of the approved institution or community rehabilitation centre in which he or she is for the time being detained.

[30/2012]

(2) An inmate is deemed to be in legal custody —

- (a) while he or she is confined in, or is being taken to or from, an approved institution or a community rehabilitation centre;
- (b) while he or she is for any other reason outside an approved institution or a community rehabilitation centre and in the custody or under the control of an officer of the approved institution or community rehabilitation centre; or
- (c) while he or she is being taken to any place to which he or she is required or authorised under this Act to be taken, or is kept in custody pursuant to any such requirement or authorisation.

[30/2012]

PART 5

TAKING OF PHOTOGRAPHS, FINGER IMPRESSIONS, PARTICULARS AND BODY SAMPLES

Interpretation of this Part

40A.—(1) In this Part, unless the context otherwise requires —

“appropriate consent” means —

- (a) for a person 16 years of age or older, the written consent of that person;

- (b) for a person 14 years of age or older but below 16 years of age, the written consent of both that person and of his or her parent or guardian; and
- (c) for a person below 14 years of age, the written consent of his or her parent or guardian,

given to —

- (d) a police officer or an officer of the Bureau in charge of the case; or
- (e) a prison officer,

after that officer has informed the person concerned, his or her parent or guardian or both (as the case may be) of the purpose for which a body sample is required from such person and the manner by which such body sample is to be taken from him or her;

“authorised analyst” means a person appointed by the Commissioner of Police to be an analyst for the purposes of this Part;

“body sample” means —

- (a) a sample of blood;
- (b) a sample of head hair, including the roots thereof;
- (c) a swab taken from a person’s mouth; or
- (d) such other sample as may be prescribed under subsection (2);

“DNA” means deoxyribonucleic acid;

“DNA information” means genetic information derived from the forensic DNA analysis of a body sample;

“finger impression” includes thumb impression and palmar impression;

[Deleted by Act 26 of 2022 wef 12/06/2023]

“invasive sample” means any body sample that is obtained by means of any invasive procedure, but does not include any sample described in subsection (3);

[Act 26 of 2022 wef 12/06/2023]

“particulars”, in relation to a person, means any particulars, information or description of that person that may be relevant or useful in the identification of that person;

“photograph”, in relation to a person, includes the photograph of any distinguishing feature or mark on the body of that person;

“registered medical practitioner” has the meaning given by the Medical Registration Act 1997 and includes a dentist registered under the Dental Registration Act 1999.

(2) Subject to subsection (3), the Minister may prescribe additional types of body samples that may be taken under section 40B.

(3) The additional types of body samples that may be prescribed under subsection (2) must not include samples to be obtained from —

- (a) the genital or anal area of a person’s body;
- (b) a person’s body orifice other than the mouth; or
- (c) the breast of a woman.

Taking of photographs, finger impressions, particulars and body samples from person subject to supervision or in approved institutions

40B.—(1) Any police officer, prison officer, officer of the Bureau or person authorised by the Commissioner of Police may exercise all or any of the following powers in respect of any person mentioned in subsection (2):

- (a) take or cause to be taken photographs and finger impressions of such person;
- (b) make or cause to be made a record of the particulars of such person;
- (c) cause body samples of such person to be taken by a person authorised under section 40C(1);
- (d) send any photograph, finger impression, record of particulars or body sample so taken or made to the Commissioner of Police for identification and report.

(2) The powers mentioned in subsection (1) may be exercised in respect of a person who on or after 1 March 2006 —

- (a) is subject to supervision pursuant to a supervision order made at any time (whether before, on or after that date) under section 34(2)(a);
- (b) is in an approved institution pursuant to an order made at any time (whether before, on or after that date) under section 34(2)(b); or
- (c) is subject to a supervision order made at any time (whether before, on or

after that date) under any regulations providing for the supervision and aftercare of persons.

(3) Every person mentioned in subsection (2) must —

- (a) submit to the taking of his or her photographs and finger impressions under subsection (1);
- (b) provide such particulars as may be required under subsection (1); and
- (c) subject to subsection (5), submit to the taking of his or her body samples by a person authorised under section 40C(1).

(4) Where any person mentioned in subsection (2), without reasonable excuse, fails to comply with subsection (3) —

- (a) that person shall be guilty of an offence and shall be liable on conviction to a fine not exceeding \$1,000 or to imprisonment for a term not exceeding one month or to both; and
- (b) any police officer, prison officer, officer of the Bureau or person authorised by the Commissioner of Police may use such force as is reasonably necessary to take or cause to be taken the photographs, finger impressions and body samples of that person.

(5) No —

- (a) sample of blood; or
- (b) invasive sample prescribed under section 40A(2),

is to be taken from any person unless the appropriate consent is given for the taking of the sample.

[Act 26 of 2022 wef 12/06/2023]

Further provisions for taking of body samples

40C.—(1) For the purposes of section 40B(1)(c), a body sample may only be taken by —

- (a) a registered medical practitioner;
- (b) a police officer, a prison officer or an officer of the Bureau who has received training for the purpose; or
- (c) any other suitably qualified or trained person who is duly appointed in writing by the Commissioner of Police as an authorised person for the purpose.

(2) Before taking any body sample, the person authorised under subsection (1) to take the sample must satisfy himself or herself that the taking of the sample does not endanger the person from whom the sample is to be taken.

(3) The fact that a body sample has been taken must be recorded by the person who took the sample in such form or manner as may be required by the Commissioner of Police.

(4) Every body sample taken must be sent to an authorised analyst for forensic DNA analysis.

Retention of photographs, finger impressions, particulars and body samples taken

40D.—(1) The Commissioner of Police must cause to be maintained —

- (a) a register (whether in a computerised form or otherwise) in which is stored all photographs, finger impressions and particulars of a person taken under section 40B; and
- (b) a DNA database (whether in a computerised form or otherwise) in which is stored all DNA information derived from a body sample taken from a person under section 40B.

(2) Any information stored in the register and the DNA database under subsection (1) may be used for all or any of the following purposes:

- (a) for comparison with any other information or any other DNA information (as the case may be) obtained in the course of an investigation of an offence conducted by a police officer or an officer of the Bureau;
- (b) for comparison with information in the register of criminals or identification database maintained under section 4 or 29 of the Registration of Criminals Act 1949 or with DNA information in the DNA database maintained under section 31 of that Act, as the case may be;
[Act 26 of 2022 wef 12/06/2023]
- (c) for comparison with information or DNA information (as the case may be) in the register or DNA database, respectively, established under —
 - (i) section 27C of the Criminal Law (Temporary Provisions) Act 1955; or
 - (ii) section 26D of the Intoxicating Substances Act 1987;
- (d) for any proceedings for any offence;
- (e) for administering the register and DNA database for the purposes of this

Act;

- (ea) for any investigation into a death conducted by a police officer, a Coroner or a forensic pathologist (including a post-mortem examination) or any inquiry into any death held by a Coroner, under the Coroners Act 2010;

[Act 26 of 2022 wef 12/06/2023]

- (eb) for identifying a dead person or any part of a person;

[Act 26 of 2022 wef 12/06/2023]

- (ec) for identifying a person in order to provide police assistance to the person;

[Act 26 of 2022 wef 12/06/2023]

- (f) for such other purposes as may be prescribed.

(3) For the purposes of subsection (2)(d) —

- (a) any photograph, finger impression or particulars stored in the register under subsection (1)(a);
- (b) any DNA information stored in the DNA database under subsection (1)(b); and
- (c) any certificate or report purporting to have been compiled or made from information stored in the register or DNA database maintained under subsection (1),

is, if produced from proper custody and authenticated by the signature of the Commissioner of Police or a police officer authorised by the Commissioner of Police, admissible in evidence in any proceedings without proof of signature and, until the contrary is proved, is proof of all matters contained therein.

PART 6

COMMITTEE OF INQUIRY

Committee of inquiry

41.—(1) Where it is expedient that the Minister, or such other person as the Minister may appoint to exercise the powers conferred upon the Minister by sections 42, 49 and 51, should be informed on any matter connected with the discipline, administration or functions of any approved institution or affecting any inmate, the Minister or the person appointed by the Minister may convene a committee of inquiry.

(2) A committee of inquiry must inquire into and report on the facts relating to any matter referred to it and, if directed by the Minister to do so, express its opinion on any

question arising out of any such matter.

(3) In this section and in sections 42, 49 and 51, “Minister” includes the person appointed by the Minister under subsection (1) to act on his or her behalf for the purposes of this section and sections 42, 49 and 51.

Composition of committee of inquiry

42.—(1) A committee of inquiry consists of one or more persons who are to be appointed by the Minister.

(2) Where a committee of inquiry consists of more than one person, the Minister must appoint one of the members to be the chairperson.

(3) Where a committee of inquiry consists of one member only, he or she is vested with the powers of a chairperson.

(4) Every member of a committee of inquiry appointed under this section is deemed to be a public servant within the meaning of the Penal Code 1871.

Powers of committee of inquiry

43. A committee of inquiry may —

- (a) summon any person to give evidence on oath or on affirmation or to produce any document or material necessary for the purpose of the inquiry; and
- (b) visit any place in order to inquire into any matter which may arise in the course of the inquiry.

Disobedience to summons

44.—(1) A person who is summoned to give evidence before a committee of inquiry must not, without lawful excuse, fail to appear in obedience to the summons.

(2) A person who is required by a committee of inquiry to produce any document or material for the purpose of the inquiry must not, without lawful excuse, fail to produce the document or material.

(3) Any person who contravenes subsection (1) or (2) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding \$2,000 or to imprisonment for a term not exceeding 6 months or to both.

Refusal to give evidence

45.—(1) A person who appears before a committee of inquiry must not, without lawful excuse, refuse to be sworn or to make an affirmation, or to produce any document or material, or to answer any question, which he or she is lawfully required to produce or answer.

(2) Any person who contravenes subsection (1) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding \$2,000 or to imprisonment for a term not exceeding 6 months or to both.

Giving of false evidence

46. Every person who wilfully gives false evidence when examined on oath or on affirmation before a committee of inquiry shall be guilty of an offence and shall be liable on conviction to a fine not exceeding \$10,000 or to imprisonment for a term not exceeding 7 years or to both.

Evidence and procedure

47. Except as otherwise provided in this Act, a committee of inquiry is not bound by the rules of evidence and may act in such manner as the committee of inquiry thinks most expedient.

Admissibility of evidence

48. No statement made in the course of any inquiry and no report of a committee of inquiry is admissible as evidence in proceedings other than proceedings, whether criminal or disciplinary, for an offence of giving or fabricating false evidence under any written law.

Proceedings not open to public

49.—(1) A committee of inquiry must not sit in public.

(2) No person is allowed to attend the proceedings of a committee of inquiry, or address the committee of inquiry, except with the chairperson's permission or if the Minister so directs.

Persons who may be affected by findings

50.—(1) Where it appears to a committee of inquiry that any witness or person involved in the supervision or administration of an approved institution may be adversely affected by its findings, the committee must notify him or her and give him or her an opportunity to be present at the proceedings of the committee of inquiry or at such part thereof as the chairperson may specify.

(2) The person notified under subsection (1) must be allowed to give evidence and examine any witness.

Record of proceedings

51.—(1) The chairperson must record or cause to be recorded in writing the proceedings of the committee of inquiry.

(2) The evidence of each witness before a committee of inquiry must be read over to him or her and must be signed by him or her.

(3) A record of the proceedings of a committee of inquiry must be signed by the chairperson and the members of the committee (if any) and forwarded to the Minister.

(4) The record of proceedings of a committee of inquiry or any part thereof or any information relating thereto must be kept confidential and must not be released to any person, other than a member of the committee, without the Minister's written permission.

Offence to influence or attempt to influence committee of inquiry

52. Every person who, otherwise than in the course of duty, directly or indirectly by himself or herself or by any other person in any manner whatsoever influences or attempts to influence any decision of a committee of inquiry or any member of a committee of inquiry shall be guilty of an offence and shall be liable on conviction to a fine not exceeding \$2,000 or to imprisonment for a term not exceeding 6 months or to both.

PART 7

GENERAL

Jurisdiction of courts

53. A District Court or a Magistrate's Court has jurisdiction to hear and determine all proceedings under this Act and, despite anything to the contrary in the Criminal Procedure Code 2010, a District Court has power to impose the full penalty or punishment in respect of any offence provided by this Act except the punishment of death.

Indemnity

54.—(1) The Government shall not be liable to make good any damage caused to any goods or property as a result of an entry, search or detention under the provisions of this Act unless the damage is caused by the wilful neglect or default of an officer employed

by the Government.

(2) In the event of any dispute as to the amount of any damage so caused, the same is to be summarily ascertained and determined by a District Court or a Magistrate's Court.

Protection of persons acting under authority of Act

55. Any person who does any act in pursuance or intended pursuance of any of the provisions of this Act shall not be subject to any civil or criminal liability in respect thereof, whether on the ground of want of jurisdiction, mistake of law or fact, or any other ground, unless he or she has acted in bad faith or without reasonable care.

Use of weapons

56.—(1) Subject to this section, a prison officer may use any weapon against —

- (a) any inmate of any approved institution escaping or attempting to escape;
- (b) any person who does any act or attempts to do any act to facilitate the escape of an inmate of any approved institution; or
- (c) any person engaged in any attempt to damage or force or break open —
 - (i) the outside door or gate or enclosure wall of any approved institution or any other part of an approved institution; or
 - (ii) any part of any vehicle in which an inmate is conveyed.

(2) A prison officer may use any weapon against —

- (a) any inmate of any approved institution engaged in any combined outbreak; and
- (b) any person engaged in any attempt to damage or force or break open —
 - (i) the outside door or gate or enclosure wall of any approved institution or any other part of an approved institution; or
 - (ii) any part of any vehicle in which an inmate is conveyed,

and may continue to use the weapon so long as the combined outbreak or attempt is actually being prosecuted.

(3) Every prison officer may use weapons against an inmate of any approved institution using violence against any prison officer or other person, if the prison officer has reasonable ground to believe that the prison officer or other person is in danger of life or limb, or that other grievous hurt is likely to be caused to either of them.

(4) A prison officer must not resort to the use of any weapon under subsection (1) unless the officer has reasonable ground to believe that he or she cannot otherwise prevent the escape of any inmate.

(5) Before using any firearm against an inmate or other person referred to in subsection (1), the prison officer must give a warning to the inmate or that other person (as the case may be) that the officer is about to fire on him or her.

(6) A prison officer must not, in the presence of his or her superior officer, use any firearm against an inmate or other person in the circumstances described in subsection (1) or (2) except under the orders of his or her superior officer.

(7) The use of weapons under this section must be, as far as possible, to disable and not to kill.

(8) Every police officer who is for the time being serving in the capacity of an escort, or of a guard in or around any approved institution, for the purpose of ensuring the safe custody of any inmate, is deemed to have all the powers and privileges granted to a prison officer under this section.

Employment of auxiliary police officers as escorts and guards

57.—(1) For the purpose of assisting him or her in the discharge of his or her duties under this Act, the Commissioner of Prisons may employ such number of auxiliary police officers as he or she considers fit as escorts or guards to ensure the safe custody of the inmates who are under his or her custody.

[\[1/2014\]](#)

(2) An inmate who is delivered into the custody of an auxiliary police officer under this section is deemed to be in legal custody within the meaning of section 40.

(3) Every auxiliary police officer who is employed as an escort or a guard under subsection (1) has, in the course of carrying out his or her duties as an escort or a guard, the same powers as a prison officer under section 56.

(4) Every auxiliary police officer employed under subsection (1) is deemed to be a public servant within the meaning of the Penal Code 1871.

(5) In this section, “auxiliary police officer” means a member of an auxiliary police force established under any other written law.

Regulations

58.—(1) The Minister may make regulations —

(a) providing for the issue of licences for the import, export, sale, manufacture,

production or distribution of controlled drugs or psychoactive substances;

[Act 12 of 2023 wef 01/06/2024]

(b) prescribing the form, duration and terms and conditions of any licence and the fees payable therefor, and providing for the cancellation and suspension thereof;

(c) authorising the sale or possession or other dealing in controlled drugs or psychoactive substances and prescribing the circumstances and conditions under which the persons by whom controlled drugs or psychoactive substances may be sold, had in possession or otherwise dealt in;

[Act 12 of 2023 wef 01/06/2024]

(ca) authorising the possession of any drug paraphernalia (as defined in section 11B(5)) or paraphernalia (as defined in section 11N(7)) and prescribing the circumstances and conditions under which a person may possess it;

[Act 12 of 2023 wef 01/06/2024]

(cb) authorising the teaching, instructing or provision of information, of any activity mentioned in section 11D(1) or 11P(1) and prescribing the circumstances and conditions under which the teaching, instructing or provision of information may take place;

[Act 12 of 2023 wef 01/06/2024]

(cc) authorising the dissemination or publication of information on the carrying out of any activity mentioned in section 11D(1) or 11P(1) and prescribing the circumstances and conditions under which the information may be disseminated or published;

[Act 12 of 2023 wef 01/06/2024]

(d) requiring medical practitioners, dentists, pharmacists, veterinary surgeons and other persons who deal in controlled drugs or psychoactive substances as may be authorised by the regulations to keep records and make returns;

[Act 12 of 2023 wef 01/06/2024]

(e) requiring any medical practitioner who attends to a person whom the medical practitioner considers or has reasonable grounds to suspect is addicted to any controlled drug or psychoactive substance to furnish to the prescribed authority such particulars with respect to that person as may be prescribed;

[Act 12 of 2023 wef 01/06/2024]

(f) prohibiting any medical practitioner from administering, supplying and authorising the administration and supply to persons addicted to controlled drugs or psychoactive substances, and from prescribing for those persons, those drugs or psychoactive substances;

[Act 12 of 2023 wef 01/06/2024]

- (g) as to the packaging and labelling of controlled drugs or psychoactive substances;

[Act 12 of 2023 wef 01/06/2024]

- (h) regulating the transport of controlled drugs or psychoactive substances and the methods to be used for destroying or otherwise disposing of those drugs or psychoactive substances when no longer required;

[Act 12 of 2023 wef 01/06/2024]

- (i) requiring precautions to be taken for the safe custody of controlled drugs or psychoactive substances;

[Act 12 of 2023 wef 01/06/2024]

- (j) providing for the inspection of any precautions taken or records kept pursuant to any regulations made under this section;

- (k) providing for the treatment and rehabilitation of persons affected by the misuse of controlled drugs or psychoactive substances;

[Act 12 of 2023 wef 01/06/2024]

- (l) prescribing the punishment by a fine not exceeding \$10,000 or imprisonment for a term not exceeding 4 years or both to be imposed on the conviction for a breach of the regulations;

- (m) providing for the management, maintenance and inspection of approved institutions or community rehabilitation centres;

- (n) prescribing the functions and procedure of Review Committees;

- (o) providing for the control, discipline (including the imposition of corporal punishment) and occupation of inmates and for the granting of leave to inmates for the purpose of their employment outside an approved institution or a community rehabilitation centre and to return to their residences or other designated places;

- (p) prescribing the appointment and duties of officers of approved institutions or community rehabilitation centres;

- (pa) providing for any matter in respect of a person who is committed under section 34(1), including the medical examination or observation of that person;

- (q) providing for the supervision and aftercare of persons referred to in section 34(2)(a), or who have undergone treatment and rehabilitation at approved or other institutions or who have been convicted of an offence under section 8(b), 11I(1)(b), 31(2) or (2A) or 31A(2) or (2A), or an

offence involving the consumption of a controlled drug or psychoactive substance under section 26 or 34 of the Singapore Armed Forces Act 1972;

[Act 12 of 2023 wef 01/06/2023]

[Act 12 of 2023 wef 01/06/2024]

- (qa) prescribing the circumstances under which the Director may extend the period for which a person is subject to supervision under this Act;
- (r) prescribing anything that may be prescribed;
- (s) prescribing the functions and procedure of advisory committees;
- (t) requiring the fingerprinting of inmates and the dissemination of this information to the police;
- (u) prescribing the type of offences in the regulations which may be arrestable offences for the purposes of the Criminal Procedure Code 2010; and
[Act 12 of 2023 wef 01/06/2023]
- (v) generally for carrying out the purposes and provisions of this Act.
[30/2012; 1/2019]

(2) Regulations made by the Minister under this section may —

- (a) make different provisions in relation to different controlled drugs or psychoactive substances, different classes of persons or different cases or circumstances;
[Act 12 of 2023 wef 01/06/2024]
- (b) make the opinion, consent or approval of any prescribed authority or authorised person material for the purposes of any provision; and
- (c) provide for the constitution and procedure of a tribunal to advise the Minister in any case of contravention of this Act or the regulations by any medical practitioner, dentist, pharmacist, veterinary surgeon or other authorised person.

58A. *[Repealed by Act 12 of 2023 wef 01/06/2024]*

Power of Minister to amend First, Third, Fourth and Fifth Schedules

59. The Minister may, by order in the *Gazette*, amend the First, Third, Fourth or Fifth Schedule.

[Act 12 of 2023 wef 01/06/2024]

FIRST SCHEDULE

Sections 2, 59 and Fourth Schedule

CONTROLLED DRUGS

PART 1

CLASS A DRUGS

1. The following substances and products:

- (1) Acetorphine
- (2) Acetylmethadol (also known as methadyl acetate)
- (3) Allylprodine
- (4) Alphacetylmethadol
- (5) Alphameprodine
- (6) Alphamethadol
- (7) Alphaprodine
- (8) [*Deleted by S 194/2017*]
- (9) Amphetamine
- (10) Anileridine
- (11) Benzethidine
- (12) Benzylmorphine (3-benzylmorphine)
- (13) 1-Benzylpiperazine (also known as BZP)
- (14) Betacetylmethadol
- (15) Betameprodine
- (16) Betamethadol
- (17) Betaprodine
- (18) Bezitramide
- (19) 1-(4-Bromo-2,5-dimethoxyphenyl)propan-2-amine (also known as 4-Bromo-2,5-dimethoxy- α -methylphenethylamine, 4-Bromo-2,5-dimethoxyamphetamine, Brolamfetamine or DOB) and its bromo and dimethoxy positional isomers in the phenyl ring
- (20) 2-(4-Bromo-2,5-dimethoxyphenyl)ethanamine (also known as 4-bromo-2,5-dimethoxyphenethylamine or 2C-B) and its bromo and dimethoxy positional isomers in the phenyl ring
- (21) [*Deleted by S 200/2016*]
- (22) Buprenorphine
- (23) Cannabinol

- (24) Cannabinol derivatives
- (25) Cannabis and cannabis resin
- (26) Cathinone
- (27) Clonitazene
- (28) Coca leaf
- (29) Cocaine
- (30) Codoxime
- (31) 4-Cyano-2-dimethylamino-4,4-diphenylbutane
- (32) 4-Cyano-1-methyl-4-phenyl-piperidine
- (33) Desomorphine
- (34) Dextromoramide
- (34A) (2S)-2,6-Diamino-N-[(2S)-1-phenylpropan-2-yl]hexanamide (also known as Lisdexamphetamine or Lisdexamfetamine) and its stereoisomers
- (35) Diamorphine
- (36) Diampromide
- (36A) N,N-Diethyl-3-hydroxy-7-methyl-2-oxo-4,6,6a,7,8,9-hexahydroindolo-[4,3-*fg*]quinoline-9-carboxamide (also known as 2-Oxo-3-hydroxy-LSD) and its acyclic secondary and tertiary amide structural isomers
- (37) Diethylthiambutene
- (38) [*Deleted by S 200/2016*]
- (39) Difenoxin
- (40) Dihydroetorphine
- (41) Dihydromorphine
- (42) Dimenoxadole
- (43) Dimepheptanol
- (44) 1-(2,5-Dimethoxy-4-methylphenyl)propan-2-amine (also known as 2,5-Dimethoxy-4, α -dimethylphenethylamine, 2-Amino-1-(2,5-dimethoxy-4-methyl)phenylpropane or DOM) and its methyl and dimethoxy positional isomers in the phenyl ring
- (45) 2,5-Dimethoxy- α -methylphenethylamine (also known as 2,5-Dimethoxyamphetamine or DMA) and its dimethoxy positional isomers in the phenyl ring
- (46) N, α -Dimethyl-3,4-(methylenedioxy)phenethylamine (also known as 3,4-Methylenedioxymethamphetamine or MDMA) and its acyloxy or sulphonyl derivatives at the nitrogen atom, and the following example of such a derivative:

(a) tert-Butyl N-[1-(1,3-benzodioxol-5-yl)propan-2-yl]-N-methylcarbamate (also known as N-tert-Butoxycarbonyl-MDMA or t-Boc-MDMA)

(47) *[Deleted by S 471/2025 wef 01/07/2025]*

(48) Dimethylthiambutene

(49) *[Deleted by S 200/2016]*

(50) Dioxaphetyl butyrate

(51) Diphenoxylate

(52) Dipipanone

(53) Drotebanol

(54) Ecgonine, and any derivative of ecgonine which is convertible to ecgonine or to cocaine

(55) 4-Ethyl-2,5-dimethoxy- α -methylphenethylamine (also known as DOET)

(56) N-Ethyl- α -methyl-3,4-(methylenedioxy)phenethylamine (also known as MDEA)

(57) Ethylmethylthiambutene

(58) Eticyclidine

(59) Etonitazene

(60) Etorphine

(61) Etoxidine

(62) *[Deleted by S 200/2016]*

(63) Furethidine

(64) Gamma hydroxybutyric acid

(65) Hydrocodone

(66) Hydromorphenol

(67) Hydromorphone

(68) *[Deleted by S 471/2025 wef 01/07/2025]*

(69) Hydroxypethidine

(70) Isomethadone

(71) Ketamine and its acyloxy or sulphonyl derivatives at the nitrogen atom, and the following example of such a derivative:

(a) tert-Butyl N-methyl-N-((2-chlorophenyl)-1-oxocyclohexan-2-yl)carbamate (also known as N-tert-Butoxycarbonyl-ketamine or t-Boc-ketamine)

(72) Ketobemidone

- (73) Levomethorphan
- (74) Levomoramide
- (75) Levophenacymorphan
- (76) Levorphanol
- (77) Lysergamide
- (78) Lysergide and other compounds structurally derived from lysergamide by substitution of any of the hydrogen atoms, and the following examples of such a compound:
 - (a) 1-Acetyl-N,N-diethyllysergamide (also known as N-acetyl-LSD or ALD-52)
 - (b) 6-Allyl-6-nor-lysergic acid diethylamide (also known as N-allyl-nor-LSD or AL-LAD)
 - (c) 6-Ethyl-6-nor-lysergic acid diethylamide (also known as ETH-LAD)
 - (d) 6-Propyl-6-nor-lysergic acid diethylamide (also known as PRO-LAD)
 - (e) Lysergic acid 2,4-dimethylazetidine (also known as LSZ)
 - (f) 1-Propionyl-N,N-diethyllysergamide (also known as 1-Propionyl-LSD or 1P-LSD)
 - (g) 1-Butanoyl-N,N-diethyllysergamide (also known as 1-Butanoyl-LSD or 1B-LSD)
 - (h) 1-Cyclopropionyl-N,N-diethyllysergamide (also known as 1-Cyclopropionyl-LSD or 1cP-LSD)
- (79) Mescaline
- (80) Metazocine
- (81) Methadone
- (82) *[Deleted by S 284/2021]*
- (83) Methamphetamine (also known as Methylamphetamine) and its acyloxy or sulphonyl derivatives at the nitrogen atom, and the following examples of such a derivative:
 - (a) tert-Butyl N-methyl-N-(1-phenylpropan-2-yl)carbamate (also known as N-tert-Butoxycarbonyl-methamphetamine or t-Boc-methamphetamine)
 - (b) N,4-Dimethyl-N-(3-phenyl-propan-2-yl)benzenesulfonamide (also known as N-Tosyl-methamphetamine)
- (84) *[Deleted by S 200/2016]*

- (85) 3-Methoxy- α -methyl-4,5-(methylenedioxy)phenethylamine (also known as 5-methoxy-MDA or MMDA)
- (86) p-Methoxy- α -methylphenethylamine (also known as 4-methoxyamphetamine or para-methoxyamphetamine) and its methoxy positional isomers in the phenyl ring
- (87) N-Methyl- α -ethyl-3,4-(methylenedioxy)phenethylamine (also known as MBDB)
- (88) N-[α -Methyl-3,4-(methylenedioxy)phenethyl]hydroxylamine (also known as N-Hydroxy MDA)
- (89) α -Methyl-3,4-(methylenedioxy)phenethylamine (also known as Tenamfetamine or MDA)
- (90) 2-Methyl-3-morpholino-1,1-diphenylpropanecarboxylic acid
- (91) 1-Methyl-4-phenylpiperidine-4-carboxylic acid
- (92) 4-Methylaminorex
- (93) Methyldesorphine
- (94) Methyldihydromorphine (6-Methyldihydromorphine)
- (95) 4-Methylthioamphetamine
- (96) [*Deleted by S 233/2018*]
- (97) Metopon
- (98) Monoacetylmorphine
- (99) Morpheridine
- (100) Morphine
- (101) Morphine methobromide, morphine *N*-oxide and other pentavalent nitrogen morphine derivatives
- (102) Myrophine
- (103) Nicomorphine (3,6-dinicotinoyl-morphine)
- (104) Noracymethadol
- (105) Norbuprenorphine
- (106) Norketamine and its dehydro derivatives
- (107) Norlevorphanol
- (108) Normethadone
- (109) Normorphine
- (110) Norpipanone
- (111) Opium
- (112) Oxycodone

- (113) Oxymorphone
- (114) [*Deleted by S 471/2025 wef 01/07/2025*]
- (115) Pethidine
- (116) Phenadoxone
- (117) Phenampromide
- (118) Phenazocine
- (119) Phenomorphan
- (120) Phenoperidine
- (120A 4-Phenyl-N-(2-phenylethyl)piperidin-4-yl acetate (also known as 1-Phenethyl-4-phenyl-4-
) piperidinol acetate or PEPAP)
- (121) 4-Phenylpiperidine-4-carboxylic acid ethyl ester
- (122) Piminodine
- (123) Piritramide
- (124) Poppy-straw and concentrate of poppy-straw
- (125) Proheptazine
- (126) Properidine (1-Methyl-4-phenyl-piperidine-4-carboxylic acid isopropyl ester)
- (127) [*Deleted by S 200/2016*]
- (128) Psilocybine
- (129) Racemethorphan
- (130) Racemoramide
- (131) Racemorphan
- (132) [*Deleted by S 233/2018*]
- (133) Rolicyclidine
- (133A Tapentadol
)
- (134) Tenocyclidine
- (134A 6,7,8,14-Tetrahydro-4,5- α -epoxy-6-methoxy-17-methylmorphinan-3-ol (also known as 3-
) O-demethylthebaine or Oripavine)
- (135) Thebacon
- (136) Thebaine
- (137) Tilidine
- (138) 1-(3-Trifluoromethylphenyl)piperazine (also known as TFMPP)

(139) Trimeperidine

(140) *[Deleted by S 284/2021]*

2. Any stereoisomeric form of a substance for the time being specified in paragraph 1, not being dextromethorphan or dextrorphan.

3. Any ester or ether of a substance for the time being specified in paragraph 1 or 2, not being a substance for the time being specified in Part 2.

4. Any salt of a substance for the time being specified in any of paragraphs 1, 2 and 3.

5. Any preparation or other products containing a substance or product for the time being specified in any of paragraphs 1 to 4.

6. Any preparation designed for administration by injection which includes a substance or product for the time being specified in any of paragraphs 1, 2 and 3 of Part 2.

7. Fentanyl and any compounds structurally derived from N-(1-Methyl-4-piperidyl)-N-phenyl formamide by substitution of any of the hydrogen atoms, including the following; and any salt of any substance falling within this item:

(1) Acetylfentanyl (also known as desmethyl fentanyl)

(1AA) Acryloylfentanyl (also known as Acrylfentanyl)

(1A) Alfentanil

(2) Alpha-methyl fentanyl

(3) Alpha-methyl fentanyl acetanilide

(4) Alpha-methylthiofentanyl

(5) Benzyl fentanyl

(6) Beta-hydroxy fentanyl

(7) Beta-hydroxy-3-methyl fentanyl

(7A) Butyryl fentanyl (also known as butyrfentanyl)

(8) Carfentanil

(8AA Crotonylfentanyl
A)

(8AA) Cyclopropylfentanyl

(8AB) 4-Fluorobutyrfentanyl (also known as para-Fluoro-butyrfentanyl or p-Fluoro-butyrfentanyl)

(8AC) 2-Fluorofentanyl (also known as ortho-Fluorofentanyl)

(8AD) 3-Fluorofentanyl (also known as meta-Fluorofentanyl)

(8AE) 4-Fluorofentanyl (also known as para-Fluorofentanyl)

(8A) 4-Fluoroisobutyrfentanyl (also known as 4-FIBF or pFIBF)

- (8B) Furanyl fentanyl
- (9) Lofentanil
- (9A) Methoxyacetylfentanyl
- (9B) 4-Methoxybutyrfentanyl (also known as para-Methoxy-butyrfentanyl or p-Methoxy-butyrylfentanyl)
- (10) 3-Methyl fentanyl
- (10A) 3-Methylthiofentanyl
- (10B) Ocfentanil
- (11) *[Deleted by S 354/2019]*
- (11A) Remifentanil
- (12) Sufentanil
- (12A) Tetrahydrofuranyl fentanyl (also known as THF-F)
A)
- (12A) Thiafentanil
- (13) Thiofentanyl
- (14) Valerylfentanyl

8. *[Deleted by S 751/2020]*

9. Any compound containing a 3-(1-naphthylmethyl)indole structure with substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2-piperidinyl)methyl or 2-(4-morpholinyl)ethyl group, and any derivatives of the above compounds containing hydroxy and/or carboxylic acid groups, whether or not further substituted in the indole ring to any extent and whether or not substituted in the naphthyl ring to any extent, including any salt or stereoisomeric form of the above compounds or derivatives, and any preparation or product containing the above compounds or derivatives, for example:

- (1) 3-[(4-Methylnaphthalen-1-yl)methyl]-1-pentyl-1H-indole (also known as JWH-184)
- (2) 3-(Naphthalen-1-ylmethyl)-1-pentyl-1H-indole (also known as JWH-175)

10. Any compound containing a 3-(1-naphthoyl)pyrrole structure with substitution at the nitrogen atom of the pyrrole ring by an alkyl, haloalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2-piperidinyl)methyl or 2-(4-morpholinyl)ethyl group, and any derivatives of the above compounds containing hydroxy and/or carboxylic acid groups, whether or not further substituted in the pyrrole ring to any extent and whether or not substituted in the naphthyl ring to any extent, including any salt or stereoisomeric form of the above compounds or derivatives, and any preparation or product containing the above compounds or derivatives, for example:

- (1) [5-(2-Chlorophenyl)-1-pentyl-1H-pyrrol-3-yl](naphthalen-1-yl)methanone (also known as JWH-369)
- (2) [5-(2-Fluorophenyl)-1-pentyl-1H-pyrrol-3-yl](naphthalen-1-yl)methanone (also known as JWH-307)

- (3) [5-(3-Fluorophenyl)-1-pentyl-1H-pyrrol-3-yl](naphthalen-1-yl)methanone (also known as JWH-368)
- (4) (1-Hexyl-5-phenyl-1H-pyrrol-3-yl)(naphthalen-1-yl)methanone (also known as JWH-147)
- (5) (1-Hexyl-1H-pyrrol-3-yl)(naphthalen-1-yl)methanone (also known as JWH-031)
- (6) [5-(2-Methylphenyl)-1-pentyl-1H-pyrrol-3-yl](naphthalen-1-yl)methanone (also known as JWH-370)
- (7) Naphthalen-1-yl[5-(naphthalen-1-yl)-1-pentyl-1H-pyrrol-3-yl]methanone (also known as JWH-309)
- (8) Naphthalen-1-yl(1-pentyl-5-phenyl-1H-pyrrol-3-yl)methanone (also known as JWH-145)
- (9) Naphthalen-1-yl(1-pentyl-1H-pyrrol-3-yl)methanone (also known as JWH-030)

11. Any compound containing a naphthylideneindene structure with substitution at the 3-position of the indene ring by an alkyl, haloalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2-piperidinyl)methyl or 2-(4-morpholinyl)ethyl group, and any derivatives of the above compounds containing hydroxy and/or carboxylic acid groups, whether or not further substituted in the indene ring to any extent and whether or not substituted in the naphthyl ring to any extent, including any salt or stereoisomeric form of the above compounds or derivatives, and any preparation or product containing the above compounds or derivatives, for example:

- (1) E-1-[1-(1-Naphthalenylmethylene)-1H-inden-3-yl]pentane (also known as JWH-176)

12. *[Deleted by S 751/2020]*

13. Any compound containing a 2-(3-hydroxycyclohexyl)phenol structure with substitution at the 5-position of the phenolic ring by an alkyl, haloalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2-piperidinyl)methyl or 2-(4-morpholinyl)ethyl group, and any derivatives of the above compounds containing hydroxy and/or carboxylic acid groups, whether or not substituted in the cyclohexyl ring to any extent, including any salt or stereoisomeric form of the above compounds or derivatives, and any preparation or product containing the above compounds or derivatives, for example:

- (1) 2-[5-Hydroxy-2-(3-hydroxypropyl)cyclohexyl]-5-(2-methyloctan-2-yl)phenol (also known as CP55,940)
- (2) 2-(3-Hydroxycyclohexyl)-5-(2-methyloctan-2-yl)phenol (also known as CP47,497)

14. *[Deleted by S 751/2020]*

15. *[Deleted by S 751/2020]*

16. Any compound, other than bupropion, that is structurally derived from 2-amino-1-phenylpropan-1-one by modification in any of the following ways:

- (a) substitution in the phenyl ring to any extent with alkyl, alkoxy, alkylendioxy, haloalkyl, or halide substituents, whether or not further substituted in the phenyl ring by one or more other univalent substituents;
- (b) substitution at the 3-position with an alkyl substituent;
- (c) substitution at the nitrogen atom with alkyl, cycloalkyl or dialkyl, benzyl or methoxybenzyl groups, or by inclusion of the nitrogen atom in a cyclic structure,

[\[S 453/2023 wef 01/07/2023\]](#)

including any salt or stereoisomeric form of the above compounds, and any preparation or product containing the above compounds, for example:

- (1) 1-(1,3-Benzodioxol-5-yl)-2-(benzylamino)propan-1-one (also known as 3,4-Methylenedioxy-N-benzylcathinone or BMDP)
- (1AA AA) 1-(1,3-Benzodioxol-5-yl)-2-(butylamino)butan-1-one (also known as N-butylbutylone) [\[S 471/2025 wef 01/07/2025\]](#)
- (1AA A) 1-(1,3-Benzodioxol-5-yl)-2-(cyclohexylamino)propan-1-one (also known as 3,4-methylenedioxy-N-cyclohexylcathinone or 3,4-methylenedioxy- α -cyclohexylaminopropiophenone or N-cyclohexylmethylone or Cyputylone) [\[S 453/2023 wef 01/07/2023\]](#)
- (1AA) 1-(1,3-Benzodioxol-5-yl)-2-(dimethylamino)-1-butanone (also known as Dibutylone or bk-DMBDB)
- (1A) 1-(1,3-Benzodioxol-5-yl)-2-(dimethylamino)-1-propanone (also known as bk-MDDMA)
- (1BA) 1-(1,3-Benzodioxol-5-yl)-2-(dimethylamino)pentan-1-one (also known as N,N-dimethylpentylone, dipentylone or bk-DMBDP) [\[S 453/2023 wef 01/07/2023\]](#)
- (1B) 1-(1,3-Benzodioxol-5-yl)-2-(ethylamino)-1-butanone (also known as Eutylone)
- (1C) 1-(1,3-Benzodioxol-5-yl)-2-(ethylamino)pentan-1-one (also known as 1-(2H-1,3-Benzodioxol-5-yl)-2-(ethylamino)pentan-1-one or N-Ethylpentylone or N-Ethylnorpentylone or Ephylone)
- (2) 1-(1,3-Benzodioxol-5-yl)-2-(ethylamino)propan-1-one (also known as ethylone or 3,4-Methylenedioxy-N-ethylcathinone or bk-MDEA or MDEC)
- (2A) 1-(1,3-Benzodioxol-5-yl)-2-(isopropylamino)butan-1-one (also known as N-isopropylbutylone or NiPB) [\[S 471/2025 wef 01/07/2025\]](#)
- (3) 1-(1,3-Benzodioxol-5-yl)-2-(methylamino)butan-1-one (also known as butylone)
- (4) 1-(1,3-Benzodioxol-5-yl)-2-(methylamino)pentan-1-one (also known as pentylone)
- (5) 1-(1,3-Benzodioxol-5-yl)-2-(methylamino)propan-1-one (also known as methylone or 3,4-methylenedioxy-N-methylcathinone)
- (6) 1-(1,3-Benzodioxol-5-yl)-2-(pyrrolidin-1-yl)butan-1-one (also known as MDPBP)
- (6A) 1-(1,3-Benzodioxol-5-yl)-2-(pyrrolidin-1-yl)hexan-1-one (also known as 3,4-Methylenedioxy- α -pyrrolidinohexanophenone or 3,4-MDPPH) [\[S 440/2022 wef 01/06/2022\]](#)
- (7) 1-(1,3-Benzodioxol-5-yl)-2-(pyrrolidin-1-yl)pentan-1-one (also known as 3,4-methylenedioxypyrovalerone or MDPV)
- (8) 1-(1,3-Benzodioxol-5-yl)-2-(pyrrolidin-1-yl)propan-1-one (also known as MDPPP)
- (8A) 2-(Benzylamino)-1-(4-methylphenyl)propan-1-one (also known as Benzedrone)

- (8AA A) 1-(4-Bromophenyl)-2-(ethylamino)propan-1-one (also known as 4-Bromoethcathinone or 4-BEC)
- (8AA) 1-(4-Bromophenyl)-2-(methylamino)propan-1-one (also known as 4-Bromomethcathinone or Brepheдрone or 4-BMC)
- (8AA AA) 2-(Butylamino)-1-phenylhexan-1-one (also known as N-Butylhexedrone or α -Butylaminohexanophenone)
- [S 440/2022 wef 01/06/2022]*
- (8AA B) 1-(4-Chlorophenyl)-2-(dimethylamino)propan-1-one (also known as 4-Chloro-N,N-dimethylcathinone)
- (8AB) 1-(4-Chlorophenyl)-2-(ethylamino)propan-1-one (also known as 4-Chloroethcathinone or 4-CEC)
- (8AC) 1-(3-Chlorophenyl)-2-(methylamino)propan-1-one (also known as 3-chloromethcathinone or 3-CMC)
- [S 431/2024 wef 01/06/2024]*
- (8B) 1-(4-Chlorophenyl)-2-(methylamino)propan-1-one (also known as 4-Chloromethcathinone or Clephedrone or 4-CMC)
- (8C) 2-(Diethylamino)-1-phenyl-1-propanone (also known as amfepramone or diethylpropion or diethylcathinone)
- (9) 2-(Dimethylamino)-1-phenylpropan-1-one (also known as metamfepramone or dimethylcathinone)
- (10) 1-(3,4-Dimethylphenyl)-2-(methylamino)propan-1-one (also known as 3,4-Dimethylmethcathinone or 3,4-DMMC)
- (10A) 2-(Ethylamino)-1-(4-ethylphenyl)propan-1-one (also known as 4-Ethylethcathinone)
- (10B) 2-(Ethylamino)-1-(4-fluorophenyl)propan-1-one (also known as 4-Fluoroethcathinone or 4-FEC)
- (10C) 2-(Ethylamino)-1-(4-methylphenyl)pentan-1-one (also known as 4-Methyl- α -ethylaminopentiophenone or 4-MEAPP)
- (11) 2-(Ethylamino)-1-(4-methylphenyl)propan-1-one (also known as 4-Methylethcathinone or 4-MEC)
- (12) 2-(Ethylamino)-1-phenylbutan-1-one (also known as N-ethylbuphedrone)
- (12A) 2-(Ethylamino)-1-phenylhexan-1-one (also known as N-Ethylhexedrone or Ethylhexedrone)
- (13) 2-(Ethylamino)-1-phenylpentan-1-one (also known as α -Ethylaminopentiophenone or N-Ethylpentedrone)
- (14) 2-(Ethylamino)-1-phenylpropan-1-one (also known as ethcathinone)
- (14A) 1-(4-Ethylphenyl)-2-(methylamino)propan-1-one (also known as 4-Ethylmethcathinone or 4-EMC)
- (14B) 1-(4-Fluoro-3-methylphenyl)-2-(pyrrolidin-1-yl)pentan-1-one (also known as

- 4-Fluoro-3-methyl- α -pyrrolidinopentiophenone or 4-Fluoro-3-methyl- α -PVP)
- (15) 1-(4-Fluorophenyl)-2-(methylamino)propan-1-one (also known as 4-Fluoromethcathinone or Flephedrone or 4-FMC)
- (15A) 1-(4-Fluorophenyl)-2-(pyrrolidin-1-yl)hexan-1-one (also known as 4-Fluoro-PHP)
A)
- (15A) 1-(4-Fluorophenyl)-2-(pyrrolidin-1-yl)pentan-1-one (also known as 4-Fluoro- α -PVP)
- (16) 1-(4-Methoxyphenyl)-2-(methylamino)propan-1-one (also known as 4-Methoxymethcathinone or Methedrone or bk-PMMA or PMMC)
- (17) 1-(4-Methoxyphenyl)-2-(pyrrolidin-1-yl)propan-1-one (also known as MOPPP)
- (17A) 4-Methyl-1-phenyl-2-(pyrrolidin-1-yl)pentan-1-one (also known as α -PiHP or α -pyrrolidinoisohexanophenone)
A)
- [S 453/2023 wef 01/07/2023]*
- (17A) 2-(Methylamino)-1-(4-methylphenyl)butan-1-one (also known as 4-Methylbuphedrone or 4-Me-MABP)
- (18) 2-(Methylamino)-1-phenylbutan-1-one (also known as buphedrone)
- (19) 2-(Methylamino)-1-phenylpentan-1-one (also known as pentedrone or α -Methylaminovalerophenone)
- (20) 2-(Methylamino)-1-phenylpropan-1-one (also known as methcathinone)
- (20A) 1-(3-Methylphenyl)-2-(methylamino)propan-1-one (also known as 3-methylmethcathinone, metaphedrone or 3-MMC)
- [S 453/2023 wef 01/07/2023]*
- (21) 1-(4-Methylphenyl)-2-(methylamino)propan-1-one (also known as 4-Methylmethcathinone or Mephedrone or 4-MMC)
- (22) 1-(4-Methylphenyl)-2-(pyrrolidin-1-yl)butan-1-one (also known as MPBP)
- (22A) 1-(4-Methylphenyl)-2-(pyrrolidin-1-yl)hexan-1-one (also known as 4-Methyl- α -pyrrolidinohexanophenone or MPHP)
- (23) 1-(4-Methylphenyl)-2-(pyrrolidin-1-yl)pentan-1-one (also known as pyrovalerone)
- (23A) 1-(4-Methylphenyl)-2-(pyrrolidin-1-yl)propan-1-one (also known as 4-Methyl- α -pyrrolidinopropiophenone or 4-MePPP)
- (24) 1-Phenyl-2-(pyrrolidin-1-yl)butan-1-one (also known as α -PBP)
- (24A) 1-Phenyl-2-(pyrrolidin-1-yl)hexan-1-one (also known as Alpha-Pyrrolidinohexiophenone or Alpha-PHP or α -PHP)
- (25) 1-Phenyl-2-(pyrrolidin-1-yl)pentan-1-one (also known as α -PVP)
- (26) 1-Phenyl-2-(pyrrolidin-1-yl)propan-1-one (also known as α -PPP)

17. Any compound that is structurally derived from 2-aminopropan-1-one by substitution at the 1-position with any monocyclic, or fused-polycyclic ring system (not being a phenyl ring or alkylenedioxyphenyl ring system), whether or not the compound is further modified in any of the

following ways:

- (a) substitution in the ring system to any extent with alkyl, alkoxy, haloalkyl, or halide substituents, whether or not further substituted in the ring system by one or more other univalent substituents;
- (b) substitution at the 3-position with an alkyl substituent; or
- (c) substitution at the 2-amino nitrogen atom with alkyl, cycloalkyl or dialkyl groups, or by inclusion of the 2-amino nitrogen atom in a cyclic structure,

[\[S 453/2023 wef 01/07/2023\]](#)

including any salt or stereoisomeric form of the above compounds, and any preparation or product containing the above compounds, for example:

- (1) 1-(Naphthalen-2-yl)-2-(pyrrolidin-1-yl)pentan-1-one (also known as naphyrone or naphthylpyrovalerone)
- (2) 2-(Pyrrolidin-1-yl)-1-(thiophen-2-yl)pentan-1-one (also known as α -Pyrrolidinopentiothiophenone or α -PVT)

18. The following compounds, including any salt or stereoisomeric form of such compounds, and any preparation or product containing such compounds:

- (1) 2-Amino-1-(4-bromo-2,5-dimethoxyphenyl)ethan-1-one (also known as bk-2C-B) and its bromo and dimethoxy positional isomers in the phenyl ring
- (1AA) N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-1H-indazole-3-carboxamide (also known as ADB-INACA or ADMB-INACA) and its N-(1-amino-1-oxohexan-2-yl) isomers
[\[S 431/2024 wef 01/06/2024\]](#)
- (1A) N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-5-bromo-1H-indazole-3-carboxamide (also known as ADB-5-Bromo-INACA) and its N-(1-amino-1-oxohexan-2-yl) isomers and their respective bromo positional isomers in the 6-membered ring of the indazole structure
[\[S 440/2022 wef 01/06/2022\]](#)
[\[S 453/2023 wef 01/07/2023\]](#)
- (2) 4-(2-Aminopropyl)benzofuran (also known as 4-APB)
- (3) 5-(2-Aminopropyl)benzofuran (also known as 5-APB)
- (4) 6-(2-Aminopropyl)benzofuran (also known as 6-APB or BenzoFury)
- (5) 7-(2-Aminopropyl)benzofuran (also known as 7-APB)
- (6) 4-(2-Aminopropyl)-2,3-dihydrobenzofuran (also known as 4-APDB)
- (7) 5-(2-Aminopropyl)-2,3-dihydrobenzofuran (also known as 5-APDB)
- (8) 6-(2-Aminopropyl)-2,3-dihydrobenzofuran (also known as 6-APDB)
- (9) 7-(2-Aminopropyl)-2,3-dihydrobenzofuran (also known as 7-APDB)
- (10) 1-(1-Benzofuran-5-yl)-N-ethylpropan-2-amine (also known as 5-EAPB) and its 4-yl, 6-yl and 7-yl isomers
- (11) 1-Benzyl-4-methylpiperazine (also known as Methylbenzylpiperazine or MBZP)
- (12) 2-Bis(4-fluorophenyl)methylsulfinyl-N-methylacetamide (also known as N-Methyl-4,4-

- difluoromodafinil or modafiendz) and its fluoro positional isomers in the phenyl rings
- (13) 2-(4-Bromo-2,5-dimethoxyphenyl)-N-(2-methoxybenzyl)ethanamine (also known as 25B-NBOMe) and its bromo, dimethoxy and methoxy positional isomers in the respective phenyl rings
 - (14) 2-N-[2-(4-Bromo-2,5-dimethoxyphenylethyl)aminomethyl]phenol (also known as 25B-NBOH) and its bromo, dimethoxy and hydroxy positional isomers in the respective phenyl rings
 - (15) 4-Bromo-N-[2-(dimethylamino)cyclohexyl]-benzamide (also known as Bromadoline or U-47931E) and its bromo positional isomers in the phenyl ring and diamino positional isomers in the cyclohexyl ring
 - (16) 4-Bromo-N-[2-(dimethylamino)cyclohexyl]-N-methyl-benzamide (also known as N-Methyl U-47931E or N-Methyl Bromadoline) and its bromo positional isomers in the phenyl ring and diamino positional isomers in the cyclohexyl ring
 - (16A) 1-(1-(1-(4-Bromophenyl)ethyl)-piperidin-4-yl)-1,3-dihydro-2H-benzimidazol-2-one (also known as Brorphine) and its bromo positional isomers in the phenyl ring

[\[S 440/2022 wef 01/06/2022\]](#)
[\[S 431/2024 wef 01/06/2024\]](#)
 - (16B) 2-(2-(4-Butoxybenzyl)-5-nitro-1H-benzo[d]imidazol-1-yl)-N,N-diethylethan-1-amine (also known as butonitazene or butoxynitazene) and its diethylamino and butoxy structural isomers and their respective butoxy positional isomers in the phenyl ring and nitro positional isomers in the 6-membered ring of the benzimidazole structure

[\[S 453/2023 wef 01/07/2023\]](#)
 - (17) 17-Carboxy-16,17-dihydromitragynine
 - (18) 16-Carboxymitragynine
 - (19) 1-(4-Chloro-2,5-dimethoxyphenyl)propan-2-amine (also known as 4-Chloro-2,5-dimethoxy- α -methylphenethylamine, 4-Chloro-2,5-dimethoxyamphetamine, DOC, 3C-C, 4-Cl-2,5-DMA or 4-Chloro-2,5-DMA) and its chloro and dimethoxy positional isomers in the phenyl ring
 - (20) 2-(4-Chloro-2,5-dimethoxyphenyl)ethanamine also known as 2C-C) and its chloro and dimethoxy positional isomers in the phenyl ring
 - (21) 2-(4-Chloro-2,5-dimethoxyphenyl)-N-(2-methoxybenzyl)ethanamine (also known as 25C-NBOMe) and its chloro, dimethoxy and methoxy positional isomers in the respective phenyl rings
 - (22) 2-N-[2-(4-Chloro-2,5-dimethoxyphenylethyl)aminomethyl]phenol (also known as 25C-NBOH) and its chloro, dimethoxy and hydroxy positional isomers in the respective phenyl rings
 - (22A) 5-(Cyclobutylmethyl)-2-(2-phenylpropan-2-yl)-pyrido[4,3-b]indol-1-one (also known as Cumyl-CB-MeGACLONE, Cumyl-CBMGACLONE, cumyl-cyclobutylmethyl-gammacarboline or SGT-273) and its phenylpropyl isomers

[\[S 453/2023 wef 01/07/2023\]](#)
 - (23) 1-Cyclohexyl-4-(1,2-diphenylethyl)piperazine (also known as MT-45)

- (23A) 2-(1-(Cyclohexylmethyl)-2-oxo-1,2-dihydro-3H-indol-3-ylidene)benzohydrazide (also known as N'-(1-(Cyclohexylmethyl)-2-oxoindolin-3-ylidene)benzohydrazide or BZO-CHMOXIZID)
[S 440/2022 wef 01/06/2022]
- (23AA) N-Cyclohexyl-2-(1-(4-hydroxypentyl)-1H-indol-3-yl)acetamide and its hydroxy positional isomers in the pentyl group
[S 453/2023 wef 01/07/2023]
- (23AB) N-Cyclohexyl-2-(1-pentyl-1H-indol-3-yl)acetamide (also known as CH-PIATA)
[S 453/2023 wef 01/07/2023]
- (24) 17-O-Desmethyl-16,17-dihydromitragynine
- (25) 9-O-Desmethylmitragynine
- (26) 3,4-Dibromo-N-methyl-N-(1-methyl-1-azaspiro[4.5]decan-6-yl)benzamide (also known as U-77891) and its dibromo positional isomers in the phenyl ring and their respective azaspiro[4.5]decanyl isomers
- (27) 3,4-Dichloromethylphenidate and its dichloro positional isomers in the phenyl ring (also known as 3,4-DCMP)
- (28) 3,4-Dichloro-N-{[1-(dimethylamino)cyclohexyl]methyl}benzamide (also known as AH-7921) and its dichloro positional isomers in the phenyl ring
- (29) 3,4-Dichloro-N-[2-(dimethylamino)cyclohexyl]-N-methylbenzamide (also known as U-47700) and its dichloro positional isomers in the phenyl ring and diamino positional isomers in the cyclohexyl ring
- (30) N,N-Diethyl-2-(2-(4-isopropoxybenzyl)-5-nitro-1H-benzo[d]imidazol-1-yl)ethan-1-amine (also known as Isotonitazene) and its diethylamino structural isomers and their respective isopropoxy positional isomers in the phenyl ring and nitro positional isomers in the 6-membered ring of the benzimidazole structure
- (30A) N,N-Diethyl-2-(2-(4-methoxybenzyl)-5-nitro-1H-benzo[d]imidazol-1-yl)ethan-1-amine (also known as Metonitazene) and its diethylamino structural isomers and their respective methoxy positional isomers in the phenyl ring and nitro positional isomers in the 6-membered ring of the benzimidazole structure
[S 440/2022 wef 01/06/2022]
- (30B) N,N-Diethyl-2-(2-(4-propoxybenzyl)-5-nitro-1H-benzo[d]imidazol-1-yl)ethan-1-amine (also known as protonitazene or propoxynitazene) and its diethylamino structural isomers and their respective propoxy positional isomers in the phenyl ring and nitro positional isomers in the 6-membered ring of the benzimidazole structure
[S 453/2023 wef 01/07/2023]
- (31) 2,3-Dihydro-1H-inden-2-amine (also known as 2-Aminoindane)
- (32) 6,7-Dihydro-5H-indeno[5,6-d][1,3]dioxol-6-amine (also known as 5,6-(methylenedioxy)-2-aminoindane or MDAI)
- (33) 2,3-Dihydro-5-iodo-1H-inden-2-amine (also known as 5-Iodo-2-aminoindane or 5-IAI)
- (34) [2,3-Dihydro-5-methyl-3-(morpholin-4-ylmethyl)pyrrolo[1,2,3-de]-1,4-benzoxazin-6-yl](naphthalen-1-yl)methanone

- (35) {4-[2,6-Dimethoxy-4-(2-methyloctan-2-yl)phenyl]-6,6-dimethyl-bicyclo[3.1.1]hept-2-en-2-yl}methanol
- (36) 2-(2,5-Dimethoxyphenyl)-N-(2-methoxybenzyl)ethanamine (also known as 25H-NBOMe) and its dimethoxy and methoxy positional isomers in the respective phenyl rings
- (37) 2-(2,5-Dimethoxyphenyl)ethanamine (also known as 2C-H) and its dimethoxy positional isomers in the phenyl ring
- (38) 2-N-[2-(2,5-Dimethoxyphenylethyl)aminomethyl]phenol (also known as 25H-NBOH) and its dimethoxy and hydroxy positional isomers in the respective phenyl rings
- (39) 6,6-Dimethyl-3-(2-methyloctan-2-yl)-6a,7,8,9,10,10a-hexahydro-6H-benzo[c]chromen-1,9-diol
- (40) N,N-Dimethyl-1-phenylpropan-2-amine (also known as N,N-dimethylamphetamine)
- (41) Diphenyl(pyrrolidin-2-yl)methanol (also known as diphenylprolinol)
- (42) 1-(1,2-Diphenylethyl)piperidine (also known as Diphenidine)
- (43) 2-Diphenylmethylpiperidine (also known as desoxypipradrol)
- (43AA) 2-(2-(4-Ethoxybenzyl)-1H-benzo[d]imidazol-1-yl)-N,N-diethylethan-1-amine (also known as etodesnitazene, etazene, etazen, etazone or desnitroetonitazene) and its diethylamino structural isomers and their respective ethoxy positional isomers in the phenyl ring
[S 453/2023 wef 01/07/2023]
- (43AA AA) 2-(4-Ethoxybenzyl)-5-nitro-1-(2-piperidin-1-ylethyl)-1H-benzo[d]imidazole (also known as etonitazepipne or N-piperidinyl etonitazene) and its ethoxy positional isomers in the phenyl ring and their respective nitro positional isomers in the 6-membered ring of the benzimidazole structure
[S 471/2025 wef 01/07/2025]
- (43AB) 2-(4-Ethoxybenzyl)-5-nitro-1-(2-pyrrolidin-1-ylethyl)-1H-benzimidazole (also known as etonitazepyne or N-pyrrolidino etonitazene) and its ethoxy positional isomers in the phenyl ring and their respective nitro positional isomers in the 6-membered ring of the benzimidazole structure
[S 453/2023 wef 01/07/2023]
- (43AC) 2-(4-Ethoxybenzyl)-N-ethyl-5-nitro-1H-benzimidazole-1-ethanamine (also known as N-desethyl etonitazene) and its ethylamino structural isomer and their respective ethoxy positional isomers in the phenyl ring and nitro positional isomers in the 6-membered ring of the benzimidazole structure
[S 321/2026 wef 01/06/2026]
- (43A) N-Ethyl-1-(3-fluorophenyl)propan-2-amine (also known as 3-Fluoroethamphetamine, 3-Fluoroethylamphetamine or 3-FEA) and its fluoro positional isomers in the phenyl ring
[S 440/2022 wef 01/06/2022]
- (43AA A) N-Ethyl-2-(2-(4-isopropoxybenzyl)-5-nitro-1H-benzo[d]imidazol-1-yl)ethan-1-amine (also known as norisotonitazene or N-desethyl isotonitazene) and its ethylamino and isopropoxy structural isomers and their respective isopropoxy positional isomers in the phenyl ring and nitro positional isomers in the 6-membered ring of the benzimidazole structure
[S 471/2025 wef 01/07/2025]

- (43B) N-Ethyl-1-(3-methoxyphenyl)-cyclohexanamine (also known as 3-Methoxyeticyclidine or 3-Methoxy-PCE or 3-MeO-PCE) and its methoxy positional isomers in the phenyl ring
[S 431/2024 wef 01/06/2024]
- (43C) 2-(Ethylamino)-2-(2-fluorophenyl)-cyclohexanone (also known as 2-fluorodeschloro-N-ethyl-ketamine, 2-FDCNEK, 2-fluoro-2-oxo PCE or 2-fluoro NENDCK) and its fluoro positional isomers in the phenyl ring
[S 431/2024 wef 01/06/2024]
- (44) 2-(Ethylamino)-2-phenyl-cyclohexan-1-one (also known as Deschloro-N-ethyl-ketamine)
- (45) Ethylphenidate
- (45A) 2-(2-(1-(4-Fluorobenzyl)-1H-(6-hydroxyindol)-3-yl)acetamido)-3,3-dimethylbutanamide and its N-(1-amino-1-oxohexan-2-yl) isomers and their respective fluoro positional isomers in the phenyl ring and hydroxy positional isomers in the 6-membered ring of the indole structure
[S 440/2022 wef 01/06/2022]
- (45B) 2-(2-(1-(4-Fluorobenzyl)-1H-indol-3-yl)acetamido)-3,3-dimethylbutanamide (also known as ADB-FUBIATA or FUB-ACADB or AD-18) and its N-(1-amino-1-oxohexan-2-yl) isomers and their respective fluoro positional isomers in the phenyl ring
[S 440/2022 wef 01/06/2022]
- (46) 2-Fluorodeschloroketamine (also known as 2-Fluoroketamine or 2-FDCK) and its fluoro positional isomers in the phenyl ring
- (47) 4-Fluoromethylphenidate and its fluoro positional isomers in the phenyl ring
- (47A) 2-(1-(5-Fluoropentyl)-2-oxo-1,2-dihydro-3H-indol-3-ylidene)benzohydrazide (also known as N'-(1-(5-Fluoropentyl)-2-oxoindolin-3-ylidene)benzohydrazide or 5-Fluoro-BZO-POXIZID or 5F-BZO-POXIZID or MDA-19 5-fluoropentyl analogue or 5F-MDA-19) and its fluoro positional isomers in the pentyl group
[S 440/2022 wef 01/06/2022]
- (48) 5-(5-Fluoropentyl)-2-(2-phenylpropan-2-yl)-pyrido[4,3-b]indol-1-one (also known as 2-Cumyl-5-(5-fluoropentyl)-gamma-carbolin-1-one or 5-Fluoro-cumyl-PEGACLONE) and its phenylpropyl isomers and their respective fluoro positional isomers in the pentyl group
- (49) 2-(3-Fluorophenyl)-3-methylmorpholine (also known as 3-Fluorophenmetrazine or 3F-phenmetrazine) and its fluoro positional isomers in the phenyl ring
- (50) 1-(4-Fluorophenyl)piperazine (also known as 4-Fluorophenylpiperazine or 4-FPP) and its fluoro positional isomers in the phenyl ring
- (51) 1-(4-Fluorophenyl)propan-2-amine (also known as 4-Fluoroamphetamine or 4-FA) and its fluoro positional isomers in the phenyl ring
- (51A) 2-(1-Hexyl-2-oxo-1,2-dihydro-3H-indol-3-ylidene)benzohydrazide (also known as N'-(1-Hexyl-2-oxoindolin-3-ylidene)benzohydrazide or BZO-HEXOXIZID or MDA-19)
[S 440/2022 wef 01/06/2022]
- (51B) N'-(1-Hexyl-2-oxoindolin-3-ylidene)-4-hydroxybenzohydrazide and its hydroxy positional isomers in the phenyl ring
[S 453/2023 wef 01/07/2023]

- (52) 1-Hydroxy-6,6-dimethyl-3-(2-methyloctan-2-yl)-6,6a,7,8,10,10a-hexahydro-9H-benzo[c]chromen-9-one
- (53) [9-Hydroxy-6-methyl-3-(5-phenylpentan-2-yl)oxy-5,6,6a,7,8,9,10,10a-octahydrophenanthridin-1-yl]acetate
- (54) 3-Hydroxy-2-[3-methyl-6-(2-propenyl)-cyclohex-2-en-1-yl]-5-pentyl-1,4-benzoquinone
- (54AA) N'-(1-(4-Hydroxycyclohexylmethyl)-2-oxoindolin-3-ylidene)benzohydrazide and its hydroxy positional isomers in the cyclohexyl group
[S 453/2023 wef 01/07/2023]
- (54A) 2-(1-(5-Hydroxyhexyl)-2-oxo-1,2-dihydro-3H-indol-3-ylidene)benzohydrazide (also known as N'-(1-(5-Hydroxyhexyl)-2-oxoindolin-3-ylidene)benzohydrazide) and its hydroxy positional isomers in the hexyl group
[S 440/2022 wef 01/06/2022]
- (55) 9-(Hydroxymethyl)-6,6-dimethyl-3-(2-methyloctan-2-yl)-6a,7,10,10a-tetrahydro-6H-benzo[c]chromen-1-ol (for example HU-210, HU-211)
- (56) 7-Hydroxymitragynine
- (56A) 2-(1-(5-Hydroxypentyl)-2-oxo-1,2-dihydro-3H-indol-3-ylidene)benzohydrazide (also known as N'-(1-(5-Hydroxypentyl)-2-oxoindolin-3-ylidene)benzohydrazide) and its hydroxy positional isomers in the pentyl group
[S 440/2022 wef 01/06/2022]
- (57) 5-(5-Hydroxypentyl)-2-(2-phenylpropan-2-yl)-pyrido[4,3-b]indol-1-one and its phenylpropyl isomers and their respective hydroxy positional isomers in the pentyl group
- (57A) 2-(1H-Indazole-3-carboxamido)-3,3-dimethylbutanoic acid and its hexanoic acid isomers
[S 431/2024 wef 01/06/2024]
- (58) 1-(1H-Indol-5-yl)propan-2-amine (also known as 5-IT) and its 4-yl, 6-yl and 7-yl isomers
- (59) 2-(4-Iodo-2,5-dimethoxyphenyl)-N-(2-methoxybenzyl)ethanamine (also known as 25I-NBOMe) and its dimethoxy, iodo and methoxy positional isomers in the respective phenyl rings
- (60) 2-(4-Iodo-2,5-dimethoxyphenyl)ethanamine (also known as 2C-I) and its dimethoxy and iodo positional isomers in the phenyl ring
- (61) 2-N-[2-(4-Iodo-2,5-dimethoxyphenylethyl)aminomethyl]phenol (also known as 25I-NBOH) and its dimethoxy, hydroxy and iodo positional isomers in the respective phenyl rings
- (62) 3-Methoxy-2-(methylamino)-1-(4-methylphenyl)propan-1-one (also known as Mexedrone) and its methyl positional isomers in the phenyl ring
- (62A) 2-(4-Methoxybenzyl)-5-nitro-1-(2-pyrrolidin-1-ylethyl)-1H-benzo[d]imidazole (also known as metonitazepyne or N-pyrrolidino metonitazene) and its methoxy positional isomers in the phenyl ring and their respective nitro positional isomers in the 6-membered ring of the benzimidazole structure
[S 471/2025 wef 01/07/2025]
- (63) N-[1-(3-Methoxyphenyl)cyclohexyl]-piperidine (also known as 3-Methoxyphencyclidine)

- or 3-Methoxy-PCP or 3-MeO-PCP) and its methoxy positional isomers in the phenyl ring
- (64) 2-(3-Methoxyphenyl)-2-(N-ethylamino)cyclohexanone (also known as methoxetamine)
 - (65) 1-[1-(2-Methoxyphenyl)-2-phenylethyl]piperidine (also known as 2-MeO-Diphenidine or 2-MXP or methoxphenidine) and its methoxy positional isomers in the phenyl ring
 - (66) N-Methyl-5-(2-aminopropyl)benzofuran (also known as 5-MAPB) and its 4-yl, 6-yl and 7-yl isomers
 - (67) N-Methyl-1-(4-fluorophenyl)propan-2-amine (also known as 4-Fluoromethamphetamine or 4-FMA) and its fluoro positional isomers in the phenyl ring
 - (67A) Methyl 2-(1H-indazole-3-carboxamido)-3,3-dimethylbutanoate (also known as MDMB-INACA) and its hexanoate isomers
[S 471/2025 wef 01/07/2025]
 - (67B) 2-(5-Methyl-1H-indazole-3-carboxamido)-3,3-dimethylbutanoic acid and its hexanoic acid isomers and their respective methyl positional isomers in the 6-membered ring of the indazole structure
[S 471/2025 wef 01/07/2025]
 - (68) N-Methyl-1-(4-methoxyphenyl)propan-2-amine (also known as 4-Methoxymethamphetamine or para-Methoxymethamphetamine or PMMA) and its methoxy positional isomers in the phenyl ring
 - (68A) Methyl 2-(5-methyl-1H-indazole-3-carboxamido)-3,3-dimethylbutanoate (also known as MDMB-5-Methyl-INACA or MDMB-5-Me-INACA) and its hexanoate isomers and their respective methyl positional isomers in the 6-membered ring of the indazole structure
[S 471/2025 wef 01/07/2025]
 - (69) 4-Methyl-5-(4-methylphenyl)-4,5-dihydro-1,3-oxazol-2-amine (also known as 4,4'-Dimethylaminorex, 4,4'-DMAR or para-methyl-4-methylaminorex) and its methyl positional isomers in the phenyl ring
 - (70) N-Methyl-1-(4-methylphenyl)propan-2-amine (also known as 4-Methylmethamphetamine or 4-MMA) and its methyl positional isomers in the phenyl ring
 - (70A) 1-(2-Methyl-4-(3-phenyl-prop-2-en-1-yl)-piperazin-1-yl)-1-butanone (also known as 2-methyl-AP-237 or 2-methyl buccinazine) and its methyl positional isomers in the piperaziny ring
[S 453/2023 wef 01/07/2023]
 - (71) (N-Methyl-4-phenylpiperidin-4-yl)propanoate (also known as 1-Methyl-4-phenyl-4-piperidinol propionate, desmethylprodine or MPPP)
 - (72) N-Methyl-1-(thiophen-2-yl)propan-2-amine (also known as methiopropamine) and its thiophen-3-yl isomer
 - (73) 1-(4-Methylbenzo-1,3-dioxol-6-yl)propan-2-amine (also known as 5-methyl-MDA or 5-methyl-3,4-methylenedioxyamphetamine)
 - (74) Mitragynine
 - (75) Naphthalen-1-yl(4-pentyloxynaphthalen-1-yl)methanone (also known as CB-13)
 - (75AA) 5-Nitro-2-(4-isopropoxybenzyl)-1-[2-(pyrrolidin-1-yl)ethyl]-1H-benzo[d]imidazole (also

known as N-pyrrolidino isotonitazene or isotonitazepyne) and its isopropoxy structural isomers and their respective isopropoxy positional isomers in the phenyl ring and nitro positional isomers in the 6-membered ring of the benzimidazole structure

[S 321/2026 wef 01/06/2026]

- (75A) 2-(1-Pentyl-2-oxo-1,2-dihydro-3H-indol-3-ylidene)benzohydrazide (also known as N'-(1-Pentyl-2-oxoindolin-3-ylidene)benzohydrazide or BZO-POXIZID or MDA-19 pentyl analogue or 5C-MDA-19)

[S 440/2022 wef 01/06/2022]

- (76) 2-Phenyl-2-(methylamino)cyclohexanone (also known as Deschloroketamine)

- (76A) 1-Phenyl-2-phenyl-2-(1-pyrrolidinyl)ethanone (also known as α -Pyrrolidino-2-phenylacetophenone or α -D2PV)

[S 440/2022 wef 01/06/2022]

- (77) 2-(2-Phenylpropan-2-yl)-5-pentyl-pyrido[4,3-b]indol-1-one (also known as 2-Cumyl-5-pentylgamma-carbolin-1-one or cumyl-PEGACLONE or SGT-151) and its phenylpropyl isomers

- (78) 5-[(2-Phenylpropan-2-yl)-pyrido[4,3-b]indol-1-one-yl]pentanoic acid and its phenylpropyl isomers

- (78A) 2-(4-Propoxybenzyl)-5-nitro-1-(2-pyrrolidin-1-ylethyl)-1H-benzo[d]imidazole (also known as protonitazepyne or N-pyrrolidino protonitazene) and its propoxy structural isomers and their respective propoxy positional isomers in the phenyl ring and nitro positional isomers in the 6-membered ring of the benzimidazole structure

[S 471/2025 wef 01/07/2025]

- (79) Salvinorin A

- (80) 2,4,5-Trimethoxy- α -methylphenethylamine (also known as 2,4,5-Trimethoxyamphetamine or TMA-2) and its trimethoxy positional isomers in the phenyl ring

19. Any compound (other than serotonin) structurally derived from 2-(1H-indol-3-yl)ethanamine (also known as tryptamine) by modification in any of the following ways:

- (a) substitution at the nitrogen atom of the side chain to any extent with alkyl or alkenyl substituents, or by inclusion of only the nitrogen atom of the side chain in a cyclic structure;
- (b) substitution at the carbon atom adjacent to the nitrogen atom of the side chain with alkyl or alkenyl substituents;
- (c) substitution in the 6-membered ring to any extent with alkyl, alkoxy, haloalkyl, hydroxy, thioalkyl, alkylenedioxy, halide or acetoxy substituents;
- (d) substitution at the 2-position of the tryptamine ring system with an alkyl substituent,

including any ether, salt or stereoisomeric form of any such compound, any preparation or product containing any such compound, and the following examples of such a compound:

- (1) 4-Acetoxy-N,N-diisopropyltryptamine (also known as 4-Acetoxy-DiPT or 4-AcO-DiPT)
- (2) 4-Acetoxy-N,N-dimethyltryptamine (also known as 4-Acetoxy-DMT or 4-AcO-DMT)
- (3) 5-Benzyloxytryptamine

- (4) 5-Bromo-N,N-dimethyltryptamine (also known as 5-Bromo-DMT)
 - (5) 5-Bromotryptamine
 - (6) 5-Chloro- α -methyltryptamine (also known as 5-Chloro-AMT)
 - (7) 5-Chlorotryptamine
 - (8) N,N-Diallyltryptamine
 - (9) N,N-Diethyltryptamine
 - (10) N,N-Diisopropyltryptamine
 - (10A) 5,6-Dimethoxy-N,N-diisopropyltryptamine (also known as 5,6-Dimethoxy-DiPT or 5,6-MeO-DiPT)
- [S 431/2024 wef 01/06/2024]*
- (11) N,N-Dimethyltryptamine
 - (12) N,N-Dipropyltryptamine
 - (13) Etryptamine
 - (14) 5-Fluoro-N,N-dimethyltryptamine (also known as 5-Fluoro-DMT)
 - (15) 5-Fluoro- α -methyltryptamine (also known as 5-Fluoro-AMT)
 - (16) 5-Fluorotryptamine
 - (17) 4-Hydroxy-N,N-diethyltryptamine (also known as 4-Hydroxy-DET or 4-HO-DET)
 - (18) 4-Hydroxy-N,N-diisopropyltryptamine (also known as 4-Hydroxy-DiPT or 4-HO-DiPT)
 - (19) 4-Hydroxy-N,N-dimethyltryptamine (also known as Psilocin)
 - (20) 4-Hydroxy-N-methyl-N-ethyltryptamine (also known as 4-Hydroxy-MET or 4-HO-MET)
 - (21) 4-Hydroxy-N-methyl-N-isopropyltryptamine (also known as 4-Hydroxy-MiPT or 4-HO-MiPT)
 - (22) 4-Hydroxy- α -methyltryptamine (also known as 4-Hydroxy-AMT or 4-HO-AMT)
 - (23) 5-Hydroxy-N-methyltryptamine (also known as 5-Hydroxy-NMT or 5-HO-NMT)
 - (24) 5-Hydroxy-N,N-dimethyltryptamine (also known as Bufotenine)
 - (25) 5-Methoxy-N,N-diallyltryptamine (also known as 5-Methoxy-DALT or 5-MeO-DALT)
 - (26) 5-Methoxy-N,N-diethyltryptamine (also known as 5-Methoxy-DET or 5-MeO-DET)
 - (27) 5-Methoxy-N,N-diisopropyltryptamine (also known as 5-Methoxy-DiPT or 5-MeO-DiPT)
 - (28) 5-Methoxy-N,N-dimethyltryptamine (also known as 5-Methoxy-DMT or 5-MeO-DMT)
 - (29) 5-Methoxy-N,N-dipropyltryptamine (also known as 5-Methoxy-DPT or 5-MeO-DPT)
 - (30) 5-Methoxy-N-ethyl-N-isopropyltryptamine (also known as 5-Methoxy-EiPT or 5-MeO-EiPT)

- (31) 5-Methoxy-N-ethyl-N-propyltryptamine (also known as 5-Methoxy-EPT or 5-MeO-EPT)
- (32) 5-Methoxy- α -ethyltryptamine (also known as 5-Methoxy-AET or 5-MeO-AET)
- (33) 5-Methoxy-N-methyl-N-isopropyltryptamine (also known as 5-Methoxy-MiPT or 5-MeO-MiPT)
- (34) 5-Methoxy- α -methyltryptamine (also known as 5-Methoxy-AMT or 5-MeO-AMT)
- (35) 5-Methoxy-N-methyltryptamine (also known as 5-Methoxy-NMT or 5-MeO-NMT)
- (36) 4-Methyl- α -ethyltryptamine (also known as 4-Methyl-AET)
- (36A) N-Methyl-N-isopropyltryptamine (also known as MiPT)
- (37) 5-Methyltryptamine
- (38) α -Methyltryptamine
- (39) N-Methyltryptamine

[S 321/2026 wef 01/06/2026]

20. Any compound structurally derived from indole-3-carboxaldehyde or indole-2-carboxaldehyde by substitution —

- (a) at the nitrogen atom of the indole ring with a type A substituent; and
- (b) at the hydrogen atom of the carboxaldehyde with a type B substituent,

whether or not the compound is further modified in any of the following ways:

- (c) substitution of the indole ring with a nitrogen heterocyclic analog;
- (d) substitution to the indole ring or its nitrogen heterocyclic analog to any extent;
- (e) substitution to the type B substituent to any extent,

including any salt or stereoisomeric form of the compound or derivative of the compound, any preparation or product containing the compound or derivative of the compound, and the following examples of such a compound or derivative:

- (1) [1-(5-Bromopent-1-yl)-1H-indazol-3-yl](naphthalene-1-yl)methanone (also known as 5-Bromo-THJ-018)
- (2) [1-(5-Bromopent-1-yl)-1H-indol-3-yl](2,2,3,3-tetramethylcyclopropyl)methanone (also known as 5-Bromo-UR-144)
- (3) [1-(5-Chloropent-1-yl)-1H-indazol-3-yl](naphthalen-1-yl)methanone (also known as 5-Chloro-THJ-018)
- (4) [1-(5-Chloropent-1-yl)-1H-indol-3-yl](2,2,3,3-tetramethylcyclopropyl)methanone (also known as 5-Chloro-UR-144)
- (5) [1-(4-Fluorobenzyl)-1H-indol-3-yl](2,2,3,3-tetramethylcyclopropyl)methanone (also known as FUB-144 or FUB-UR-144)
- (6) [1-(5-Fluoropent-1-yl)-1H-benzimidazol-2-yl](naphthalen-1-yl)methanone (also known as FUBIMINA)

- (7) [1-(5-Fluoropent-1-yl)-1H-indazol-3-yl](naphthalen-1-yl)methanone (also known as THJ-2201)
- (8) [1-(5-Fluoropent-1-yl)-1H-indol-3-yl](2,2,3,3-tetramethylcyclopropyl)methanone (also known as XLR-11 or 5-Fluoro-UR-144)
- (9) [1-(5-Hydroxypent-1-yl)-1H-indazol-3-yl](naphthalen-1-yl)methanone
- (10) [1-(5-Hydroxypent-1-yl)-1H-indol-3-yl](2,2,3,3-tetramethylcyclopropyl)methanone
- (11) [1-(5-Iodopent-1-yl)-1H-indazol-3-yl](naphthalen-1-yl)methanone (also known as 5-Iodo-THJ-018)
- (12) Naphthalen-1-yl[1-(pent-1-yl)-1H-indazol-3-yl]methanone (also known as THJ-018)
- (13) 5-[3-(1-Naphthoyl)-1H-indazol-1-yl]pentanoic acid
- (14) 5-[3-(1-Naphthoyl)-1H-indol-1-yl]pentanenitrile (also known as AM-2232)
- (15) (1-Pentyl-1H-indol-3-yl)(2,2,3,3-tetramethylcyclopropyl)methanone (also known as UR-144)
- (16) 5-[3-(2,2,3,3-Tetramethylcyclopropanecarbonyl)-1H-indol-1-yl]pentanoic acid
- (17) (1-Butyl-1H-indol-3-yl)(naphthalen-1-yl)methanone (also known as JWH-073)
- (18) (4-Chloronaphthalen-1-yl)(1-pentyl-1H-indol-3-yl)methanone (also known as JWH-398)
- (19) [1-(4-Chloropent-1-yl)-1H-indol-3-yl](naphthalen-1-yl)methanone (also known as 4-Chloro-AM-2201)
- (20) (4-Ethynaphthalen-1-yl)(1-pentyl-1H-indol-3-yl)methanone (also known as JWH-210)
- (21) [1-(5-Fluoropent-1-yl)-1H-indol-3-yl](4-methylnaphthalen-1-yl)methanone (also known as MAM-2201)
- (22) [1-(5-Fluoropent-1-yl)-1H-indol-3-yl](naphthalen-1-yl)methanone (also known as AM-2201)
- (23) [1-(4-Fluoropent-1-yl)-1H-indol-3-yl](naphthalen-1-yl)methanone (also known as 4-Fluoro-AM-2201)
- (24) [1-(5-Fluoropent-1-yl)-6-nitro-1H-indol-3-yl](naphthalen-1-yl)methanone (also known as AM-1235)
- (25) [1-(Heptan-2-yl)-2-methyl-1H-indol-3-yl](naphthalen-1-yl)methanone (also known as JWH-011)
- (26) (1-Heptyl-1H-indol-3-yl)(naphthalen-1-yl)methanone (also known as JWH-020)
- (27) (1-Hexyl-1H-indol-3-yl)(naphthalen-1-yl)methanone (also known as JWH-019)
- (28) (4-Methoxynaphthalen-1-yl)(1-pentyl-1H-indol-3-yl)methanone (also known as JWH-081)
- (29) (2-Methyl-1-propyl-1H-indol-3-yl)(naphthalen-1-yl)methanone (also known as JWH-015)
- (30) (4-Methylnaphthalen-1-yl)(1-pentyl-1H-indol-3-yl)methanone (also known as JWH-122)
- (31) {1-[(1-Methylpiperidin-2-yl)methyl]-1H-indol-3-yl}(naphthalen-1-yl)methanone (also

known as AM-1220)

- (32) {1-[2-(Morpholin-4-yl)ethyl]-1H-indol-3-yl}(naphthalen-1-yl)methanone (also known as JWH-200)
- (33) Naphthalen-1-yl[1-(pent-4-en-1-yl)-1H-indol-3-yl]methanone (also known as JWH-022)
- (34) Naphthalen-1-yl(1-pentyl-1H-indol-3-yl)methanone (also known as JWH-018)
- (35) Naphthalen-1-yl(1-propyl-1H-indol-3-yl)methanone (also known as JWH-072)
- (36) 2-(2-Chlorophenyl)-1-(1-pentyl-1H-indol-3-yl)ethanone (also known as JWH-203)
- (37) 1-[1-(2-Cyclohexylethyl)-1H-indol-3-yl]-2-(2-methoxyphenyl)ethanone (also known as RCS-8)
- (38) 2-(2-Methoxyphenyl)-1-{1-[(1-methylpiperidin-2-yl)methyl]-1H-indol-3-yl}ethanone (also known as cannabipiperidiethanone)
- (39) 2-(2-Methoxyphenyl)-1-(1-pentyl-1H-indol-3-yl)ethanone (also known as JWH-250)
- (40) 2-(3-Methoxyphenyl)-1-(1-pentyl-1H-indol-3-yl)ethanone (also known as JWH-302)
- (41) 2-(4-Methoxyphenyl)-1-(1-pentyl-1H-indol-3-yl)ethanone (also known as JWH-201)
- (42) 2-(2-Methylphenyl)-1-(1-pentyl-1H-indol-3-yl)ethanone (also known as JWH-251)
- (43) [1-(5-Fluoropentyl)-1H-indol-3-yl](2-iodophenyl)methanone (also known as AM-694)
- (44) (2-Iodo-5-nitrophenyl){1-[(1-methylpiperidin-2-yl)methyl]-1H-indol-3-yl}methanone (also known as AM-1241)
- (45) (2-Iodophenyl){1-[(1-methylpiperidin-2-yl)methyl]-1H-indol-3-yl}methanone (also known as AM-2233)
- (46) (2-Iodophenyl)(1-pentyl-1H-indol-3-yl)methanone (also known as AM-679)
- (47) (4-Methoxyphenyl){2-methyl-1-[2-(morpholin-4-yl)ethyl]-1H-indol-3-yl}methanone (also known as pravadoline)
- (48) (4-Methoxyphenyl)(1-pentyl-1H-indol-3-yl)methanone (also known as RCS-4)
- (49) 1-Adamantyl{1-[(1-methylpiperidin-2-yl)methyl]-1H-indol-3-yl}methanone (also known as AM-1248)
- (50) 1-Adamantyl(1-pentyl-1H-indol-3-yl)methanone (also known as AB-001)
- (51) (1-(Pent-4-en-1-yl)-1H-indol-3-yl)(2,2,3,3-tetramethylcyclopropyl)methanone (also known as XLR-11 N-(4-pentenyl) analogue or UR-144 N-(4-pentenyl) analogue)

[S 440/2022 wef 01/06/2022]

21. Any compound structurally derived from indole-3-carboxamide or indole-2-carboxamide by substitution —

- (a) at the nitrogen atom of the indole ring with a type A substituent; and
- (b) at any hydrogen atom of the carboxamide with a type B substituent,

whether or not the compound is further modified in any of the following ways:

- (c) substitution of the indole ring with a nitrogen heterocyclic analog;
- (d) substitution to the indole ring or its nitrogen heterocyclic analog to any extent;
- (e) substitution to the type B substituent to any extent,

including any salt or stereoisomeric form of the compound or derivative of the compound, any preparation or product containing the compound or derivative of the compound, and the following examples of such a compound or derivative:

- (1) N-(1-Adamantyl)-1-(5-bromopentyl)-1H-indazole-3-carboxamide (also known as 5-Bromo-APINACA or 5-Bromo-AKB48)
 - (2) N-(1-Adamantyl)-1-(5-chloropentyl)-1H-indazole-3-carboxamide (also known as 5-Chloro-APINACA or 5-Chloro-AKB48)
 - (3) N-(1-Adamantyl)-1-(cyclohexylmethyl)-1H-indazole-3-carboxamide (also known as Adamantyl CHMINACA or SGT-37)
 - (4) N-(1-Adamantyl)-1-(5-hydroxypentyl)-1H-indazole-3-carboxamide
 - (5) N-(1-Adamantyl)-1-(4-fluorobenzyl)-1H-indazole-3-carboxamide (also known as FUB-APINACA or FUB-AKB48)
 - (5A) N-(1-Adamantyl)-1-(4-fluorobutyl)-1H-indazole-3-carboxamide (also known as 4-Fluoro-ABUTINACA or 4F-ABUTINACA or 4-Fluoro ABINACA)
 - (6) N-(1-Adamantyl)-1-(5-fluoropentyl)-1H-indazole-3-carboxamide (also known as 5-Fluoro-APINACA or 5F-AKB48)
 - (7) N-(1-Adamantyl)-1-(5-fluoropentyl)-1H-indole-3-carboxamide (also known as 5-Fluoro-APICA or STS-135)
 - (7A) N-(1-Adamantyl)-4-hydroxybutyl-1H-indazole-3-carboxamide
 - (8) N-(1-Adamantyl)-1-pentyl-1H-indazole-3-carboxamide (also known as APINACA)
 - (9) N-(1-Adamantyl)-1-pentyl-1H-indole-3-carboxamide (also known as APICA)
 - (10) N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-1-(cyclohexylmethyl)-1H-indazole-3-carboxamide (also known as MAB-CHMINACA or ADB-CHMINACA)
 - (10A) N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-1-(4,5-dihydroxypentyl)-1H-indazole-3-carboxamide
- [S 431/2024 wef 01/06/2024]*
- (11) N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-1-(4-fluorobenzyl)-1H-indazole-3-carboxamide (also known as N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-1-[(4-fluorophenyl)methyl]-1H-indazole-3-carboxamide or ADB-FUBINACA)
 - (12) N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-1-(5-fluoropentyl)-1H-indazole-3-carboxamide (also known as 5-Fluoro-ADB-PINACA)
 - (13) N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-1-(5-fluoropentyl)-1H-indole-3-carboxamide (also known as 5-Fluoro-ADBICA)
 - (13A) N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-1-(4-hydroxycyclohexylmethyl)-1H-indazole-3-

carboxamide

[\[S 431/2024 wef 01/06/2024\]](#)

- (13B) N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-1-(pent-4-en-1-yl)-1H-indazole-3-carboxamide (also known as ADB-4en-PINACA, ADMB-4en-PINACA or ADB-PENINACA)
[\[S 431/2024 wef 01/06/2024\]](#)
- (14) N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-1-pentyl-1H-indazole-3-carboxamide (also known as ADB-PINACA)
- (15) N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-1-pentyl-1H-indole-3-carboxamide (also known as ADBICA)
- (15A) 4-{3-[(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)carbamoyl]-1H-indazole-1-yl}butanoic acid
- (16) N-(1-Amino-3-methyl-1-oxobutan-2-yl)-1-(5-chloropentyl)-1H-indazole-3-carboxamide (also known as 5-Chloro-AB-PINACA)
- (17) N-(1-Amino-3-methyl-1-oxobutan-2-yl)-1-(cyclohexylmethyl)-1H-indazole-3-carboxamide (also known as AB-CHMINACA)
- (18) N-(1-Amino-3-methyl-1-oxobutan-2-yl)-1-(4-fluorobenzyl)-1H-indazole-3-carboxamide (also known as N-[1-amino-3-methyl-1-oxobutan-2-yl]-1-[(4-fluorophenyl)methyl]-1H-indazole-3-carboxamide or AB-FUBINACA)
- (19) N-(1-Amino-3-methyl-1-oxobutan-2-yl)-1-(4-fluorobenzyl)-1H-indole-3-carboxamide (also known as AB-FUBICA)
- (20) N-(1-Amino-3-methyl-1-oxobutan-2-yl)-1-(5-fluoropentyl)-1H-indazole-3-carboxamide (also known as 5-Fluoro-AB-PINACA)
- (21) N-(1-Amino-3-methyl-1-oxobutan-2-yl)-1-pentyl-1H-indazole-3-carboxamide (also known as AB-PINACA)
- (22) N-(1-Amino-1-oxo-3-phenylpropan-2-yl)-1-(cyclohexylmethyl)-1H-indazole-3-carboxamide (also known as PX-3 or APP-CHMINACA)
- (23) N-(1-Amino-1-oxo-3-phenylpropan-2-yl)-1-(5-fluoropentyl)-1H-indazole-3-carboxamide (also known as PX-2 or 5-Fluoro-APP-PINACA)
- (24) N-(1-Amino-1-oxo-3-phenylpropan-2-yl)-1-(5-fluoropentyl)-1H-indole-3-carboxamide (also known as PX-1 or 5-Fluoro-APP-PICA)
- (24A) 2-[1-(Cyclohexylmethyl)-1H-indazole-3-carboxamido]-3-methylbutanoic acid
[\[S 471/2025 wef 01/07/2025\]](#)
- (25) Ethyl 2-[1-(4-fluorobenzyl)-1H-indazole-3-carboxamido]-3-methylbutanoate (also known as EMB-FUBINACA or AEB-FUBINACA or FUB-AEB)
- (26) Ethyl 2-[1-(5-fluoropentyl)-1H-indazole-3-carboxamido]-3,3-dimethylbutanoate (also known as 5-Fluoro-EDMB-PINACA)
- (27) Ethyl 2-[1-(5-fluoropentyl)-1H-indazole-3-carboxamido]-3-methylbutanoate (also known as 5-Fluoro-AEB or 5-Fluoro-EMB-PINACA)
- (28) 2-[1-(4-Fluorobenzyl)-1H-indazole-3-carboxamido]-3,3-dimethylbutanoic acid

- (29) 2-[1-(4-Fluorobenzyl)-1H-indazole-3-carboxamido]-3-methylbutanoic acid
- (30) 2-[1-(4-Fluorobenzyl)-1H-indole-3-carboxamido]-3-methylbutanoic acid
- (31) 2-[1-(4-Fluorobutyl)-1H-indazole-3-carboxamido]-3,3-dimethylbutanoic acid
- (31A) 2-[1-(4-Fluorobutyl)-1H-indole-3-carboxamido]-3,3-dimethylbutanoic acid
- (32) 5-Fluoropent-1-yl-N-naphthalen-1-yl-1H-indole-3-carboxamide (also known as CBM-2201, 5-Fluoro-NNEI, 5F-NNEI or MN-24F)
- (33) 1-(5-Fluoropentyl)-N-(2-phenylpropan-2-yl)-1H-indole-3-carboxamide (also known as 5-Fluoro-cumyl-PICA)
- (34) 2-[1-(5-Fluoropentyl)-1H-indazole-3-carboxamido]-3,3-dimethylbutanoic acid
- (35) 2-[1-(5-Fluoropentyl)-1H-indole-3-carboxamido]-3,3-dimethylbutanoic acid
- (36) 2-[1-(5-Fluoropentyl)-1H-indazole-3-carboxamido]-3-methylbutanoic acid
- (36A) 2-[1-(5-Fluoropentyl)-1H-indole-3-carboxamido]-3-methylbutanoic acid
A) [\[S 440/2022 wef 01/06/2022\]](#)
- (36A) 2-[1-(5-Fluoropentyl)-1H-indole-3-carboxamido]-3-phenylpropanoic acid
- (36B) 1-(5-Hydroxypentyl)-N-(2-phenylpropan-2-yl)-1H-indazole-3-carboxamide
- (36C) Methyl 2-(1-butyl-1H-indazole-3-carboxamido)-3,3-dimethylbutanoate (also known as MDMB-BUTINACA or MDMB-BINACA)
[\[S 431/2024 wef 01/06/2024\]](#)
- (37) Methyl 2-[1-(cyclohexylmethyl)-1H-indazole-3-carboxamido]-3,3-dimethylbutanoate (also known as MDMB-CHMINACA)
- (38) Methyl 2-[1-(cyclohexylmethyl)-1H-indazole-3-carboxamido]-3-methylbutanoate (also known as MA-CHMINACA)
- (39) Methyl 2-[1-(cyclohexylmethyl)-1H-indole-3-carboxamido]-3,3-dimethylbutanoate (also known as Methyl N-([1-(cyclohexylmethyl)-1H-indol-3-yl]carbonyl)-3-methyl-L-valinate or MDMB-CHMICA)
- (40) Methyl 2-[1-(cyclohexylmethyl)-1H-indole-3-carboxamido]-3-methylbutanoate (also known as MMB-CHMICA)
- (41) Methyl 3,3-dimethyl-2-[1-(pent-4-en-1-yl)-1H-indazole-3-carboxamido]butanoate (also known as MDMB-4en-PINACA or MDMB-PINACA N1-pentyl-4-en isomer or MDMB(N)-022)
- (42) Methyl 2-[1-(4-fluorobenzyl)-1H-indazole-3-carboxamido]-3,3-dimethylbutanoate (also known as MDMB-FUBINACA)
- (43) Methyl 2-[1-(4-fluorobenzyl)-1H-indazole-3-carboxamido]-3-methylbutanoate (also known as Methyl 2-([1-(4-fluorophenyl)methyl]-1H-indazole-3-carbonyl)amino)-3-methylbutanoate or MMB-FUBINACA or AMB-FUBINACA or FUB-AMB)
- (44) Methyl 2-[1-(4-fluorobenzyl)-1H-indole-3-carboxamido]-3-methylbutanoate (also known as MMB-FUBICA or AMB-FUBICA)

- (45) Methyl 2-[1-(4-fluorobutyl)-1H-indazole-3-carboxamido]-3,3-dimethylbutanoate (also known as Methyl 2-[[1-(4-fluorobutyl)-1H-indazole-3-carbonyl]amino]-3,3-dimethylbutanoate, 4F-MDMB-BINACA, 4F-MDMB-BUTINACA or 4-Fluoro-MDMB-BINACA)
- (46) Methyl 2-[1-(5-fluoropentyl)-1H-indazole-3-carboxamido]-3,3-dimethylbutanoate (also known as 5-Fluoro-MDMB-PINACA or 5-Fluoro-ADB)
- (47) Methyl 2-[1-(5-fluoropentyl)-1H-indazole-3-carboxamido]-3-methylbutanoate (also known as Methyl 2-[[1-(5-fluoropentyl)-1H-indazole-3-carbonyl]amino]-3-methylbutanoate, 5F-AMP, 5-Fluoro-AMP, 5F-MMB-PINACA, 5F-AMB-PINACA, 5-Fluoro-AMB or 5-Fluoro-MMB-PINACA)
- (48) Methyl 2-[1-(5-fluoropentyl)-1H-indole-3-carboxamido]-3,3-dimethylbutanoate (also known as Methyl 2-[[1-(5-fluoropentyl)-1H-indole-3-carbonyl]amino]-3,3-dimethylbutanoate, 5F-MDMB-PICA, 5F-MDMB-2201, 5-Fluoro-MDMB-2201 or 5-Fluoro-MDMB-PICA)
- (49) Methyl 2-[1-(5-fluoropentyl)-1H-indole-3-carboxamido]-3-phenylpropanoate (also known as 5-Fluoro-MPP-PICA or 5-Fluoro-MPhP-PICA or MPPH-2201)
- (50) Methyl 2-[1-(4-hydroxybutyl)-1H-indazole-3-carboxamido]-3,3-dimethylbutanoate
- (51) Methyl 2-[1-(5-hydroxypentyl)-1H-indazole-3-carboxamido]-3,3-dimethylbutanoate
- (51A) Methyl 2-[1-(5-hydroxypentyl)-1H-indole-3-carboxamido]-3-phenylpropanoate
- (52) N-(1-Methyl-1-phenylethyl)-1-(4-cyanobutyl)-1H-indazole-3-carboxamide (also known as 1-(4-Cyanobutyl)-N-(2-phenylpropan-2-yl)-1H-indazole-3-carboxamide or Cumyl-4CN-BINACA or 4-Cyano cumyl-butinaca or SGT-78)
- (53) N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-1-butyl-1H-indazole-3-carboxamide (also known as 2-[(1-Butyl-1H-indazol-3-yl)formamido]-3,3-dimethylbutanamide or ADB-BUTINACA)
- (54) 1-Pentyl-N-(2-phenylpropan-2-yl)-1H-indole-3-carboxamide (also known as Cumyl-PICA)
- (54A) 4-{3-[(1-Adamantyl)carbamoyl]-1H-indazole-1-yl}butanoic acid [\[S 440/2022 wef 01/06/2022\]](#)
- (55) 5-{3-[(1-Adamantyl)carbamoyl]-1H-indazole-1-yl}pentanoic acid
- (56) 5-{3-[(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)carbamoyl]-1H-indazole-1-yl}pentanoic acid
- (57) 5-{3-[(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)carbamoyl]-1H-indole-1-yl}pentanoic acid
- (58) 5-{3-[(1-Amino-3-methyl-1-oxobutan-2-yl)carbamoyl]-1H-indazole-1-yl}pentanoic acid
- (59) 4-{3-[(2-Phenylpropan-2-yl)carbamoyl]-1H-indazole-1-yl}butanoic acid
- (60) 2-[1-(Pent-4-en-1-yl)-1H-indazole-3-carboxamido]-3,3-dimethylbutanoic acid
- (61) 2-[1-(4,5-Dihydroxypentyl)-1H-indazole-3-carboxamido]-3,3-dimethylbutanoic acid
- (62) 2-(1-Butyl-1H-indazole-3-carboxamido)-3,3-dimethylbutanoic acid
- (63) N-(1-Amino-3,3-dimethyl-1-oxobutan-2-yl)-1-(4-hydroxybutyl)-1H-indazole-3-carboxamide
- (64) 5-{3-[(2-Phenylpropan-2-yl)carbamoyl]-1H-indol-1-yl}pentanoic acid

- (65) 1-(5-Fluoropentyl)-N-(2-phenylpropan-2-yl)-1H-indazole-3-carboxamide (also known as 5-Fluoro-cumyl-PINACA)
- (66) Ethyl 2-[1-(5-fluoropentyl)-1H-indole-3-carboxamido]-3-methylbutanoate (also known as 5-Fluoro-EMB-PICA or EMB-2201)
- (67) Methyl 2-[1-(4-fluorobutyl)-1H-indole-3-carboxamido]-3,3-dimethylbutanoate (also known as Methyl 2-{{1-(4-fluorobutyl)-1H-indole-3-carbonyl}amino}-3,3-dimethylbutanoate, 4F-MDMB-BICA, 4F-MDMB-BUTICA or 4-Fluoro-MDMB-BUTICA)

22. Any compound structurally derived from indole-3-carboxylic acid or indole-2-carboxylic acid by substitution —

- (a) at the nitrogen atom of the indole ring with a type A substituent; and
- (b) at the hydrogen atom of the carboxylic acid with a type B substituent,

whether or not the compound is further modified in any of the following ways:

- (c) substitution of the indole ring with a nitrogen heterocyclic analog;
- (d) substitution to the indole ring or its nitrogen heterocyclic analog to any extent;
- (e) substitution to the type B substituent to any extent,

including any salt or stereoisomeric form of the compound or derivative of the compound, any preparation or product containing the compound or derivative of the compound, and the following examples of such a compound or derivative:

- (1) Naphthalen-1-yl 1-(5-fluoropentyl)-1H-indazole-3-carboxylate (also known as 5-Fluoro-SDB-005)
- (2) Naphthalen-1-yl 1-(5-fluoropentyl)-1H-indole-3-carboxylate (also known as NM-2201 or CBL-2201)
- (3) Naphthalen-1-yl 1-pentyl-1H-indazole-3-carboxylate (also known as SDB-005)
- (4) Quinolin-8-yl 1-(cyclohexylmethyl)-1H-indole-3-carboxylate (also known as BB-22 or QUCHIC)
- (5) Quinolin-8-yl 1-(5-fluoropentyl)-1H-indole-3-carboxylate (also known as 5-Fluoro-PB-22 or 5-Fluoro-QUPIC)
- (6) Quinolin-8-yl 1-pentyl-1H-indole-3-carboxylate (also known as PB-22 or QUPIC)

PART 2

CLASS B DRUGS

1. The following substances and products:

Acetyldihydrocodeine.

Nicodicodine.

Codeine.

Norcodeine.

Dextropropoxyphene.

Phencyclidine.

Dihydrocodeine.

Phenmetrazine.

Ethylmorphine (3-ethylmorphine).

Pholcodine.

Fenetylline.

Propiram.

Methylphenidate.

Zipeprol.

Nicocodine.

2. Any stereoisomeric form of a substance for the time being specified in paragraph 1.
3. Any salt of a substance for the time being specified in paragraph 1 or 2.
4. Any preparation or other product containing a substance or product for the time being specified in any of paragraphs 1, 2 and 3, not being a preparation falling within paragraph 6 of Part 1.

PART 3

CLASS C DRUGS

1. The following substances:

Benzphetamine.

Methaqualone.

Chlorphentermine.

Nimetazepam.

Flunitrazepam.

Phendimetrazine.

Mecloqualone.

Pipradrol.

Mephentermine.

Secobarbital.

Triazolam.

- 1A. With effect from 1 September 2025 to 30 April 2026 (both dates inclusive), the following substances:

Butyl 1-(1-phenylethyl)-1H-imidazole-5-carboxylate (also known as butomidate) and its butyl structural isomers (namely isobutomidate, sec-butomidate and tert-butomidate).

Etomidate.

Isopropyl 1-(1-phenylethyl)-1H-imidazole-5-carboxylate (also known as isopropoxate).

Metomidate.

Propyl 1-(1-phenylethyl)-1H-imidazole-5-carboxylate (also known as propoxate).

2,2,2-Trifluoroethyl 1-(1-phenylethyl)-1H-imidazole-5-carboxylate (also known as trifluoro-etomidate or TF-etomidate).

*[S 556/2025 wef 01/09/2025]
[S 76/2026 wef 28/02/2026]*

2. Any stereoisomeric form of a substance for the time being specified in paragraph 1 or 1A.
[S 556/2025 wef 01/09/2025]
3. Any salt of a substance for the time being specified in paragraph 1, 1A or 2.
[S 556/2025 wef 01/09/2025]
4. Any preparation or other product containing a substance for the time being specified in any of paragraphs 1, 1A, 2 and 3.
[S 556/2025 wef 01/09/2025]

PART 4

MEANING OF CERTAIN TERMS USED IN THIS SCHEDULE

For the purposes of this Schedule —

“cannabinol derivatives” means any of the following substances:

- (a) any tetrahydro or hexahydro derivative of cannabinol;
- (b) any carboxylic acid derivative of tetrahydro or hexahydro derivatives of cannabinol;
- (c) any 3-alkyl homologue of cannabinol;
- (d) any tetrahydro or hexahydro derivative of 3-alkyl homologues of cannabinol;
- (e) any compound structurally derived from a substance mentioned in paragraph (a), (b), (c) or (d) by substitution of any of the hydrogen atoms,

and the following examples of such a substance:

- (1) Delta-8-tetrahydrocannabinol
- (2) Delta-8-tetrahydrocannabinol acetate
- (3) Delta-9-tetrahydrocannabinol (also known as Tetrahydrocannabinol)
- (4) Delta-9-tetrahydrocannabinol acetate (also known as Tetrahydrocannabinol acetate)

- (5) 3-(1,2-Dimethylheptyl)-1-hydroxy-7,8,9,10-tetrahydro-6,6,9-trimethyl-6H-dibenzo[b,d]pyran (also known as Dimethylheptylpyran or DMHP)
- (6) Hexahydrocannabinol
- (7) 3-Hexyl-1-hydroxy-7,8,9,10-tetrahydro-6,6,9-trimethyl-6H-dibenzo[b,d]pyran (also known as Parahexyl)
- (8) 11-Nor-delta-8-tetrahydrocannabinol-9-carboxylic acid
- (9) 11-Nor-delta-9-tetrahydrocannabinol-9-carboxylic acid;

[S 471/2025 wef 01/07/2025]

“coca leaf” means the leaf of any plant of the genus *Erythroxylon* from whose leaves cocaine can be extracted either directly or by chemical transformation;

“concentrate of poppy-straw” means the material produced when poppy-straw has entered into a process for the concentration of its alkaloids;

“opium poppy” means any plant from which morphine may be produced;

“preparation” means a mixture, solid or liquid, containing a controlled drug;

“poppy-straw” means all parts, except the seeds, of the opium poppy, after mowing;

“type A substituent” means —

- (a) an alkyl group;
- (b) a cyanoalkyl group;
- (c) an alkenyl group;
- (d) a cycloalkylmethyl group;
- (e) a cycloalkylethyl group;
- (f) a 1-(N-methyl-2-piperidiny)methyl group;
- (g) a 2-(4-morpholinyl)ethyl group;
- (h) a 1-(N-methyl-2-pyrrolidiny)methyl group;
- (i) a 1-(N-methyl-3-morpholinyl)methyl group;
- (j) a tetrahydropyranylmethyl group;
- (k) an arylalkyl group; or

[S 453/2023 wef 01/07/2023]

- (l) a halogen, hydroxy and/or carboxylic acid derivative of any group mentioned in paragraphs (a) to (k);

“type B substituent” means —

- (a) an alkyl group;
- (b) an alkenyl group;

- (c) an alkylamido group;
- (d) an alkylcarboxylic acid group;
- (e) a phenyl group;
- (f) an arylalkyl group;

[S 453/2023 wef 01/07/2023]

- (g) a cycloalkyl group;
- (h) a cycloalkylmethyl group;
- (i) a cycloalkylethyl group;
- (j) an adamantyl group;
- (k) a naphthyl group;
- (l) a norbornyl group;
- (m) a 1,2,3,4-tetrahydronaphthyl group; or
- (n) a heterocyclic analog of any group mentioned in paragraphs (e) to (m).

*[30/2012; S 685/2010; S 272/2013; S 323/2014; S 572/2014; S 254/2015; S 200/2016; S 194/2017;
S 233/2018; S 587/2018; S 150/2019; S 354/2019; S 792/2019; S 349/2020; S 751/2020;
S 284/2021]*

[Act 12 of 2023 wef 01/06/2024]

SECOND SCHEDULE

Sections 2, 33(1), (2), (3), (3B) and (4D) and 33B(1)

OFFENCES PUNISHABLE ON CONVICTION

Section creating offence	General nature of offence	Punishment				
		Class A drug involved	Class B drug involved	Class C drug involved	Specified drug or quantity thereof or drug with specified content involved	General
5	(1) Unauthorised traffic in controlled drug except as otherwise provided in this Schedule	Maximum 20 years and 15 strokes	Maximum 20 years and 10 strokes	Maximum 10 years and 5 strokes	—	—
		Minimum 5 years and 5 strokes	Minimum 3 years and 3 strokes	Minimum 2 years and 2 strokes	—	—
	(2) Unauthorised traffic in opium where the quantity is — (a) not less than 800 grammes and not more than 1,200 grammes and containing not less	—	—	—	Maximum 30 years or imprisonment for life and 15 strokes	—

	than 20 grammes of morphine						
						Minimum 20 years and 15 strokes	—
	(b) more than 1,200 grammes and containing more than 30 grammes of morphine	—	—	—		Death	—
(3)	Unauthorised traffic in controlled drug (except opium) containing such quantity of morphine being —						
	(a) not less than 20 grammes and not more than 30 grammes	—	—	—		Maximum 30 years or imprisonment for life and 15 strokes	—
						Minimum 20 years and 15 strokes	—
	(b) more than 30 grammes	—	—	—		Death	—
(4)	Unauthorised traffic in controlled drug containing such quantity of diamorphine being —						
	(a) not less than	—	—	—		Maximum 30 years or	—

	10 grammes and not more than 15 grammes				imprisonment for life and 15 strokes	
	(b) more than 15 grammes	—	—	—	Minimum 20 years and 15 strokes	—
(5)	Unauthorised traffic in controlled drug containing such quantity of cocaine being —				Death	—
	(a) not less than 20 grammes and not more than 30 grammes	—	—	—	Maximum 30 years or imprisonment for life and 15 strokes	—
	(b) more than 30 grammes	—	—	—	Minimum 20 years and 15 strokes	—
(6)	Unauthorised traffic in cannabis where the quantity is —				Death	—
	(a) not less than 330 grammes and not more than 500 grammes	—	—	—	Maximum 30 years or imprisonment for life and 15 strokes	—

					Minimum 20 years and 15 strokes	—
	(b) more than 500 grammes	—	—	—	Death	—
(7)	Unauthorised traffic in cannabis mixture where the quantity is —					
	(a) not less than 660 grammes and not more than 1,000 grammes	—	—	—	Maximum 30 years or imprisonment for life and 15 strokes	—
	(b) more than 1,000 grammes	—	—	—	Minimum 20 years and 15 strokes	—
	(b) more than 1,000 grammes	—	—	—	Death	—
(8)	Unauthorised traffic in cannabis resin where the quantity is —					
	(a) not less than 130 grammes and not more than 200 grammes	—	—	—	Maximum 30 years or imprisonment for life and 15 strokes	—
	(b) more than 200 grammes	—	—	—	Minimum 20 years and 15 strokes	—
	(b) more than 200 grammes	—	—	—	Death	—

6	(9)	Unauthorised traffic in controlled drug containing such quantity of methamphetamine being —					
	(a)	not less than 167 grammes and not more than 250 grammes	—	—	—	Maximum 30 years or imprisonment for life and 15 strokes	—
						Minimum 20 years and 15 strokes	—
	(b)	more than 250 grammes	—	—	—	Death	—
	(1)	Unauthorised manufacture of controlled drug except as otherwise provided in this Schedule	Maximum 30 years or imprisonment for life and 15 strokes	Maximum 30 years or imprisonment for life and 15 strokes	Maximum 20 years and 15 strokes	—	—
			Minimum 10 years and 5 strokes	Minimum 10 years and 5 strokes	Minimum 5 years and 5 strokes	—	—
	(2)	Unauthorised manufacture of morphine, or any salt of morphine, ester of morphine or salt of ester of morphine	—	—	—	Death	—
	(3)	Unauthorised	—	—	—	Death	—

		manufacture of diamorphine or any salt of diamorphine					
	(4)	Unauthorised manufacture of cocaine or any salt of cocaine	—	—	—	Death	—
	(5)	Unauthorised manufacture of methamphetamine or any salt of methamphetamine	—	—	—	Death	—
7	(1)	Unauthorised import or export of controlled drug except as otherwise provided in this Schedule	Maximum 30 years or imprisonment for life and 15 strokes	Maximum 30 years or imprisonment for life and 15 strokes	Maximum 20 years and 15 strokes	—	—
			Minimum 5 years and 5 strokes	Minimum 5 years and 5 strokes	Minimum 3 years and 5 strokes	—	—
	(2)	Unauthorised import or export of opium where the quantity is —					
	(a)	not less than 800 grammes and not more than 1,200 grammes and containing not less than 20 grammes of morphine	—	—	—	Maximum 30 years or imprisonment for life and 15 strokes	—

					Minimum 20 years and 15 strokes	—
	(b) more than 1,200 grammes and containing more than 30 grammes of morphine	—	—	—	Death	—
	(3) Unauthorised import or export of controlled drug (except opium) containing such quantity of morphine being —					
	(a) not less than 20 grammes and not more than 30 grammes	—	—	—	Maximum 30 years or imprisonment for life and 15 strokes	—
					Minimum 20 years and 15 strokes	—
	(b) more than 30 grammes	—	—	—	Death	—
	(4) Unauthorised import or export of controlled drug containing such quantity of diamorphine being —					
	(a) not less than 10 grammes and not more than	—	—	—	Maximum 30 years or imprisonment for life and 15 strokes	—

	15 grammes						
	(b) more than 15 grammes	—	—	—	Minimum 20 years and 15 strokes	—	
(5)	Unauthorised import or export of controlled drug containing such quantity of cocaine being —				Death	—	
	(a) not less than 20 grammes and not more than 30 grammes	—	—	—	Maximum 30 years or imprisonment for life and 15 strokes	—	
	(b) more than 30 grammes	—	—	—	Minimum 20 years and 15 strokes	—	
(6)	Unauthorised import or export of cannabis where the quantity is —				Death	—	
	(a) not less than 330 grammes and not more than 500 grammes	—	—	—	Maximum 30 years or imprisonment for life and 15 strokes	—	
					Minimum 20 years and	—	

					15 strokes	
	(b) more than 500 grammes	—	—	—	Death	—
(7)	Unauthorised import or export of cannabis mixture where the quantity is —					
	(a) not less than 660 grammes and not more than 1,000 grammes	—	—	—	Maximum 30 years or imprisonment for life and 15 strokes	—
					Minimum 20 years and 15 strokes	—
	(b) more than 1,000 grammes	—	—	—	Death	—
(8)	Unauthorised import or export of cannabis resin where the quantity is —					
	(a) not less than 130 grammes and not more than 200 grammes	—	—	—	Maximum 30 years or imprisonment for life and 15 strokes	—
					Minimum 20 years and 15 strokes	—
	(b) more than 200 grammes	—	—	—	Death	—

	(9)	Unauthorised import or export of controlled drug containing such quantity of methamphetamine being —					
	(a)	not less than 167 grammes and not more than 250 grammes	—	—	—	Maximum 30 years or imprisonment for life and 15 strokes	—
						Minimum 20 years and 15 strokes	—
	(b)	more than 250 grammes	—	—	—	Death	—
8(a)	(1)	Unauthorised possession of cannabis where the quantity is —					
	(a)	less than 330 grammes	—	—	—	Maximum 10 years or \$20,000 or both (subject to section 33(3B))	—
	(b)	not less than 330 grammes and not more than 500 grammes	—	—	—	Maximum 20 years and 10 strokes	—
						Minimum 10 years and 5 strokes	

	(c)	more than 500 grammes	—	—	—	Maximum 30 years and 15 strokes	—
	(2)	Unauthorised possession of cannabis mixture where the quantity is —				Minimum 20 years and 10 strokes	
	(a)	less than 660 grammes	—	—	—	Maximum 10 years or \$20,000 or both (subject to section 33(3B))	—
	(b)	not less than 660 grammes and not more than 1,000 grammes	—	—	—	Maximum 20 years and 10 strokes	—
						Minimum 10 years and 5 strokes	
	(c)	more than 1,000 grammes	—	—	—	Maximum 30 years and 15 strokes	—
						Minimum 20 years and 10 strokes	
	(3)	Unauthorised possession of cannabis resin where the quantity is —					
	(a)	less than 130 grammes	—	—	—	Maximum 10 years or \$20,000 or both	—

						(subject to section 33(3B))	
	(b)	not less than 130 grammes and not more than 200 grammes	—	—	—	Maximum 20 years and 10 strokes	—
						Minimum 10 years and 5 strokes	
	(c)	more than 200 grammes	—	—	—	Maximum 30 years and 15 strokes	—
						Minimum 20 years and 10 strokes	
	(4)	Unauthorised possession of controlled drug containing a quantity of cocaine that is —					
	(a)	less than 20 grammes	—	—	—	Maximum 10 years or \$20,000 or both (subject to section 33(3B))	—
	(b)	not less than 20 grammes and not more than 30 grammes	—	—	—	Maximum 20 years and 10 strokes	—
						Minimum 10 years and 5 strokes	

	(c)	more than 30 grammes	—	—	—	Maximum 30 years and 15 strokes	—
	(5)	Unauthorised possession of controlled drug containing a quantity of diamorphine that is —				Minimum 20 years and 10 strokes	
	(a)	less than 10 grammes	—	—	—	Maximum 10 years or \$20,000 or both (subject to section 33(3B))	—
	(b)	not less than 10 grammes and not more than 15 grammes	—	—	—	Maximum 20 years and 10 strokes	—
						Minimum 10 years and 5 strokes	
	(c)	more than 15 grammes	—	—	—	Maximum 30 years and 15 strokes	—
						Minimum 20 years and 10 strokes	
	(6)	Unauthorised possession of controlled drug containing a quantity of methamphetamine that is —					

	(a)	less than 167 grammes	—	—	—	Maximum 10 years or \$20,000 or both (subject to section 33(3B))	—
	(b)	not less than 167 grammes and not more than 250 grammes	—	—	—	Maximum 20 years and 10 strokes	—
	(c)	more than 250 grammes	—	—	—	Maximum 30 years and 15 strokes	—
	(7)	Unauthorised possession of controlled drug (except opium) containing a quantity of morphine that is —				Minimum 10 years and 5 strokes	
	(a)	less than 20 grammes	—	—	—	Maximum 10 years or \$20,000 or both (subject to section 33(3B))	—
	(b)	not less than 20 grammes and not more than 30 grammes	—	—	—	Maximum 20 years and 10 strokes	—

						Minimum 10 years and 5 strokes	
	(c)	more than 30 grammes	—	—	—	Maximum 30 years and 15 strokes	—
	(8)	Unauthorised possession of opium where the quantity is —				Minimum 20 years and 10 strokes	
	(a)	less than 800 grammes	—	—	—	Maximum 10 years or \$20,000 or both (subject to section 33(3B))	—
	(b)	not less than 800 grammes and not more than 1,200 grammes and containing not less than 20 grammes of morphine	—	—	—	Maximum 20 years and 10 strokes	—
						Minimum 10 years and 5 strokes	
	(c)	more than 1,200 grammes and containing more than 30 grammes of morphine	—	—	—	Maximum 30 years and 15 strokes	—

					Minimum 20 years and 10 strokes	
	(9) Unauthorised possession of a controlled drug except as otherwise provided in this Schedule	—	—	—	Maximum 10 years or \$20,000 or both (subject to section 33(3B))	—
8(b)	<i>[Deleted by Act 1 of 2019]</i>					
9	Possession of pipes, utensils, etc., for smoking, administration or consumption of a controlled drug	—	—	—	—	Maximum 3 years or \$10,000 or both
10	Cultivation of cannabis, opium, coca plant	—	—	—	—	Maximum 20 years or \$40,000 or both
						Minimum 3 years or \$5,000 or both
10A	Manufacture, supply, possession, import or export of equipment, materials or substances useful for manufacture of controlled drugs	—	—	—	—	Maximum 20 years or \$200,000 or both
11	Being the owner, tenant, occupier or person concerned in the management of premises and permitting or suffering certain activities to take place there	Maximum 10 years or \$40,000 or both	Maximum 10 years or \$40,000 or both	Maximum 5 years or \$10,000 or both	—	—

		Minimum 2 years or \$4,000 or both	Minimum 2 years or \$4,000 or both	Minimum 12 months or \$2,000 or both	—	—
11E	Causing or procuring young person or vulnerable person to commit certain offences	Maximum 30 years and 15 strokes	Maximum 30 years and 15 strokes	Maximum 20 years and 15 strokes	—	—
		Minimum 10 years and 10 strokes	Minimum 6 years and 6 strokes	Minimum 4 years and 4 strokes	—	—
13	<i>[Deleted by Act 1 of 2019]</i>					
30(1)(a)	Obstructing exercise of powers	—	—	—	—	Maximum 3 years or \$5,000 or both Minimum 6 months or \$1,000 or both
30(1)(b)	Failure to comply with lawful requirements	—	—	—	—	Maximum 3 years or \$5,000 or both Minimum 6 months or \$1,000 or both
30(1)(c)	Failure to furnish information	—	—	—	—	Maximum 3 years or \$5,000 or both Minimum 6 months or

						\$1,000 or both
30(1)(d)	Furnishing false information	—	—	—	—	Maximum 12 months or \$5,000 or both
31(2)	<i>[Deleted by Act 1 of 2019]</i>					
31(2A)	Failure to comply with order of Director for urine test	—	—	—	—	Maximum 4 years or \$10,000 or both
31A(2)	<i>[Deleted by Act 1 of 2019]</i>					
31A(2A)	Failure to comply with order of Director for hair test	—	—	—	—	Maximum 4 years or \$10,000 or both
31B(2)	Failure to provide oral fluid	—	—	—	—	Maximum 2 years or \$5,000 or both

*[30/2012; 1/2019]
[Act 12 of 2023 wef 01/06/2023]*

THIRD SCHEDULE

Sections 2 and 59

CONTROLLED EQUIPMENT, MATERIALS OR SUBSTANCES USEFUL FOR MANUFACTURING CONTROLLED DRUGS

PART 1

1. The following substances:

Acetic anhydride also known as Acetic oxide

Alpha-phenylacetoacetamide also known as APAA

Alpha-phenylacetoacetonitrile, also known as APAAN, and its optical isomers

N-acetylanthranilic acid also known as N-Acetyl-*o*-aminobenzoic acid

4-Anilino-N-phenethylpiperidine also known as ANPP

3-(1,3-Benzodioxol-5-yl)-2-methyl-2-oxiranecarboxylic acid also known as 3,4-MDP-2-P methyl glycidic acid or PMK glycidic acid

Butan-2-yl 2-methyl-3-phenyl-2-oxiranecarboxylate also known as P-2-P methyl glycidic acid, sec-butyl ester or sec-butyl 2-methyl-3-phenyl-2-oxiranecarboxylate

Butan-2-yl 3-(1,3-benzodioxol-5-yl)-2-methyl-2-oxiranecarboxylate also known as 3,4-MDP-2-P methyl glycidic acid, sec-butyl ester or sec-butyl 3-(1,3-benzodioxol-5-yl)-2-methyl-2-oxiranecarboxylate

Butyl 2-methyl-3-phenyl-2-oxiranecarboxylate also known as P-2-P methyl glycidic acid, butyl ester

Butyl 3-(1,3-benzodioxol-5-yl)-2-methyl-2-oxiranecarboxylate also known as 3,4-MDP-2-P methyl glycidic acid, butyl ester

Ephedrine also known as β -Hydroxy-N-methylamphetamine

Ergometrine also known as Ergonovine or Ergobasine or [8 β (S)]-9,10-Didehydro-N-(2-hydroxy-1-methylethyl)-6-methyl-6-methylergoline-8-carboxamide

Ergotamine also known as 12'-Hydroxy-2'-methyl-5' α -(phenymethyl) ergotaman-3',6',18'-trinone

Ethyl 2-methyl-3-phenyl-2-oxiranecarboxylate also known as P-2-P methyl glycidic

acid, ethyl ester

Ethyl 3-(1,3-benzodioxol-5-yl)-2-methyl-2-oxiranecarboxylate also known as 3,4-MDP-2-P methyl glycidic acid, ethyl ester

Isopropyl 2-methyl-3-phenyl-2-oxiranecarboxylate also known as P-2-P methyl glycidic acid, isopropyl ester

Isopropyl 3-(1,3-benzodioxol-5-yl)-2-methyl-2-oxiranecarboxylate also known as 3,4-MDP-2-P methyl glycidic acid, isopropyl ester

Isosafrole also known as 1,2-(Methylenedioxy)-4-propenylbenzene

Lysergic acid also known as 9,10-Didehydro-6-methylergoline-8 β -carboxylic acid

Methyl alpha-phenylacetoacetate (also known as MAPA)

Methyl 2-methyl-3-phenyl-2-oxiranecarboxylate also known as P-2-P methyl glycidic acid, methyl ester

Methyl 3-(1,3-benzodioxol-5-yl)-2-methyl-2-oxiranecarboxylate also known as 3,4-MDP-2-P methyl glycidate or PMK glycidate

3,4-methylenedioxyphenyl-2-propanone

2-Methyl-3-phenyl-2-oxiranecarboxylic acid also known as P-2-P methyl glycidic acid or BMK glycidic acid

2-Methylpropyl 2-methyl-3-phenyl-2-oxiranecarboxylate also known as P-2-P methyl glycidic acid, isobutyl ester or isobutyl 2-methyl-3-phenyl-2-oxiranecarboxylate

2-Methylpropyl 3-(1,3-benzodioxol-5-yl)-2-methyl-2-oxiranecarboxylate also known as 3,4-MDP-2-P methyl glycidic acid, isobutyl ester or isobutyl 3-(1,3-benzodioxol-5-yl)-2-methyl-2-oxiranecarboxylate

Norephedrine

Norpseudoephedrine

N-Phenethyl-4-piperidone also known as NPP

1-Phenyl-2-propanone also known as Phenylacetone

N-Phenyl-N-(piperidin-4-yl)propionamide (also known as norfentanyl)

N-Phenylpiperidin-4-amine (also known as 4-anilinopiperidine, N-phenyl-4-piperidinamine or 4-AP)

Phenylacetic acid also known as Benzeneacetic acid or α -Toluic acid

Piperidin-4-one also known as 4-Piperidone

Piperonal also known as 3,4-(Methylenedioxy)benzaldehyde or Piperonylaldehyde

Potassium permanganate

Propyl 2-methyl-3-phenyl-2-oxiranecarboxylate also known as P-2-P methyl glycidic acid, propyl ester

Propyl 3-(1,3-benzodioxol-5-yl)-2-methyl-2-oxiranecarboxylate also known as 3,4-MDP-2-P methyl glycidic acid, propyl ester

Pseudoephedrine also known as β -Hydroxy-N-methylamphetamine

Safrole also known as 4-Allyl-1,2-methylenedioxybenzene

tert-Butyl 2-methyl-3-phenyl-2-oxiranecarboxylate also known as P-2-P methyl glycidic acid, tert-butyl ester

tert-Butyl 3-(1,3-benzodioxol-5-yl)-2-methyl-2-oxiranecarboxylate also known as 3,4-MDP-2-P methyl glycidic acid, tert-butyl ester

tert-Butyl 4-oxo-1-piperidinecarboxylate also known as 1-Boc-4-piperidone

tert-Butyl 4-(phenylamino)piperidine-1-carboxylate (also known as 4-anilino-1-boc-piperidine, 1-boc-4-anilinopiperidine, tert-butoxycarbonyl-4-anilinopiperidine, t-boc-4-anilinopiperidine, t-boc-4-AP, 1-boc-4-AP or boc-4-AP).

[\[S 926/2024 wef 01/12/2024\]](#)

[\[S 440/2022 wef 01/06/2022\]](#)

[\[S 431/2024 wef 01/06/2024\]](#)

2. The salts of the substances listed in paragraph 1 whenever the existence of such salts is possible.

3. Any substance which is a preparation or product containing ephedrine (also known as β -Hydroxy-N-methylamphetamine) or pseudoephedrine (also known as β -Hydroxy-N-methylamphetamine).

PART 2

1. The following substances:

Acetone also known as 2-Propanone or Dimethyl ketone

Anthranilic acid also known as *o*-Aminobenzoic acid

Ethyl ether also known as Ether or Diethyl ether or Ethyl oxide or Diethyl oxide or Ethoxyethane or 1,1'-Oxybisethane

Hydrochloric acid

Methyl ethyl ketone also known as 2-Butanone

Piperidine also known as Hexahydropyridine

Sulphuric acid

Toluene also known as Methylbenzene or Phenylmethane.

2. The salts of the substances listed in paragraph 1 whenever the existence of such salts is possible.
[S 272/2013; S 440/2014; S 572/2014; S 625/2017; S 354/2019; S 349/2020]

FOURTH SCHEDULE

Sections 2, 33A(5) and 59

SPECIFIED DRUGS

1. Amphetamine
2. N, α -Dimethyl-3,4-(methylenedioxy)phenethylamine (also known as 3,4-Methylenedioxymethamphetamine or MDMA)
- 2A. Buprenorphine
- 2B. Cannabinol
- 2C. Cannabinol derivatives as defined in Part 4 of the First Schedule
- 2D. Cannabis
- 2E. Cocaine
3. Diamorphine
- 3A. Ecgonine, and any derivative of ecgonine which is convertible to ecgonine or to cocaine
4. N-Ethyl- α -methyl-3,4-(methylenedioxy)phenethylamine (also known as MDEA)
5. Ketamine
6. Methamphetamine (also known as Methylamphetamine)
7. α -Methyl-3,4-(methylenedioxy)phenethylamine (also known as Tenamfetamine or MDA)

8. Monoacetylmorphine
9. Morphine
10. Nimetazepam
- 10A. Norbuprenorphine
11. Norketamine and its dehydro derivatives
12. Opium.

[S 323/2014; S 792/2019]

FIFTH SCHEDULE

Sections 2 and 59

PART 1

EXCLUDED SUBSTANCES

1. Any alcohol or alcoholic product.
 2. Any alkyl nitrites.
 3. Any chewing gum.
 4. Any controlled drug or controlled substance.
 5. Any food.
 6. Any health product.
 7. Any herbal medicine.
 8. Any industrial material or substance.
 9. Any intoxicating substance.
 10. Any medicinal product.
 11. Any poison.
 12. Any poppy seed.
 13. Any psychotropic substance.
 - 13A. Any specified psychoactive substance within the meaning given by section 2(1) of the Tobacco and Vapourisers Control Act 1993.
- [Act 9 of 2026 wef 01/05/2026]*
14. Any substance listed under any Schedule to the Single Convention on Narcotic Drugs of 1961, as amended by the 1972 Protocol or the Convention on Psychotropic Substances of 1971.

15. Any tobacco, tobacco product or tobacco substitute.

16. Caffeine or any caffeine product.

17. Nitrous oxide.

PART 2

INTERPRETATION

1. In this Schedule —

“alcoholic product” means any product that —

- (a) contains alcohol; but
- (b) does not contain any other psychoactive substance;

“caffeine product” means any product that —

- (a) contains caffeine; but
- (b) does not contain any other psychoactive substance;

“food” means any substance that —

- (a) is ordinarily consumed as food by humans or animals; but
- (b) does not contain any psychoactive substance that is not —
 - (i) naturally occurring in the substance; or
 - (ii) produced in the ordinary course of preparing or manufacturing that substance for consumption,

other than a food additive within the meaning of the Food Regulations (Rg 1);

“health product” has the meaning given by section 2(1) of the Health Products Act 2007;

“herbal medicine” has the meaning given by section 2 of the Traditional Chinese Medicine Practitioners Act 2000;

“industrial material or substance” means —

- (a) any flammable material specified in the Fourth Schedule to the Fire Safety (Petroleum and Flammable Materials) Regulations (Rg 7);
- (b) any substance specified in the first column of Part I of the Second Schedule to the Environmental Protection and Management Act 1999; or
- (c) any substance specified in the First Schedule to the Workplace Safety and Health (General Provisions) Regulations (Rg 1);

“intoxicating substance” has the meaning given by section 2 of the Intoxicating Substances Act 1987;

“medicinal product” has the meaning given by section 3 of the Medicines Act 1975;

“poison” has the meaning given by section 2 of the Poisons Act 1938;

“psychotropic substance” has the meaning given by regulation 2 of the Medicines (Export Licence for Psychotropic Substances) Regulations (Rg 9);

“tobacco product” means any product that —

(a) contains tobacco; but

(b) does not contain any other psychoactive substance;

“tobacco substitute” has the meaning given by section 2(1) of the Tobacco and Vapourisers Control Act 1993.

[Act 12 of 2023 wef 01/06/2024]

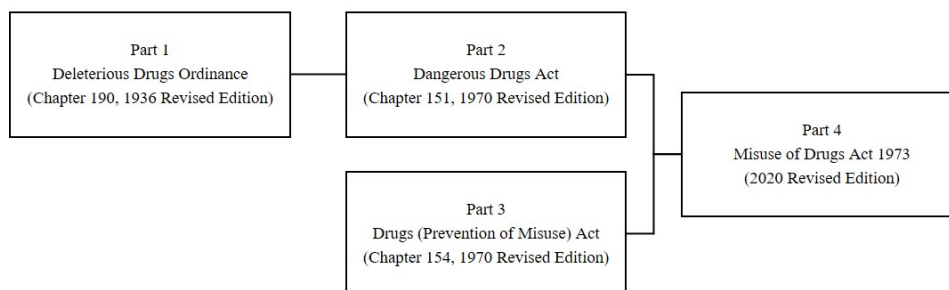
[Act 9 of 2026 wef 01/05/2026]

LEGISLATIVE HISTORY

MISUSE OF DRUGS ACT 1973

This Legislative History is a service provided by the Law Revision Commission on a best-efforts basis. It is not part of the Act.

Pictorial Overview of Predecessor Acts



Legislative History Details

PART 1 DELETERIOUS DRUGS ORDINANCE (CHAPTER 190, 1936 REVISED EDITION)

1. Ordinance VII of 1896—The Morphine Ordinance 1896

Bill	: G.N. No. 246/1896
First Reading	: 30 April 1896
Second Reading	: 7 May 1896

Third Reading : 4 June 1896

Commencement : 4 June 1896

2. Ordinance XV of 1903—The Morphine Ordinance 1903

Bill : G.N. No. 707/1903

First Reading : 19 June 1903

Second Reading : 26 June 1903

Notice of Amendments : 17 July 1903

Third Reading : 17 July 1903

Commencement : 1 January 1904

3. Ordinance XIV of 1904—The Morphine Ordinance 1904

Bill : G.N. No. 1023/1904

First Reading : 16 September 1904

Second Reading : 23 September 1904

Select Committee Report : Council Paper No. 32 of 1904

Notice of Amendments : 7 October 1904

Third Reading : 7 October 1904

Commencement : 7 October 1904

4. Ordinance XIV of 1907—The Deleterious Drugs Ordinance 1907

Bill : G.N. No. 613/1907

First Reading : 14 June 1907

Second Reading : 21 June 1907

Third Reading : 12 July 1907

Commencement : 12 July 1907

5. Ordinance XXVII of 1910—The Deleterious Drugs Ordinance 1910

Bill : G.N. No. 1019/1910

First Reading : 2 September 1910

Second Reading	: 9 September 1910
Amendments to Bill	: 7 October 1910
Third Reading	: 7 October 1910
Commencement	: 12 October 1910

6. Ordinance XI of 1912—The Public Authorities Protection Ordinance 1912
(Amendments made by section 3 read with the Schedule to the above Ordinance)

Bill	: G.N. No. 947/1912
First Reading	: 30 August 1912
Second Reading	: 20 September 1912
Third Reading	: 4 October 1912
Commencement	: 13 November 1912 (section 3 read with the Schedule)

7. Ordinance XIV of 1913—The Deleterious Drugs Ordinance 1910 Amendment Ordinance 1913

Bill	: G.N. No. 1031/1913
First Reading	: 22 August 1913
Second Reading	: 5 September 1913
Third Reading	: 31 October 1913
Commencement	: 18 November 1913

8. 1920 Revised Edition—Ordinance No. 124 (Deleterious Drugs)

Operation	: 28 November 1921
-----------	--------------------

9. Ordinance 26 of 1921—Statute Laws (Revised Edition) Operation Ordinance, 1921
(Amendments made by section 3(a) read with Schedule B to the above Ordinance)

Bill	: G.N. No. 1854/1921
First and Second Readings	: 22 November 1921
Notice of Amendments	: 22 November 1921
Third Reading	: 22 November 1921

Commencement : 28 November 1921 (section 3(a) read with Schedule B)

10. Ordinance 6 of 1925—Deleterious Drugs Amendment Ordinance, 1925

Bill : G.N. No. 1145/1924
First Reading : 30 June 1924
Second Reading : 15 September 1924
Select Committee Report : Information not available
Third Reading : 16 March 1925
Commencement : 11 April 1925

11. 1926 Revised Edition—Ordinance No. 124 (Deleterious Drugs)

Operation : 1 August 1926

12. Ordinance 7 of 1927—Deleterious Drugs Ordinance, 1927

Bill : G.N. No. 186/1927
First Reading : 7 February 1927
Second Reading : 21 March 1927
Notice of Amendments : 21 March 1927
Commencement : 2 June 1927

13. Ordinance 14 of 1928—Deleterious Drugs (Amendment) Ordinance, 1928

Bill : G.N. No. 547/1928
First Reading : 26 March 1928
Second Reading : 7 May 1928
Notice of Amendments : 7 May 1928
Third Reading : 2 July 1928
Commencement : 21 July 1928

14. Ordinance 58 of 1935—Deleterious Drugs (Amendment) Ordinance, 1935

Bill : G.N. No. 2953/1935

First Reading	: 20 November 1935
Second Reading	: 9 December 1935
Notice of Amendments	: 9 December 1935
Third Reading	: 9 December 1935
Commencement	: 1 April 1936

15. 1936 Revised Edition—Deleterious Drugs Ordinance (Chapter 190)

Operation	: 1 September 1936
-----------	--------------------

PART 2
DANGEROUS DRUGS ACT
(CHAPTER 151, 1970 REVISED EDITION)

16. Ordinance 7 of 1951—Dangerous Drugs Ordinance, 1951

Bill	: G.N. No. S 473/1950
First Reading	: 21 November 1950
Second Reading	: 19 December 1950
Notice of Amendments	: 19 December 1950
Third Reading	: 19 December 1950
Commencement	: 1 March 1951

Note: This Ordinance repealed the Deleterious Drugs Ordinance (Chapter 190, 1936 Revised Edition) and the Opium and Chandu Proclamation (Proclamation No. 43) (British Military Administration G.N. No. 201/1946).

17. Ordinance 29 of 1954—Dangerous Drugs (Temporary Provisions) Ordinance, 1954

Bill	: G.N. No. S 340/1954
First Reading	: 12 October 1954
Second Reading	: 2 November 1954
Third Reading	: 16 November 1954
Commencement	: 8 February 1955

18. Ordinance 36 of 1955—Dangerous Drugs (Temporary Provisions) (Amendment) Ordinance, 1955

Bill	: 25/1955
------	-----------

First Reading	: 12 October 1955
Second and Third Readings	: 7 November 1955
Commencement	: 25 November 1955

19. 1955 Revised Edition—Dangerous Drugs Ordinance (Chapter 137)

Operation	: 1 July 1956
-----------	---------------

20. 1955 Revised Edition—Dangerous Drugs (Temporary Provisions) Ordinance (Chapter 138)

Operation	: 1 July 1956
-----------	---------------

21. Ordinance 29 of 1956—Dangerous Drugs (Temporary Provisions) Ordinance, 1956

Bill	: 65/1956
First Reading	: 5 September 1956
Second and Third Readings	: 3 October 1956
Commencement	: 19 October 1956

22. Ordinance 30 of 1956—Dangerous Drugs (Amendment) Ordinance, 1956

Bill	: 66/1956
First Reading	: 5 September 1956
Second Reading	: 3 October 1956
Notice of Amendments	: 3 October 1956
Third Reading	: 3 October 1956
Commencement	: 19 October 1956

23. Ordinance 31 of 1958—Legislative Assembly (Presentation of Subsidiary Legislation) Ordinance, 1958

(Amendments made by section 2 read with the Schedule to the above Ordinance)

Bill	: 158/1958
First Reading	: 16 July 1958
Second Reading	: 13 August 1958
Notice of Amendments	: 10 September 1958

Third Reading	: 10 September 1958
Commencement	: 25 September 1958 (section 2 read with the Schedule)

24. Ordinance 23 of 1959—Dangerous Drugs (Amendment) Ordinance, 1959

Bill	: 203/1959
First Reading	: 11 February 1959
Second Reading	: 3 March 1959
Notice of Amendments	: 3 March 1959
Third Reading	: 3 March 1959
Commencement	: 20 March 1959

25. G.N. No. S (N.S.) 179/1959—Singapore Constitution (Modification of Laws) (No. 5) Order, 1959

Commencement	: 20 November 1959
--------------	--------------------

26. 1970 Revised Edition—Dangerous Drugs Act (Chapter 151)

Operation	: 31 May 1971
-----------	---------------

27. Act 21 of 1973—Statutes of the Republic of Singapore (Miscellaneous Amendments) Act, 1973

(Amendments made by section 2 read with the Schedule to the above Act)

Bill	: 16/1973
First Reading	: 7 March 1973
Second and Third Readings	: 20 March 1973
Commencement	: 6 April 1973 (section 2 read with the Schedule)

PART 3
DRUGS (PREVENTION OF MISUSE) ACT
(CHAPTER 154, 1970 REVISED EDITION)

28. Act 7 of 1969—Drugs (Prevention of Misuse) Act, 1969

Bill	: 7/1969
First Reading	: 8 April 1969
Second and Third Readings	: 12 June 1969

Commencement : 1 August 1969

29. G.N. No. S 315/1970—Drugs (Prevention of Misuse) Order, 1970

Commencement : 20 November 1970

30. 1970 Revised Edition—Drugs (Prevention of Misuse) Act (Chapter 154)

Operation : 31 May 1971

31. Act 21 of 1973—Statutes of the Republic of Singapore (Miscellaneous Amendments) Act, 1973

(Amendments made by section 2 read with the Schedule to the above Act)

Bill : 16/1973

First Reading : 7 March 1973

Second and Third Readings : 20 March 1973

Commencement : 6 April 1973 (section 2 read with the Schedule)

PART 4
MISUSE OF DRUGS ACT 1973
(2020 REVISED EDITION)

32. Act 5 of 1973—Misuse of Drugs Act, 1973

Bill : 46/1972

First Reading : 22 November 1972

Second Reading : 16 February 1973

Notice of Amendments : 16 February 1973

Third Reading : 16 February 1973

Commencement : 7 July 1973

33. G.N. No. S 46/1974—Misuse of Drugs (Amendment to First Schedule) Order, 1974

Commencement : 15 February 1974

34. G.N. No. S 59/1975—Misuse of Drugs (Amendment to First Schedule) Order, 1975

Commencement : 27 March 1975

35. Act 49 of 1975—Misuse of Drugs (Amendment) Act, 1975

Bill	: 55/1975
First Reading	: 11 November 1975
Second Reading	: 20 November 1975
Notice of Amendments	: 20 November 1975
Third Reading	: 20 November 1975
Commencement	: 12 December 1975

36. Act 12 of 1977—Misuse of Drugs (Amendment) Act, 1977

Bill	: 14/1977
First Reading	: 2 September 1977
Second Reading	: 9 November 1977
Notice of Amendments	: 9 November 1977
Third Reading	: 9 November 1977
Commencement	: 1 January 1978

37. G.N. No. S 14/1978—Misuse of Drugs (Amendment to First Schedule) Order, 1978

Commencement	: 27 January 1978
--------------	-------------------

38. 1978 Reprint—Misuse of Drugs Act, 1973

Reprint	: 15 December 1978
---------	--------------------

39. G.N. No. S 88/1979—Misuse of Drugs (Amendment of First Schedule) Order, 1979

Commencement	: 20 April 1979
--------------	-----------------

40. Act 28 of 1979—Misuse of Drugs (Amendment) Act, 1979

Bill	: 27/1979
First Reading	: 7 September 1979
Second and Third Readings	: 21 September 1979
Commencement	: 1 October 1979

41. G.N. No. S 237/1983—Misuse of Drugs (Amendment) Regulations 1893

- Commencement : 4 October 1983
- 42. G.N. No. S 238/1983—Misuse of Drugs (Amendment to First Schedule) Order 1983**
- Commencement : 4 October 1983
- 43. G.N. No. S 229/1984—Misuse of Drugs (Amendment of First Schedule) Order 1984**
- Commencement : 31 August 1984
- 44. G.N. No. S 272/1984—Misuse of Drugs (Amendment of First Schedule) (No. 2) Order 1984**
- Commencement : 2 November 1984
- 45. G.N. No. S 31/1986—Misuse of Drugs Act (Amendment of First Schedule) Order 1986**
- Commencement : 7 February 1986
- 46. 1985 Revised Edition—Misuse of Drugs Act (Chapter 185)**
- Operation : 30 March 1987
- 47. G.N. No. S 50/1990—Misuse of Drugs Act (Amendment of First Schedule) Order 1990**
- Commencement : 15 February 1990
- 48. Act 38 of 1989—Misuse of Drugs (Amendment) Act 1989**
- Bill : 39/1989
- First Reading : 6 October 1989
- Second and Third Readings : 30 November 1989
- Commencement : 15 February 1990
- 49. G.N. No. S 564/1991—Misuse of Drugs Act (Amendment of First Schedule) Order 1991**
- Commencement : 2 January 1992
- 50. G.N. No. S 66/1992—Misuse of Drugs Act (Amendment of First Schedule) Order 1992**
- Commencement : 1 March 1992
- 51. Act 40 of 1993—Misuse of Drugs (Amendment) Act 1993**
- Bill : 33/1993

- | | |
|---------------------------|--------------------|
| First Reading | : 12 October 1993 |
| Second and Third Readings | : 10 November 1993 |
| Commencement | : 10 December 1993 |
- 52. G.N. No. S 262/1995—Misuse of Drugs Act (Amendment of First Schedule) Order 1995**
- | | |
|--------------|----------------|
| Commencement | : 16 June 1995 |
|--------------|----------------|
- 53. G.N. No. S 223/1996—Misuse of Drugs Act (Amendment of First Schedule) Order 1996**
- | | |
|--------------|---------------|
| Commencement | : 17 May 1996 |
|--------------|---------------|
- 54. 1997 Revised Edition—Misuse of Drugs Act (Chapter 185)**
- | | |
|-----------|---------------|
| Operation | : 30 May 1997 |
|-----------|---------------|
- 55. G.N. No. S 469/1997—Misuse of Drugs Act (Amendment of First Schedule) Order 1997**
- | | |
|--------------|-------------------|
| Commencement | : 17 October 1997 |
|--------------|-------------------|
- 56. Act 20 of 1998—Misuse of Drugs (Amendment) Act 1998**
- | | |
|---------------------------|-----------------|
| Bill | : 17/1998 |
| First Reading | : 20 April 1998 |
| Second and Third Readings | : 1 June 1998 |
| Commencement | : 20 July 1998 |
- 57. 1998 Revised Edition—Misuse of Drugs Act (Chapter 185)**
- | | |
|-----------|--------------------|
| Operation | : 15 December 1998 |
|-----------|--------------------|
- 58. G.N. No. S 391/1999—Misuse of Drugs Act (Amendment of First Schedule) Order 1999**
- | | |
|--------------|--------------------|
| Commencement | : 9 September 1999 |
|--------------|--------------------|
- 59. Act 8 of 2000—Prisons (Amendment) Act 2000**
(Amendments made by section 26 of the above Act)
- | | |
|---------------------------|--------------------|
| Bill | : 5/2000 |
| First Reading | : 17 January 2000 |
| Second and Third Readings | : 21 February 2000 |

- Commencement : 17 April 2000 (section 26)
- 60. G.N. No. S 232/2000—Misuse of Drugs Act (Amendment of First Schedule) Order 2000**
- Commencement : 15 May 2000
- 61. G.N. No. S 404/2000—Misuse of Drugs Act (Amendment of Third Schedule) Order 2000**
- Commencement : 11 September 2000
- 62. Act 4 of 2001—Health Sciences Authority Act 2001**
(Amendments made by section 42 read with item (8) of the Second Schedule to the above Act)
- Bill : 3/2001
- First Reading : 12 January 2001
- Second and Third Readings : 22 February 2001
- Commencement : 1 April 2001 (section 42 read with item (8) of the Second Schedule)
- 63. 2001 Revised Edition—Misuse of Drugs Act (Chapter 185)**
- Operation : 31 July 2001
- 64. G.N. No. S 493/2001—Misuse of Drugs Act (Amendment of First Schedule) Order 2001**
- Commencement : 8 October 2001
- 65. G.N. No. S 30/2004—Misuse of Drugs Act (Amendment of First and Fourth Schedules) Order 2004**
- Commencement : 30 January 2004
- 66. Act 3 of 2005—CISCO (Dissolution) Act 2005**
(Amendments made by section 16 read with item (6) of the Schedule to the above Act)
- Bill : 52/2004
- First Reading : 19 October 2004
- Second and Third Readings : 25 January 2005
- Commencement : 10 June 2005 (section 16 read with item (6) of the Schedule)

67. G.N. No. S 507/2005—Misuse of Drugs Act (Amendment of First Schedule) Order 2005

Commencement : 1 August 2005

68. Act 2 of 2006—Misuse of Drugs (Amendment) Act 2006

Bill : 40/2005

First Reading : 21 November 2005

Second and Third Readings : 16 January 2006

Commencement : 1 March 2006

69. G.N. No. S 491/2006—Misuse of Drugs Act (Amendment of First Schedule) Order 2006

Commencement : 14 August 2006

70. G.N. No. S 560/2006—Misuse of Drugs Act (Amendment of Fourth Schedule) Order 2006

Commencement : 1 October 2006

71. G.N. No. S 402/2007—Misuse of Drugs Act (Amendment of Fourth Schedule) Order 2007

Commencement : 1 August 2007

72. Act 22 of 2007—Dentists (Amendment) Act 2007

(Amendments made by section 39 read with item (7) of the Schedule to the above Act)

Bill : 9/2007

First Reading : 27 February 2007

Second and Third Readings : 12 April 2007

Commencement : 1 January 2008 (section 39 read with item (7) of the Schedule)

73. 2008 Revised Edition—Misuse of Drugs Act (Chapter 185)

Operation : 31 March 2008

74. G.N. No. S 685/2010—Misuse of Drugs Act (Amendment of First Schedule) Order 2010

Commencement : 15 November 2010

75. Act 15 of 2010—Criminal Procedure Code 2010

(Amendments made by section 430 read with item 63 of the Sixth Schedule to the above

Act)

Bill	: 11/2010
First Reading	: 26 April 2010
Second Reading	: 18 May 2010
Second and Third Readings	: 19 May 2010
Commencement	: 2 January 2011 (section 430 read with item 63 of the Sixth Schedule)

76. Act 30 of 2012—Misuse of Drugs (Amendment) Act 2012

Bill	: 27/2012
First Reading	: 15 October 2012
Second and Third Readings	: 14 November 2012
Commencement	: 1 January 2013 (sections 2(c), (d) and (e), 3, 6, 14, 25(a), 27 and 28) 1 May 2013 (sections 4, 5, 7 to 13, 15(a) and (d), 23, 24, 25(b) and (c) and 26) 28 April 2014 (sections 2(a) and (b), 15(b), (c) and (e) and 16 to 22)

77. G.N. No. S 272/2013—Misuse of Drugs Act (Amendment of First and Third Schedules) Order 2013

Commencement	: 1 May 2013
--------------	--------------

78. G.N. No. S 273/2013—Misuse of Drugs Act (Amendment of Fifth Schedule) Order 2013

Commencement	: 2 May 2013
--------------	--------------

79. G.N. No. S 323/2014—Misuse of Drugs Act (Amendment of First, Fourth and Fifth Schedules) Order 2014

Commencement	: 1 May 2014
--------------	--------------

80. G.N. No. S 440/2014—Misuse of Drugs Act (Amendment of Third Schedule) Order 2014

Commencement	: 1 July 2014
--------------	---------------

81. Act 1 of 2014—Prisons (Amendment) Act 2014

(Amendments made by section 22 read with item 5 of the Schedule to the above Act)

Bill	: 22/2013
First Reading	: 11 November 2013
Second Reading	: 21 January 2014
Notice of Amendments	: 21 January 2014
Third Reading	: 21 January 2014
Commencement	: 1 July 2014 (section 22 read with item 5 of the Schedule)

82. G.N. No. S 572/2014—Misuse of Drugs Act (Amendment of First, Third and Fifth Schedules) Order 2014

Commencement : 1 September 2014

83. G.N. No. S 254/2015—Misuse of Drugs Act (Amendment of First and Fifth Schedules) Order 2015

Commencement : 1 May 2015

84. G.N. No. S 614/2015—Misuse of Drugs Act (Amendment of Fifth Schedule) Order 2015

Commencement : 1 November 2015

85. G.N. No. S 200/2016—Misuse of Drugs Act (Amendment of First and Fifth Schedules) Order 2016

Commencement : 1 May 2016

86. G.N. No. S 194/2017—Misuse of Drugs Act (Amendment of First and Fifth Schedules) Order 2017

Commencement : 1 May 2017

87. G.N. No. S 625/2017—Misuse of Drugs Act (Amendment of Third and Fifth Schedules) Order 2017

Commencement : 1 November 2017

88. G.N. No. S 233/2018—Misuse of Drugs Act (Amendment of First and Fifth Schedules) Order 2018

Commencement : 1 May 2018

89. G.N. No. S 587/2018—Misuse of Drugs Act (Amendment of First Schedule) Order 2018

- Commencement : 1 October 2018
- 90. G.N. No. S 150/2019—Misuse of Drugs Act (Amendment of First Schedule) Order 2019**
- Commencement : 25 March 2019
- 91. Act 1 of 2019—Misuse of Drugs (Amendment) Act 2019**
- Bill : 51/2018
- First Reading : 19 November 2018
- Second and Third Readings : 15 January 2019
- Commencement : 1 April 2019 (sections 2, 5 to 8, 10 to 17, 20(c), 21(a), (c) and (d) and 22(1))
1 August 2019 (sections 3, 4, 9, 18, 19, 20(a) and (b), 21(b) and 22(2) and (3))
- 92. G.N. No. S 354/2019—Misuse of Drugs Act (Amendment of First, Third and Fifth Schedules) Order 2019**
- Commencement : 1 May 2019
- 93. G.N. No. S 792/2019—Misuse of Drugs Act (Amendment of First, Fourth and Fifth Schedules) Order 2019**
- Commencement : 1 December 2019
- 94. G.N. No. S 349/2020—Misuse of Drugs Act (Amendment of First, Third and Fifth Schedules) Order 2020**
- Commencement : 1 May 2020
- 95. G.N. No. S 751/2020—Misuse of Drugs Act (Amendment of First Schedule) Order 2020**
- Commencement : 4 September 2020
- 96. G.N. No. S 284/2021—Misuse of Drugs Act (Amendment of First and Fifth Schedules) Order 2021**
- Commencement : 1 May 2021
- 97. 2020 Revised Edition—Misuse of Drugs Act 1973**
- Operation : 31 December 2021

98. G.N. No. S 440/2022—Misuse of Drugs Act 1973 (Amendment of First and Third Schedules) Order 2022

Date of commencement : 1 June 2022

99. Act 6 of 2022—Prisons (Amendment) Act 2022

Bill : 38/2021
First Reading : 1 November 2021
Second and Third Readings : 11 January 2022
Commencement : 2 September 2022 (Section 27)

100. Act 26 of 2022—Registration of Criminals (Amendment) Act 2022

(Amendments made by the above Act)

Bill : 19/2022
First Reading : 1 August 2022
Second and Third Readings : 12 September 2022
Commencement : 12 June 2023

101. G.N. No. S 453/2023—Misuse of Drugs Act 1973 (Amendment of First Schedule) Order 2023

Date of commencement : 1 July 2023

102. Act 12 of 2023—Misuse of Drugs (Amendment) Act 2023

(Amendments made by the above Act)

Bill : 9/2023
First Reading : 24 February 2023
Second and Third Readings : 21 March 2023
Commencement : 1 June 2023
1 June 2024

103. G.N. No. S 431/2024—Misuse of Drugs Act 1973 (Amendment of First and Third Schedules) Order 2024

Date of commencement : 1 June 2024

104. Act 16 of 2024—Law Enforcement and Other Matters Act 2024

Bill : 14/2024
First Reading : 7 March 2024
Second and Third Readings : 2 April 2024
Commencement : 18 November 2024

105. G.N. No. S 926/2024—Misuse of Drugs Act 1973 (Amendment of Third Schedule) Order 2024

Date of commencement : 1 December 2024

106. Act 5 of 2025—Electronic Gazette and Legislation Act 2025

Bill : 47/2024
First Reading : 11 November 2024
Second and Third Readings : 7 January 2025
Commencement : 9 March 2025

107. G.N. No. S 471/2025—Misuse of Drugs Act 1973 (Amendment of First Schedule) Order 2025

Date of commencement : 1 July 2025

108. G.N. No. S 556/2025—Misuse of Drugs Act 1973 (Amendment of First Schedule) (No. 2) Order 2025

Date of commencement : 1 September 2025

109. Act 31 of 2023—Immigration (Amendment) Act 2023

(Amendments made by the above Act)

Bill : 26/2023
First Reading : 2 August 2023
Second and Third Readings : 18 September 2023

Commencement : 1 December 2025

110. G.N. No. S 76/2026—Misuse of Drugs Act 1973 (Amendment of First Schedule) Order 2026

Date of commencement : 28 February 2026

111. Act 9 of 2026—Tobacco (Control of Advertisements and Sale) (Amendment) and Other Matters Act 2026

(Amendments made by the above Act)

Bill : 3/2026

First Reading : 12 February 2026

Second and Third Readings : 6 March 2026

Commencement : 1 May 2026

112. G.N. No. S 321/2026—Misuse of Drugs Act 1973 (Amendment of First Schedule) (No. 2) Order 2026

Date of commencement : 1 June 2026

Abbreviations

(updated on 29 August 2022)

G.N. Gazette Notification

G.N. Sp. Gazette Notification (Special Supplement)

L.A. Legislative Assembly

L.N. Legal Notification (Federal/Malaysian)

M. Malaya/Malaysia (including Federated Malay States, Malayan Union, Federation of Malaya and Federation of Malaysia)

Parl. Parliament

S Subsidiary Legislation

S.I. Statutory Instrument (United Kingdom)

S (N.S.)	Subsidiary Legislation (New Series)
S.S.G.G.	Straits Settlements Government Gazette
S.S.G.G. (E)	Straits Settlements Government Gazette (Extraordinary)